

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Licensing (Consolidation) Act, 1910 ...	10 Edw. 7. & 1 Geo. 5. c. 24.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Mines (Working Facilities and Support) Act, 1923	13 & 14 Geo. 5. c. 20.
Settled Land Act, 1925	15 & 16 Geo. 5. c. 18.
Law of Property Act, 1925	15 & 16 Geo. 5. c. 20.
Land Charges Act, 1925	15 & 16 Geo. 5. c. 22.
Universities and College Estates Act, 1925 ...	15 & 16 Geo. 5. c. 24.
Town and Country Planning Act, 1932 ...	22 & 23 Geo. 5. c. 48.
Restriction of Ribbon Development Act, 1935	25 & 26 Geo. 5. c. 47.
Compensation (Defence) Act, 1939	2 & 3 Geo. 6. c. 75.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
War Damage Act, 1943	6 & 7 Geo. 6. c. 21.
Town and Country Planning Act, 1944 ...	7 & 8 Geo. 6. c. 47.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Transport Act, 1947	10 & 11 Geo. 6. c. 49.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6. c. 51.
Requisitioned Land and War Works Act, 1948	11 & 12 Geo. 6. c. 17.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
National Parks and Access to the Countryside Act, 1949	12, 13 & 14 Geo. 6. c. 97.
Mineral Workings Act, 1951	14 & 15 Geo. 6. c. 60.
Town and Country Planning Act, 1953 ...	1 & 2 Eliz. 2. c. 16.

CHAPTER 73

Town and Country Planning (Scotland) Act, 1954

ARRANGEMENT OF SECTIONS

PART I

SPECIAL PAYMENTS FOR DEPRECIATION OF LAND VALUES

Section

1. Payments by reference to established claims.
2. Claim holdings, their areas and values, and apportionment of values between parts of areas.
3. Payment where development charge incurred by claim-holder or his predecessor in title (Case A).
4. Supplementary provisions relating to development charges.
5. Payment where land compulsorily acquired or sold at price wholly or partly excluding development value (Case B).
6. Supplementary provisions relating to compulsory acquisitions and to sales.

Section

7. Payment where land disposed of by gift (Case C).
8. Payment where claim holding purchased (Case D).
9. Payment under Case A, B or C to person deriving title to claim holding from original claim-holder.
10. Payments in cases analogous to Case B.
11. Residual payments in cases analogous to Cases A and B.
12. Payments not to exceed value of claim holdings.
13. Applications for payments under Part I.
14. Payments to be made by Central Land Board.
15. Effect of payments on claim holdings.

PART II

COMPENSATION FOR REFUSAL, OR CONDITIONAL GRANT,
OF PLANNING PERMISSION

16. Scope of Part II.
17. Unexpended balance of established development value.
18. Reduction or extinguishment of balance.
19. Right to compensation in respect of planning decisions.
20. Compensation excluded in respect of certain matters.
21. Compensation excluded if certain other development permitted.
22. General provisions as to claims for compensation.
23. Review of planning decisions where compensation claimed.
24. Supplementary provisions as to review of planning decisions.
25. General provisions as to amount of compensation.
26. Measure of depreciation for assessing compensation.
27. Determination of claims for compensation.
28. Apportionment of compensation.
29. Recording of notices relating to compensation.
30. Recovery of compensation on subsequent development.

PART III

COMPENSATION FOR COMPULSORY ACQUISITION OF LAND

31. Application of Part III.
32. Compensation to include unexpended balance of established development value.
33. Additional compensation for works.
34. Protection for purchaser of interest subsequently acquired compulsorily.
35. Compensation to take account of planning permission in certain other cases.
36. Additional payments in cases where no claim for development value has been established.
37. Compensation for severance, injurious affection and disturbance.
38. Effect of Part III on unexpended balance of established development value.
39. Assessment of compensation in certain cases.

PART IV

COMPENSATION FOR REVOCATION OR MODIFICATION
OF PLANNING PERMISSION

40. Amendment of s. 20 of principal Act.
41. Recording of notices as to, and apportionment of, compensation for depreciation.
42. Exchequer contribution towards compensation in certain cases.
43. Recovery, on subsequent development, of compensation under s. 20 of principal Act.

PART V

COMPENSATION FOR PAST PLANNING DECISIONS AND PAST
ORDERS REVOKING OR MODIFYING PLANNING PERMISSION

Section

44. Scope of Part V.
45. Right to compensation in respect of past planning decisions or past revocations &c. of planning permission.
46. General provisions as to amount of compensation for past planning decisions, revocations &c.
47. Claims for compensation under Part V, and review of past decisions and orders.
48. Payment of compensation under Part V, and supplementary provisions relating thereto.

PART VI

MISCELLANEOUS AND SUPPLEMENTARY PROVISIONS

49. Associated companies.
50. Provision of information as to unexpended balance, &c.
51. Cancellation or reduction of liability for development charges.
52. Exchequer grants to local planning authorities.
53. Supplementary provisions as to Exchequer grants.
54. Recovery of certain sums from acquiring authorities.
55. Compensation for damage to requisitioned land.
56. Special provisions relating to minerals.
57. Modification of mining leases granted before 18th November, 1952.
58. Recovery, on subsequent development, of payments under s. 56 of principal Act.
59. Applications for permission for industrial development.
60. Assignations and settlements by will of claims under Part V of principal Act.
61. Crown land.
62. Consideration in respect of discharge of acquired land from feu-duty, ground annual, &c.
63. Transfer to Secretary of State of functions of Central Land Board exercisable in Scotland.
64. General financial provisions.
65. General provisions as to calculation of value.
66. Provision for diversion of payments.
67. Application of miscellaneous provisions of principal Act.
68. Provisions as to regulations.
69. Interpretation.
70. Minor and consequential amendments and repeals.
71. Short title, citation, commencement and extent.

SCHEDULES:

First Schedule—Modification of provisions of principal Act as to development value.

Second Schedule—Claims assigned to Central Land Board as security for development charges.

Third Schedule—Payments under section fifty-six of principal Act.

Fourth Schedule—Calculation of value of previous development of land.

Fifth Schedule—Apportionment of unexpended balance of established development value.

Sixth Schedule—Special classes of land for which planning permission is to be included in compensation on compulsory acquisition.

Seventh Schedule—Compensation, on compulsory acquisition, for severance and injurious affection.

Eighth Schedule—Enactments amended.

Ninth Schedule—Enactments repealed.

An Act to make provision with respect to Scotland for compensation and other payments by reference to claims for payments under section fifty-five of the Town and Country Planning (Scotland) Act, 1947; to make further provision as to the acquisition of land by public authorities, as to compensation in respect of orders revoking or modifying permission to develop land and in respect of damage to requisitioned land, as to development charges, as to Exchequer grants under the said Act of 1947, and as to payments under section fifty-six of that Act, and to amend other provisions of that Act; to make further provision for the modification of mining leases and orders granting working rights; to make further provision for the assessment under section one hundred and eight of the Lands Clauses Consolidation (Scotland) Act, 1845, of the consideration payable in respect of the discharge of acquired land from feu-duty and ground annuals and other burdens; to provide for the transfer of the functions in Scotland of the Central Land Board, on the dissolution of that Board, to the Secretary of State; and for purposes connected with the matters aforesaid.

[25th November, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

SPECIAL PAYMENTS FOR DEPRECIATION OF LAND VALUES

1.—(1) The provisions of this Part of this Act shall have effect for requiring payments to be made by the Central Land Board, by reference to claims established under Part V of the Town and Country Planning (Scotland) Act, 1947 (in this Act referred to as "the principal Act"), in cases where the land, or part of

Payments by reference to established claims.

PART I
—*cont.*

the land, in respect of which such a claim was established, or the interest in land to which such a claim related, or the benefit, or part of the benefit, of such a claim, has before the commencement of this Act been the subject of an act or event such as is specified in any of those provisions.

(2) The claims referred to in the preceding subsection are claims for payments under the scheme which, but for the provisions of section two of the Town and Country Planning Act, 1953 (in this Act referred to as "the Act of 1953"), would have fallen to be made under section fifty-five of the principal Act (which provided for payments in respect of depreciation of land values in accordance with a scheme to be made under that section).

(3) A claim for such a payment in respect of an interest in land shall for the purposes of this Act be taken to have been established in respect of that land under Part V of the principal Act if an amount was determined under the said Part V, or is so determined after the commencement of this Act, as being the development value of the interest to which the claim related, and payment in respect of that interest would not have been excluded—

(a) by section sixty of the principal Act (which excluded claims where the development value was small in proportion to the area, or to the restricted value, of the land), or

(b) by any of sections seventy-nine to eighty-two of the principal Act (which relate to certain land belonging to local authorities, local planning authorities, development corporations and statutory undertakers, and to land held for charitable purposes), or

(c) by section eighty-one of the principal Act as applied by regulations under section eighty-six of that Act (which relates to the National Coal Board).

(4) In this Act the expression "established claim" means a claim which by virtue of the last preceding subsection is to be taken to have been established as mentioned in that subsection, and references to the establishment of a claim shall be construed accordingly; and the expression "the claim area", in relation to an established claim, means the land in respect of which the claim is by virtue of that subsection to be taken to have been established.

(5) References in this Act to the benefit of an established claim—

(a) in relation to any time before the passing of the Act of 1953, whether before or after the making of the claim, or before or after the establishment thereof, shall

be construed as references to the prospective right, under and subject to the provisions of the scheme referred to in subsection (2) of this section, to receive a payment in respect of the interest in land to which the claim related, and

- (b) in relation to any time after the passing of the Act of 1953 (whether before or after the commencement of this Act), shall be construed as references to such prospective right to the satisfaction of the claim as subsisted immediately before the commencement of this Act by virtue of section two of that Act,

and references to part of the benefit of an established claim shall be construed accordingly.

(6) References in this Act to the amount of an established claim are references to the amount determined, whether before or after the commencement of this Act, under Part V of the principal Act as being the development value of the interest in land to which the claim related :

Provided that the provisions of the First Schedule to this Act shall have effect for the purpose of determining that amount ; and where that amount was determined at a time before the commencement of this Act as an amount less or greater than it would have been if those provisions had at that time had effect in relation thereto, that determination shall be deemed not to have been made.

2.—(1) Subject to the provisions of this Act, references therein to a claim holding are references to the benefit of an established claim, references to the area of a claim holding are references to the land which, in relation to the established claim constituting that holding, is the claim area, and references to the value of a claim holding are references to the amount of the established claim constituting that holding.

Claim holdings, their areas and values, and apportionment of values between parts of areas.

(2) The provisions—

- (a) of the Second Schedule to this Act, relating to cases where a claim holding was assigned to the Central Land Board, and
- (b) of the Third Schedule to this Act, relating to cases where a claim holding related to an interest in land and a payment has become, or becomes, payable under section fifty-six of the principal Act (which provides for payments in respect of certain war-damaged land) in respect of the like interest in the whole or part of that land with or without any other land,

shall have effect for extinguishing the claim holding, or reducing the value thereof, or for treating the claim holding as divided into two or more claim holdings and extinguishing any of those holdings or reducing the value thereof.

PART I
—cont.

(3) Where by virtue of any transmission of part of the benefit of an established claim different persons became entitled to different parts of that benefit, then, as from the date of that transmission (in this subsection referred to as "the relevant transmission"), each of those different parts shall be treated as having constituted a separate claim holding, and the area and value of each of those separate holdings at any material time after the relevant transmission shall be taken to have been such as may, on the occasion of an apportionment affecting that holding falling to be made for any of the purposes of this Act, be determined by the authority making the apportionment or, where that authority's determination is referred to the Lands Tribunal under any provision of this Act, by that Tribunal, to be just and appropriate in all the circumstances; and in making their determination the authority or Tribunal shall in particular have regard to the following principles, that is to say—

- (a) that the aggregate of the values of all claim holdings representing parts of the benefit of the same established claim shall not exceed the amount of that established claim;
- (b) that, subject to the preceding paragraph, where a claim holding representing part only of the benefit of an established claim has been assigned to the Central Land Board within the meaning of the Second Schedule to this Act, otherwise than as is mentioned in paragraph 2 of that Schedule, and by virtue of that Schedule any deduction falls to be made from the value of that claim holding by reference to an amount due by way of development charge, the value of that holding at the time of the assignation shall not be taken to have been less than the amount secured by the assignation;
- (c) that, in the case of the claim holding representing the part of the benefit of an established claim which was the subject of the relevant transmission, not being a claim holding to which paragraph (d) of this subsection applies—
 - (i) the area of the claim holding should be taken to be the claim area of that established claim less the area of any claim holding to which the said paragraph (d) applies which represents part of the benefit of the same established claim; and
 - (ii) the value of the claim holding immediately after the relevant transmission should, subject to paragraphs (a) and (b) of this subsection, be taken to have been that part of the amount of the established claim to which the holder purported to become entitled under the terms of that transmission;

(d) that where any person who has been entitled to a claim holding representing part only of the benefit of an established claim—

(i) at any time while so entitled has also been entitled to the interest in land to which the established claim related in so far as that interest subsisted in part only of the claim area ; and

(ii) became entitled to both that holding and that interest in such circumstances that the authority aforesaid or, as the case may be, the Lands Tribunal are satisfied that the holding and the interest were intended to relate to one another,

the area of that claim holding should be taken to be that part of the claim area, and the value of that holding immediately after the relevant transmission should, however that or any other transmission affecting the holding was expressed but subject to paragraphs (a) to (c) of this subsection, be taken to have been an amount equal to so much of the amount of the established claim as might reasonably be expected to have been attributed to that part of the claim area if the authority determining the amount of that established claim had been required to apportion it, in accordance with the same principles as applied to its determination, between that part and the residue of the claim area.

(4) References in this Act to the fraction of the value of a claim holding which attaches to a part of the area of the holding are references to so much of the amount of the established claim of which that holding represents the benefit or part of the benefit (in this subsection referred to as “the relevant established claim”) as was properly attributable to that part of the area of the holding :

Provided that where, by virtue of any provision of this Act, the value of the claim holding at the time in question is to be treated as less or greater—

(a) in a case where the area of the holding and the claim area of the relevant established claim are the same, than the amount of that established claim ; or

(b) in a case where the area of the holding consists of part only of the said claim area, than so much of the amount of the relevant established claim as was properly attributable to the area of the holding,

the amount of the fraction aforesaid shall be treated as reduced or, as the case may be, increased proportionately.

PART I
—cont.

For the purposes of this subsection, the part of the amount of the relevant established claim which was properly attributable to any land forming part of the claim area shall be deemed to be so much of the amount of that claim as might reasonably be expected to have been attributed to that land if the authority determining that amount had been required to apportion it, in accordance with the same principles as applied to its determination, between that land and the residue of the claim area.

(5) References in this Part of this Act, other than in this section, to the value of a claim holding are references to the value of that holding immediately before the commencement of this Act.

(6) Where in accordance with any of the provisions of this Act a part of the benefit of an established claim constitutes a separate claim holding, the interest in land to which that claim holding relates shall be taken to be an interest of the like character as the interest to which the established claim related.

(7) Where in accordance with any of the provisions of this Act a claim holding (in this subsection referred to as "the parent holding") is to be treated as divided into two or more claim holdings, a person who is for the time being the holder of one of those holdings shall be treated as having been the holder thereof at any time when he was the holder of the parent holding.

(8) In this Act the expression "the holder", in relation to a claim holding, means the person for the time being entitled to the holding.

Payment where
development
charge
incurred by
claim-holder or
his predecessor
in title
(Case A).

3.—(1) The holder of a claim holding shall, subject to the provisions of this Part of this Act, be entitled by virtue of this section to a payment in respect of that holding if either—

- (a) he has incurred a development charge in respect of land to which this subsection applies, or
- (b) he is entitled to an interest in land to which this subsection applies, and a development charge was incurred in respect of that land by a person from whom he derives title to that interest or whose interest has subsequently become merged in that interest.

(2) The preceding subsection applies to any land which constitutes the area of the claim holding, or part of that area, or which includes that area or part of that area.

(3) The principal amount of a payment made in respect of a claim holding by virtue of this section—

PART I
—*cont.*

- (a) if the development charge was incurred in respect of the whole of the area of the holding, or in respect of land which included the whole of that area, shall not exceed the value of the holding ;
- (b) if the development charge was incurred in respect of part of the area of the holding, or in respect of land which included part (but not the whole) of that area, shall not exceed that fraction of the value of the holding which attaches to that part of the area of the holding.

(4) Subject to the last preceding subsection, and to the two next following subsections, the principal amount of a payment made by virtue of this section by reference to a development charge shall be the amount of the charge.

(5) Where apart from this subsection a payment would be payable by virtue of this section by reference to a development charge, and by reason of the payment of that charge—

- (a) compensation has become payable (whether before or after the commencement of this Act) under subsection (1) of section twenty of the principal Act (which relates to cases where planning permission is revoked or modified), or the amount of any compensation so payable has been increased, or
- (b) in connection with a compulsory acquisition of land (whether before or after the commencement of this Act) the operation of subsection (4) of section forty-eight of the principal Act (which provides, with certain exceptions, for disregarding planning permission granted before the date of the notice to treat) has been excluded and the compensation payable in respect of the acquisition has been thereby increased, or
- (c) on a sale to a public authority possessing compulsory purchase powers (whether before or after the commencement of this Act) the sale price has been increased by being calculated on the basis that the operation of subsection (4) of the said section forty-eight was excluded,

the Central Land Board shall reduce or disallow the payment, as the Board, or, where the Board's determination is referred to the Lands Tribunal under section thirteen of this Act, that Tribunal, may determine to be appropriate, having regard to the compensation, or increased compensation, or increased price, as the case may be, payable by reason of the development charge.

PART I
—cont.

(6) Where two or more payments are payable by virtue of this section in respect of different claim holdings, but by reference to the same development charge, and apart from this subsection the aggregate of the principal amounts of those payments would exceed the amount of the charge, each such principal amount shall be reduced rateably so that the aggregate of them is equal to the amount of the charge.

(7) In the following provisions of this Act references to a payment under Case A are references to a payment by virtue of this section.

Supplementary provisions relating to development charges.

4.—(1) For the purposes of this Part of this Act a development charge shall be taken to have been incurred in respect of any land if the Central Land Board have (whether before or after the commencement of this Act) determined that the charge was payable in respect of the carrying out of operations in, on, over or under that land, or in respect of the use of that land, and the whole or part of the charge has been paid or has become payable.

(2) For the purposes of this Part of this Act the person by whom a development charge was incurred shall be taken to be the person by whom or on whose behalf the charge was paid or, if the charge was not paid in full in the first instance, the person who undertook with the Central Land Board to pay the charge or the unpaid balance thereof.

(3) For the purposes of this Part of this Act the amount of a development charge—

(a) in a case where the Central Land Board determined that amount as a single capital payment, shall be taken to be the amount so determined ;

(b) in a case where the Board determined that amount otherwise than as a single capital payment, shall be taken to be the amount of the single capital payment which would have been payable if the Board had determined the amount as such a payment.

Payment where land compulsorily acquired or sold at price wholly or partly excluding development value (Case B).

5.—(1) The holder of a claim holding shall, subject to the provisions of this Part of this Act, be entitled by virtue of this section to a payment in respect of that holding if, at a time when he was entitled in the same capacity both to the claim holding and to the interest in land to which the holding related, that interest—

(a) was compulsorily acquired by, or was sold to, a public authority possessing compulsory purchase powers, in such circumstances that the compensation payable in respect of the acquisition of the interest, or the price at which the interest was sold, fell short of the sum of the value of the holding and the existing use value of the interest, or

PART I
—cont.

- (b) was sold, otherwise than to a public authority possessing compulsory purchase powers, at a price which fell short of the sum of the value of the holding and the restricted value of the interest.

(2) No payment shall be made by virtue of this section by reason that an interest in land was compulsorily acquired or sold as mentioned in paragraph (a) of the preceding subsection if the compensation payable in respect of the acquisition thereof, or the price at which the interest was sold—

- (a) was calculated in accordance with the provisions of Part II of the Town and Country Planning (Scotland) Act, 1945 (which provided for compensation based on market value, by reference to prices current at the thirty-first day of March, nineteen hundred and thirty-nine), or

- (b) was compensation calculated on the basis of equivalent reinstatement, or a price agreed by reference to compensation so calculated.

(3) No payment shall be made by virtue of this section unless the transaction in question —

- (a) if it was a compulsory acquisition, or a sale to a public authority possessing compulsory purchase powers, was effected in pursuance of a notice to treat served, or a contract made, on or after the thirteenth day of August, nineteen hundred and forty-seven, and before the commencement of this Act ;

- (b) if it was a sale otherwise than to a public authority possessing compulsory purchase powers, was effected in pursuance of a contract made on or after the said thirteenth day of August, and before the eighteenth day of November, nineteen hundred and fifty-two, or in pursuance of an option granted on or after the first day of July, nineteen hundred and forty-eight, and before the said eighteenth day of November,

and unless the conveyance relative to the acquisition or sale has been granted (whether before or after the commencement of this Act) before the time when an application is made to the Central Land Board for the payment.

(4) The principal amount of a payment made by virtue of this section in respect of a claim holding—

- (a) in a case falling within paragraph (a) of subsection (1) of this section, shall be the value of the holding, reduced by any amount by which the compensation or sale price exceeded the existing use value of the interest ;

PART I
—cont.

- (b) in a case falling within paragraph (b) of that subsection, shall be the value of the holding, reduced by any amount by which the sale price exceeded the restricted value of the interest.

(5) In the application of the preceding provisions of this section to a case where the interest compulsorily acquired or sold extended to land not included in the area of the claim holding—

- (a) references to the compensation payable in respect of the acquisition of the interest, or to the existing use value of the interest, shall be construed respectively as references to so much of that compensation or value as might reasonably be expected to have been attributed to the interest in so far as it subsisted in land included in the area of the claim holding ;
- (b) references to the sale price shall be construed as references to so much of that price as the parties to the sale may reasonably be supposed to have attributed to the interest in so far as it subsisted in land so included ; and
- (c) references to the restricted value of the interest shall be construed as references to the restricted value of the interest in so far as it subsisted in land so included.

(6) In the application of the preceding provisions of this section to a case where the interest compulsorily acquired or sold did not extend to the whole area of the claim holding, references to the value of the claim holding shall be construed as references to that fraction of that value which attaches to the part of the area of the claim holding which was comprised in the acquisition or sale.

(7) Where an interest in land is the subject of a compulsory acquisition or sale such as is mentioned in subsection (3) of this section and—

- (a) on or after the first day of July, nineteen hundred and forty-eight, but before the date of the compulsory acquisition or sale, another interest had become merged with that interest ; and
- (b) the person entitled to the interest compulsorily acquired or sold was at the date of the compulsory acquisition or sale entitled to a claim holding or claim holdings which related to either or each of the merged interests,

this section shall apply as if those interests had not merged but had been separately acquired from or sold by the person entitled to the interest acquired or sold ; and the compensation payable in respect of the compulsory acquisition or, as the case

may be, the sale price shall be treated as apportioned between those interests accordingly:

PART I
—cont.

Provided that nothing in this subsection shall prejudice the operation of the proviso to subsection (5) of the next following section.

(8) Where two or more persons are jointly entitled to a claim holding, then, for the purpose of ascertaining whether or not those persons are entitled to a payment in respect of the holding by virtue of this section, any act or event by virtue of which the interest of any one or more of those persons in any of the area of the claim holding passed to any other one or more of those persons shall be deemed not to have occurred.

(9) The provisions of this and the next following section shall apply in relation to any interest in land vested in the British Transport Commission by subsection (2) of section forty-five of the Transport Act, 1947 (which relates to the acquisition of road haulage undertakings by the Commission), as if that vesting were a compulsory acquisition of that interest and as if the notice of acquisition served under Part III of that Act by virtue of which the interest was so vested were a notice to treat.

(10) In the following provisions of this Act references to a payment under Case B are references to a payment by virtue of this section.

6.—(1) In this Act any reference to the sale or purchase of an interest in land includes a reference to the sale or purchase of such an interest by way of feu; and in relation to any such sale or purchase—

Supplementary provisions relating to compulsory acquisitions and to sales.

- (a) the price shall be taken for the purposes of this Act to be the capital value of the feu-duty, or, as the case may be, the aggregate consideration represented by the grassum and the capital value of the feu-duty; and
- (b) the last preceding section and sections eleven and forty-five of this Act shall have effect as if the interest sold were identical with the seller's whole interest in the land immediately before the sale.

(2) In the last preceding section—

- (a) references to the compensation payable in respect of the acquisition of an interest, or to the price at which an interest was sold to a public authority possessing compulsory purchase powers, shall be construed as excluding so much (if any) of that compensation or price as was attributable to disturbance, or to severance or injurious affection;
- (b) references to the existing use value of an interest acquired by or sold to such a public authority are references to the amount of compensation (not being compensation calculated on the basis of equivalent

PART I
—cont.

reinstatement and excluding any compensation for disturbance or for severance or injurious affection) which was or would have been payable in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act, 1919, as modified by sections forty-eight to fifty-one of the principal Act.

(3) Subject to the following provisions of this section, references in the last preceding section to the restricted value of an interest in land, in relation to a sale of that interest, are references to the amount which, for the purposes of Part V of the principal Act, would have been taken to be the restricted value of that interest on the appointed day if—

- (a) the date of the sale had been appointed as the appointed day for the purposes of the said Part V and, so far as required for the purposes of that Part, for the purposes of the Third Schedule to the principal Act ;
- (b) references to the seventh day of January, nineteen hundred and forty-seven, in subsection (5) of section fifty-eight of the principal Act (which requires values to be calculated by reference to prices current immediately before that day) were references to the date of the sale ;
- (c) in a case where the interest was sold subject to a heritable security, subsection (5) of section fifty-nine of the principal Act (which requires an interest subject to a heritable security to be valued as if the security had been discharged) did not apply ;
- (d) in a case where the land was requisitioned land at the date of the sale and, by reason of a payment under the War Damage Act, 1943, the value of the claim holding referred to in subsection (1) of the last preceding section was affected by a redetermination of development value under paragraph 6 of the First Schedule to this Act, the state of the land had been at the date of the sale what it would have been at the beginning of the period of requisition if the war damage had occurred immediately before the beginning of that period ; and
- (e) in a case where the value of the claim holding aforesaid was affected by reason of the fact that Rule (3) of the Rules set out in section two of the Acquisition of Land (Assessment of Compensation) Act, 1919, was disregarded as mentioned in paragraph 10 of the First Schedule to this Act, the reference in subsection (1) of section fifty-nine of the principal Act to the said Rule (3) were omitted :

Provided that where the Secretary of State issued in respect of that land or any part thereof a certificate under section

seventy-seven of the principal Act (which relates to land ripe for development before the first day of July, nineteen hundred and forty-eight) and at the date of the sale the development specified in the certificate had not been completed, then—

(i) that certificate shall be deemed not to have been issued, but

(ii) the said references in the last preceding section shall be construed as references to the amount aforesaid increased by the amount of any development charge which, in the opinion of the Central Land Board, would have been determined to be payable in respect of so much of that development as had not been completed, if it had been completed and if the certificate had not been issued and the charge had fallen to be determined at the date of the sale.

(4) Where, in determining the development value of the interest in land to which the claim holding related, a deduction was made in accordance with subsection (6) of section fifty-eight of the principal Act (which requires certain amounts prospectively payable, as compensation for severance or injurious affection, to be deducted in computing the unrestricted value of an interest), or where, in the opinion of the Central Land Board, or, where the Board's determination is referred to the Lands Tribunal under section thirteen of this Act, of that Tribunal, if the development value of the interest had fallen to be determined such a deduction would have been made, then, for the purposes of paragraph (b) of subsection (1) and paragraph (b) of subsection (4) of the last preceding section, the value of the claim holding shall be treated as increased by the amount which would have been the amount of the deduction under the said subsection (6) if the date of the sale had been appointed as the appointed day for the purposes of Part V of the principal Act.

(5) Where, in determining the development value of the interest in land to which the claim holding related, the restricted value of the interest on the appointed day was taken to be a minus quantity, or where, in the opinion of the Central Land Board, or, where the Board's determination is referred to the Lands Tribunal under section thirteen of this Act, of that Tribunal, if the development value of the interest had fallen to be determined the restricted value of the interest on that day would have been a minus quantity, then, for the purposes of paragraph (a) of subsection (1) and paragraph (a) of subsection (4) of the last preceding section, the value of the claim holding shall be treated as reduced by the amount of that minus quantity:

Provided that where the whole or part of any liability or prospective liability which was or, as the case may be, would have been taken into account in calculating that restricted

PART I
—cont.

value had ceased to exist before the date of the compulsory acquisition or sale, the Board, or, as the case may be, the Lands Tribunal may, if they think it just and proper so to do, waive in whole or in part, as may appear to them appropriate, any reduction otherwise falling to be made under this subsection.

(6) For the purposes of this Part of this Act a compulsory acquisition or sale of an interest in land shall be taken to have occurred on the date of service of the notice to treat or, as the case may be, on the date of the making of the contract of sale, or, in the case of the exercise of an option, the date on which the option was granted.

Payment where
land disposed
of by gift
(Case C).

7.—(1) The holder of a claim holding shall, subject to the provisions of this Part of this Act, be entitled by virtue of this section to a payment in respect of that holding if, at a time when he was beneficially entitled both to the claim holding and to the interest in land to which the holding related, or another interest in which that interest had merged, he disposed of that interest by way of gift, being a gift by virtue of which he parted absolutely with the whole of his beneficial interest in that land.

(2) No payment shall be made by virtue of this section unless the gift was made on or after the first day of July, nineteen hundred and forty-eight, and before the eighteenth day of November, nineteen hundred and fifty-two.

(3) The principal amount of a payment made by virtue of this section in respect of a claim holding shall be the value of the holding.

(4) In the application of this section to a case where the gift did not extend to the whole area of the claim holding, the last preceding subsection shall apply as if the reference to the value of the claim holding were a reference to that fraction of that value which attaches to the part of the area of the claim holding which was comprised in the gift.

(5) Where, in determining the development value of the interest in land to which the claim holding related, the restricted value of the interest on the appointed day was taken to be a minus quantity, or where, in the opinion of the Central Land Board, or, where the Board's determination is referred to the Lands Tribunal under section thirteen of this Act, of that Tribunal, if the development value of the interest had fallen to be determined the restricted value of the interest on that day would have been a minus quantity, then, for the purposes of this section, the value of the claim holding shall be treated as reduced by the amount of that minus quantity:

Provided that where the whole or part of any liability or prospective liability which was or, as the case may be, would have been taken into account in calculating that restricted value

had ceased to exist before the date on which the gift in question was made, the Board or, as the case may be, the Lands Tribunal may, if they think it just and proper so to do, waive in whole or in part, as may appear to them appropriate, any reduction otherwise falling to be made under this subsection.

PART I
—cont.

(6) In the following provisions of this Act references to a payment under Case C are references to a payment by virtue of this section.

8.—(1) The holder of a claim holding shall, subject to the provisions of this Part of this Act, be entitled by virtue of this section to a payment in respect of the holding if—

Payment where claim holding purchased (Case D).

- (a) he became entitled to the holding under an assignation to which this section applies, or derives title to it from a person who so became entitled to it, and
- (b) at no time since the date of that assignation has the same person been entitled in the same capacity both to the claim holding and to the interest in land to which the holding related.

(2) This section applies to any assignation for valuable consideration effected before the eighteenth day of November, nineteen hundred and fifty-two, or effected in pursuance of a contract of sale made before that day or in pursuance of the exercise before the commencement of this Act of an option granted on or after the first day of July, nineteen hundred and forty-eight, and before the eighteenth day of November, nineteen hundred and fifty-two:

Provided that this section does not apply to assignations in security.

(3) The principal amount of a payment made by virtue of this section in respect of a claim holding shall be the value of the holding or the amount of the consideration for the assignation whichever is the less.

(4) For the purposes of the last preceding subsection, if the assignations under which the holder, and any of his predecessors in title, became entitled to the holding include two or more assignations to which this section applies, each of those assignations other than the latest of them shall be disregarded.

(5) References in this Act to a payment under Case D are references to a payment by virtue of this section.

9.—(1) The holder of a claim holding shall, subject to the provisions of this Part of this Act, be entitled by virtue of this section to a payment in respect of the holding under Case A, Case B or Case C, notwithstanding that apart from this section he would not be entitled to a payment thereunder, if he derives title to the claim holding from a person who would have been claim-holder.

Payment under Case A, B or C to person deriving title to claim holding from original claim-holder.

PART I
—cont.

entitled to such a payment if that person had continued to be the holder thereof.

(2) A person shall not be entitled to a payment by virtue of this section if he became entitled to the claim holding under an assignation for valuable consideration, other than an assignation in security, or derives title to the holding from a person who so became entitled to it:

Provided that this subsection shall not apply if the assignation in question was made on or after the eighteenth day of November, nineteen hundred and fifty-two, and has been approved by the Central Land Board under subsection (2) of section two of the Act of 1953.

Payments
in cases
analogous to
Case B.

10.—(1) The holder of a claim holding shall, subject to the provisions of this Part of this Act, be entitled by virtue of this section to a payment in respect of that holding if the interest in land to which the claim holding related, or another interest in which that interest had merged, was affected by an act or event such as is mentioned in the next following subsection, and the Central Land Board, or, where the Board's determination is referred to the Lands Tribunal under section thirteen of this Act, that Tribunal, having regard to the circumstances in which the act or event occurred, are satisfied that he would have been entitled to a payment under Case B if the interest so affected (in this section referred to as "the relevant interest") had been compulsorily acquired, or sold, in comparable circumstances.

(2) The said acts and events are—

- (a) the grant of a lease of the land in which the relevant interest subsisted, or of part of that land, by the owner of the relevant interest, or the renewal or continuance of a lease so granted;
- (b) a conveyance of the land in which the relevant interest subsisted, or of part of that land, by the owner of the relevant interest by way of contract of ground annual;
- (c) the compulsory acquisition of land other than the land in which the relevant interest subsisted, or the sale of such land to a public authority possessing compulsory purchase powers, resulting (in either case) in damage sustained in respect of the relevant interest by reason of the severance of the land acquired or sold from the land in which the interest subsisted, or by reason that the relevant interest was injuriously affected, being damage in respect of which compensation fell, or if the sale had been a compulsory acquisition would have fallen, to be assessed in accordance with the provisions of Part IV of the principal Act (which provides for

compensation on the basis of existing use value) as applied by subsection (4) of section one hundred and thirteen of that Act; and

- (d) the occurrence of damage to the land in which the relevant interest subsisted, or of part of the land, where the land was requisitioned land and the damage occurred during the period of requisition, being damage in respect of which compensation fell to be assessed in accordance with section two of the Compensation (Defence) Act, 1939, as modified by section ten of the Requisitioned Land and War Works Act, 1948 (which limits the compensation to an amount calculated on the basis of existing use value).

(3) In determining for the purposes of subsection (1) of this section, whether the holder of the claim holding would have been entitled to a payment under Case B as mentioned in that subsection, the Central Land Board, or, as the case may be, the Lands Tribunal, shall have regard in particular to the time at which the act or event occurred, and to the times specified in subsection (3) of section five of this Act, and—

- (a) in the case of a lease, to the capital value of the consideration for the grant, renewal or continuance thereof;
- (b) in the case of a contract of ground annual, to the capital value of the consideration for the conveyance;
- (c) in the case of a compulsory acquisition falling within paragraph (c) of the last preceding subsection, or in a case falling within paragraph (d) of that subsection, to the compensation paid or payable in respect of the damage referred to in that paragraph;
- (d) in the case of a sale falling within paragraph (c) of the last preceding subsection, to the sale price in so far as it represented compensation in respect of the damage referred to in that paragraph,

and (in each such case) to the extent to which the consideration, compensation or price, as the case may be, failed adequately to reflect the development value of the interest in land to which the claim holding related, as measured by the value of the claim holding.

(4) In the case of the grant, renewal or continuance of a lease, a payment shall not be made by virtue of this section if the Central Land Board, or, as the case may be, the Lands Tribunal, are satisfied, having regard—

- (a) to the duration of the term for which the lease was granted, renewed or continued, and

PART I
—cont.

(b) to any restrictions on development subject to which the lease was granted, renewed or continued,

that the consideration could not reasonably be expected to have been greater if Part VI of the principal Act (which relates to development charges) had not been enacted.

(5) The principal amount of a payment made by virtue of this section shall be such amount as the Board, or, as the case may be, the Lands Tribunal, may determine to be appropriate, having regard to the matters specified in subsection (3) of this section and to the provisions of subsection (4) of section five of this Act.

Residual
payments
in cases
analogous to
Cases A
and B.

11.—(1) A person (in this section referred to as “the applicant”) shall, subject to the provisions of this Part of this Act, be entitled by virtue of this section to a payment in respect of a claim holding of which he is not the holder if—

(a) he is entitled to an interest in land which constitutes the area of the claim holding, or part of that area, or which includes that area or part of that area, and has incurred a development charge in respect of that land, or

(b) the interest in land to which the claim holding related, or another interest in which that interest had merged, was (as respects the whole or part of the area of the claim holding) compulsorily acquired from him by, or sold by him to, a public authority possessing compulsory purchase powers,

and the Central Land Board, or, where the Board’s determination is referred to the Lands Tribunal under section thirteen of this Act, that Tribunal, are satisfied, having regard to the circumstances in which the development charge was incurred, or the interest was acquired or sold, as the case may be, that he would have been entitled to a payment under Case A or Case B if he had been the holder of the claim holding at all material times.

(2) Except in a case falling within subsection (4) of this section, a payment shall not be made by virtue of this section unless it is shown—

(a) in a case falling within paragraph (a) of the preceding subsection, that the interest in land to which the applicant is entitled was purchased by him, or by a person from whom he derived title to the interest, from the person who at the time of the purchase was the holder of the claim holding, or that that interest is the interest of the lessee under a lease granted by the person who at the time of the grant was the holder of the claim holding, or

- (b) in a case falling within paragraph (b) of the preceding subsection, that the interest compulsorily acquired from or sold by the applicant had been purchased by him, or by a person from whom he derived title to the interest, from the person who, at the time of the purchase, was the holder of the claim holding,

and (in either case) the Central Land Board, or, as the case may be, the Lands Tribunal, are satisfied that the consideration for the purchase by, or, as the case may be, the grant of the lease to, the applicant or his predecessor in title did not wholly exclude the development value of the interest in land to which the claim holding related, as measured by the value of the claim holding.

(3) For the purposes of the last preceding subsection, a purchase shall be disregarded if it was a purchase by a public authority possessing compulsory purchase powers.

(4) The case referred to in the exception mentioned in subsection (2) of this section is a case where a person who died on or after the first day of July, nineteen hundred and forty-eight, and before the twenty-sixth day of February, nineteen hundred and fifty-four, was immediately before his death the holder of the claim holding and entitled to the interest in land to which the claim holding related, and by his will disposed of that interest and of the claim holding in such a way that the applicant—

(a) is entitled to that interest, or will (subject to the powers of trustees under the will) be entitled to require that interest to be conveyed to him, but

(b) is not entitled to the claim holding or to any interest in that holding or in the proceeds of sale thereof.

(5) Subject to the next following subsection, the principal amount of a payment made by virtue of this section shall be such amount as the Central Land Board, or, as the case may be, the Lands Tribunal, may determine to be appropriate, having regard to the provisions of this Part of this Act relating to payments under Cases A and B.

(6) Where apart from this subsection a payment would be payable in respect of a claim holding by virtue of this section, and one or more payments in respect of that holding are payable under any of Cases A to D, or under the last preceding section, or the Central Land Board, or, as the case may be, the Lands Tribunal, are satisfied that one or more such payments would be or would have been so payable if applied for, then for the purposes of this section the Board shall subtract from the value of the claim holding the amount or aggregate amount of the payment or payments which are so payable, or which in the opinion of the Board, or, as the case may be, the Lands

PART I
—cont.

Tribunal, would be or would have been so payable, as the case may be, and shall treat that value as reduced, or the claim holding as extinguished, accordingly.

Payments not
to exceed
value of
claim
holdings.

12.—(1) Where two or more payments are (subject to the provisions of this Part of this Act) payable in respect of the same claim holding by virtue of the preceding provisions of this Part of this Act, other than the last preceding section, the authority determining the amount of any such payment shall apportion that amount between the different parts of the area of the claim holding in such manner as appears to that authority proper, and if the aggregate of the portions of the principal amounts of the respective payments so apportioned to any part of the area of the claim holding would, apart from the provisions of this subsection, exceed the fraction of the value of the claim holding attaching to that part of the area thereof, those portions shall be reduced rateably so that the aggregate of them is equal to the said fraction, and the said principal amounts shall be treated as reduced accordingly.

(2) Where two or more payments are (subject as aforesaid) payable in respect of the same claim holding by virtue of the last preceding section, the aggregate of the principal amounts of those payments shall not exceed the value of the claim holding or, where that value is treated as reduced in accordance with subsection (6) of the last preceding section, that value as so reduced.

Applications
for payments
under Part I.

13.—(1) A payment under this Part of this Act shall not be payable unless an application for the payment is made to the Central Land Board in such manner, within such period (not being less than three months from the commencement of this Act), and accompanied by such particulars and verified by such evidence, as may be prescribed by regulations under this section, or as may be required by the Board in accordance with such regulations:

Provided that the Board may in any particular case (either before, on or after the date on which the time for applying would otherwise have expired) allow an extended, or further extended, period for making an application for such a payment.

(2) Provision shall be made by regulations under this section—

- (a) for requiring applications for payments under this Part of this Act to be determined by the Central Land Board in such manner as may be prescribed;
- (b) for regulating the practice and procedure to be followed in connection with the determination of such applications;

- (c) for requiring the Board, on determining any such application, to give notice of their determination to the applicant, and, if their determination includes an apportionment, to give particulars of the apportionment to any other person entitled to an interest in land which it appears to the Board will be substantially affected by the apportionment.

(3) Subject to the next following subsection, provision shall be made by regulations under this section—

- (a) for enabling the applicant, if he wishes to dispute the Board's determination, or any other person to whom particulars of an apportionment have been given in accordance with the last preceding subsection, or who establishes that he is entitled to an interest in land which is substantially affected by any apportionment included in the Board's determination, if he wishes to dispute the apportionment, to refer the dispute to the Lands Tribunal ;
- (b) for enabling the applicant, and, so far as the reference relates to an apportionment, every other such person as aforesaid, to be heard by the Tribunal on any reference under this subsection ; and
- (c) for requiring the Tribunal, on any such reference, either to confirm or to vary the Board's determination or, as the case may be, the apportionment included therein, and to notify the parties of their decision.

(4) Where on a reference to the Lands Tribunal under this section it is shown that an apportionment relates wholly or partly to the same matters as a previous apportionment and is consistent with that previous apportionment in so far as it relates to those matters, the Tribunal shall not vary the apportionment in such a way as to be inconsistent with the previous apportionment in so far as it relates to those matters.

14.—(1) Subject to the provisions of this section, where a person is entitled to a payment in accordance with the preceding provisions of this Part of this Act, the Central Land Board shall pay to that person the principal amount of the payment together with interest thereon at the rate of three and one-half per cent. per annum from the first day of July, nineteen hundred and forty-eight, to the date of payment:

Payments to
be made by
Central Land
Board.

Provided that, if the payment is made after the thirtieth day of June, nineteen hundred and fifty-five, the interest shall be calculated to that day instead of the date of payment.

(2) Where apart from this subsection a person would be entitled to a payment in accordance with the preceding sections

PART I
—cont.

of this Part of this Act, the Central Land Board may set off against the principal amount of that payment—

- (a) any sum which, at the time when apart from this subsection that payment would be due to be made, is owing to the Board by that person in respect of a development charge; and
- (b) any sum which is then due to become payable by that person in the future in respect of a development charge,

or, where the aggregate of any such sums is greater than the principal amount of the payment, a part thereof equal to that principal amount; and the principal amount of the payment to be made to that person shall for the purposes of the preceding subsection be treated as reduced accordingly, or, if the sums or parts of sums set off are equal to the principal amount of the payment which would have been payable apart from this subsection, the right of that person to receive any payment under the preceding subsection shall be extinguished:

Provided that for the purposes of paragraph (a) or (b) of this subsection so much of any such sum therein mentioned as is attributable to interest shall be disregarded.

(3) Where the Board are satisfied that (apart from the last preceding subsection) a person would have been entitled to a payment, in accordance with the preceding sections of this Part of this Act, if he had applied for that payment within the period prescribed under the last preceding section, then, if that person has failed to apply for the payment within that period, or within any extended period allowed under the last preceding section, the Board may determine the principal amount of the payment to which he would have been so entitled, and the last preceding subsection shall apply as if he had become so entitled to the payment and the principal amount thereof had been the principal amount determined under this subsection.

Effect of
payments on
claim holdings.

15.—(1) Subject to the provisions of this section, where in accordance with the provisions of this Part of this Act a payment becomes payable in respect of a claim holding, then, for the purposes of the following Parts of this Act—

- (a) if the principal amount of the payment is not less than the value of the claim holding, the holding shall be deemed to have been extinguished immediately before the commencement of this Act;
- (b) if the principal amount of the payment is less than the value of the claim holding, the value of the holding shall be deemed to have been reduced, immediately before the commencement of this Act, by the principal amount of the payment:

Provided that if in the case of any claim holding a payment becomes payable under Case D, then, regardless of the amount of that payment, that holding shall for the purposes of the following Parts of this Act be deemed to have been extinguished immediately before the commencement of this Act.

PART I
—cont.

(2) The preceding subsection shall apply where two or more payments under this Part of this Act are payable in respect of the same claim holding, with the substitution, for references to the principal amount of the payment, of references to the aggregate of the principal amounts of the payments.

(3) Where one or more acts or events have occurred whereby in accordance with the provisions of this Part of this Act one or more payments become payable in respect of a claim holding (in this section referred to as "the parent holding") and any such act or event did not extend to the whole of the area of the parent holding, then, both for the purposes of the preceding provisions of this section and for the purposes of the following Parts of this Act—

- (a) the parent holding shall be treated as having been divided immediately before the commencement of this Act into as many separate claim holdings, with such areas, as may be necessary to ensure that, in the case of each holding, either any such act or event as afore-said extending to the area of that holding extended to the whole thereof, or no such act or event extended to the area of that holding ;
 - (b) the value of each of the separate holdings respectively shall be taken to be that fraction of the value of the parent holding which then attached to the part of the area of the parent holding constituting the area of the separate holding ;
 - (c) the authority determining the amount of any such payment shall apportion that amount between the areas of the separate claim holdings to which the act or event in question extended in such manner as may appear to that authority proper, and the portion of that amount apportioned to the area of any separate claim holding shall be taken to be a payment payable under this Part of this Act in respect of that claim holding.
- (4) For the purposes of this section—
- (a) a payment shall be treated as having become payable notwithstanding that the right to receive the payment has been extinguished by subsection (2) of the last preceding section ;
 - (b) any reduction of the principal amount of a payment by virtue of that subsection shall be disregarded ;

PART I
—*cont.*

- (c) where in accordance with subsection (3) of the last preceding section the Central Land Board have determined the principal amount of a payment, as being a payment to which a person would have been entitled as mentioned in that subsection, that payment shall be treated as if it had become payable and as if the principal amount thereof had been the principal amount so determined.

PART II**COMPENSATION FOR REFUSAL, OR CONDITIONAL GRANT, OF
PLANNING PERMISSION.****Scope of
Part II.**

16.—(1) The provisions of this Part of this Act shall have effect for enabling compensation to be claimed in respect of planning decisions made after the commencement of this Act, whereby planning permission for the carrying out of new development of land to which this section applies is refused, or is granted subject to conditions.

(2) This section applies to any land in respect of which planning permission is refused, or is granted subject to conditions, by a planning decision, if, at the time of the planning decision, that land, or part of that land, has an unexpended balance of established development value.

(3) Where, on an application for planning permission for the carrying out of new development of land to which this section applies, a planning decision is made after the commencement of this Act whereby that permission is granted (whether unconditionally or not), and the Secretary of State certifies that he is satisfied that particular buildings or works to which the application related were only included therein because the applicant had reason to believe that permission for the other development to which the application related would not have been granted except subject to a condition requiring the erection or construction of those buildings or works, then, for the purposes of this Part of this Act—

- (a) the application shall be deemed to have included, in place of those buildings or works, such other development of the land on which the buildings or works were to be erected or constructed as might reasonably have been expected to have been included having regard to the other development to which the application related ; and
- (b) the permission shall be deemed to have been granted for the other development to which the application related subject to the condition aforesaid.

PART II
—cont.

(4) In this Act the expression "planning decision" means a decision made on an application for planning permission under Part II of the principal Act (which relates amongst other things to permission to develop land), and includes any decision deemed to have been so made by virtue of section seventy-four of the principal Act (which relates to development authorised under interim development orders before the commencement of that Act) or of section seventy-five of that Act (which relates to unfinished buildings), or by virtue of any of paragraphs 1, 2 and 3 of the Tenth Schedule to that Act (which relate to certain applications made under the Town and Country Planning (Scotland) Act, 1932), or by virtue of any regulations made under paragraph 13 of the said Schedule (which relates to certain applications under the Restriction of Ribbon Development Act, 1935); and, where as a consequence of any such decision a purchase notice has been served on the local planning authority under section seventeen of the principal Act, includes a planning permission granted, or a planning permission as varied, by the Secretary of State under that section on his consideration of that notice.

(5) In this Act the expression "new development" means any development other than development of a class specified in the Third Schedule to the principal Act (which relates to development included in the existing use of land).

17.—(1) For the purposes of this Act land shall be taken to have an unexpended balance of established development value immediately after the commencement of this Act if there are then subsisting one or more claim holdings whose area consists of that land, or includes that land together with other land, and there is not then subsisting any claim holding whose area consists of part only of that land, whether with or without other land.

Unexpended
balance of
established
development
value.

(2) Where subsection (1) of this section applies, there shall be attributed to the land referred to in that subsection—

- (a) the value of any claim holding having an area consisting of that land; and
- (b) such fraction of the value of any claim holding whose area includes that land as attaches to that land;

and the unexpended balance of established development value of that land immediately after the commencement of this Act (hereafter in this Act referred to in relation to that land as its "original unexpended balance of established development value") shall be taken to have been an amount equal to eight-sevenths of the amount or aggregate amount so attributed.

18.—(1) Where in accordance with the last preceding section land has an original unexpended balance of established development value, then, subject to the next following subsection, the

Reduction or
extinguishment
of balance.

PART II
—cont.

land shall be taken to have that balance at any time after the commencement of this Act except in so far as that balance is by virtue of any provision of this Act to be treated as having been reduced or extinguished immediately before that time.

(2) Where any land taken as a whole has an original unexpended balance of established development value, but, at any time after the commencement of this Act, an act is done or an event occurs in relation to any area consisting of, or including, part only of that land in consequence of which, by virtue of any provision of this Act, an amount would fall to be deducted from the original unexpended balance of that part of that land for the purpose of determining the unexpended balance thereof at any subsequent time, then, without prejudice to the operation of the preceding subsection with respect to any part of the land taken separately, the land taken as a whole shall be treated as not having any such balance at that subsequent time.

(3) Where compensation under this Part of this Act becomes payable in respect of the depreciation of the value of an interest in land by a planning decision, then, for the purpose of determining whether that land or any part thereof has an unexpended balance of established development value at any subsequent time, the amount of the compensation shall be deducted from the original unexpended balance of established development value of that land and the original balance of that land or that part thereof shall be treated as having been reduced or extinguished accordingly immediately before that subsequent time.

(4) Where any new development of land is initiated after the commencement of this Act, or was initiated before the commencement of this Act but on or after the first day of July, nineteen hundred and forty-eight, being land which has an original unexpended balance of established development value, then, for the purpose of determining whether that land or any part thereof has an unexpended balance of established development value at any subsequent time—

- (a) if the development related only to that land, the value of that development (ascertained, with reference to that subsequent time, in accordance with the provisions of the Fourth Schedule to this Act), or
- (b) if the development related to that land together with other land, so much of the value of that development (so ascertained) as was attributable to that land,

shall be deducted from the original unexpended balance of established development value of that land and the original balance of that land or that part thereof shall be treated as having been reduced or extinguished accordingly immediately before that subsequent time:

Provided that this subsection shall not apply to any land in respect of any interest in which a payment under section fifty-six of the principal Act has become or becomes payable; and for the purposes of this subsection development initiated before the commencement of this Act shall be disregarded if a development charge was determined to be payable in respect thereof, or would have fallen to be so determined but for any exemption conferred by regulations under Part VI of the principal Act, or by any provisions of Part VII of that Act.

PART II
—cont.

(5) Where an act or event has occurred in relation to any land in consequence of which any of the provisions of this Act requires an amount to be deducted from the original unexpended balance of established development value of that land or any part thereof, there shall be attributed to the various parts of that land so much of that amount as might reasonably be expected to have been attributed thereto if the authority determining the amount had been required to apportion it between those parts in accordance with the same principles as applied to its determination; and where two or more such acts or events have occurred in relation to the same land, those provisions shall apply cumulatively, and the requisite deduction from the original unexpended balance of established development value of that land shall be made by reference to each of those acts or events.

19.—(1) Subject to the provisions of this Act, a person shall be entitled to compensation under this Part of this Act in respect of a planning decision such as is mentioned in subsection (1) of section sixteen of this Act if at the time of that decision he is entitled to an interest in any land to which the decision relates which has an unexpended balance of established development value, and the value of that interest, or, in the case of an interest extending to other land, the value of that interest in so far as it subsists in that land, is depreciated by the decision.

Right to
compensation
in respect of
planning
decisions.

(2) Where an interest in land has (whether before or after the commencement of this Act) been compulsorily acquired by, or sold to, a public authority possessing compulsory purchase powers, not being statutory undertakers or the National Coal Board, that authority, and any person deriving title from that authority under a conveyance made by that authority on, or at any time after, the first day of July, nineteen hundred and forty-eight, shall not be entitled to compensation under this Part of this Act in respect of a planning decision made after the service of the notice to treat, or after the making of the contract of sale, as the case may be, by reason that the value of that interest, or of any interest created (whether directly or indirectly) out of that interest, is depreciated by that decision.

(3) The last preceding subsection shall apply to land which has at any time on or after the first day of July, nineteen hundred

PART II
—cont.

and forty-eight (whether before or after the commencement of this Act), been appropriated by a local authority for a purpose for which the authority could have been authorised to acquire the land compulsorily, as it applies to land in which an interest has been acquired as mentioned in that subsection, with the substitution, for the reference to the service of the notice to treat, of a reference to the appropriation.

(4) Where any land is at the date of commencement of this Act, or at any date thereafter becomes, operational land of any statutory undertakers or land of the National Coal Board of a class specified in regulations made under section eighty-six of the principal Act, the statutory undertakers or, as the case may be, the National Coal Board, and any person deriving title from those undertakers or that Board, shall not be entitled to compensation under this Part of this Act in respect of a planning decision made after the relevant date aforesaid by reason that the value of any interest in that land is depreciated by that decision.

(5) A person shall not be entitled to compensation under this Part of this Act in respect of depreciation of the value of an interest in land by a planning decision, if he is entitled to compensation under subsection (3) of section twenty of the principal Act (which relates to planning decisions following upon the withdrawal of permission granted by a development order) in respect of depreciation of the value of that interest by that decision.

(6) A creditor in a heritable security shall not be entitled to compensation under this Part of this Act in respect of his interest as creditor:

Provided that this subsection shall be without prejudice to the operation of any regulations made under section sixty-six of this Act.

Compensation
excluded in
respect of
certain matters.

20.—(1) Compensation under this Part of this Act shall not be payable in respect of the refusal of planning permission for any development which consists of or includes the making of any material change in the use of any buildings or other land, or in respect of any decision made on an application in pursuance of regulations under section twenty-nine of the principal Act for consent to the display of advertisements.

(2) Compensation under this Part of this Act shall not be payable in respect of the imposition, on the granting of planning permission, of any condition relating to—

- (a) the number or disposition of buildings on any land ;
- (b) the dimensions, design, structure or external appearance of any building, or the materials to be used in its construction ;

PART II
—cont.

- (c) the manner in which any land is to be laid out for the purposes of the development, including the provision of facilities for the parking, loading, unloading or fuelling of vehicles on the land ;
- (d) the use of any buildings or other land ; or
- (e) the location or design of any means of access to a highway, or the materials to be used in the construction thereof,

or in respect of any condition subject to which planning permission is granted for the winning and working of minerals.

(3) Compensation under this Part of this Act shall not be payable in respect of the refusal of planning permission, if the reason or one of the reasons stated for the refusal is that development of the kind proposed would be premature by reference to either or both of the following matters, that is to say—

- (a) the stages indicated, in the development plan for the area in which the land is situated, as the stages by which development is to be carried out ;
- (b) any existing deficiency in the provision of water supplies or sewerage services, and the period within which any such deficiency may reasonably be expected to be made good :

Provided that this subsection shall not apply if the planning decision refusing the permission is made on an application made more than seven years after the date of a previous planning decision whereby planning permission in respect of the same land was refused for the same reason, or for reasons which included the same reason.

(4) Compensation under this Part of this Act shall not be payable in respect of the refusal of planning permission in respect of any land, if the reason or one of the reasons stated for the refusal is that the land is unsuitable for the proposed development on account of its liability to flooding or to subsidence.

(5) In subsection (3) of this section, the reference to the development plan for the area in which the land is situated is a reference to the development plan for that area as approved by the Secretary of State, or, if the plan so approved has been amended by the Secretary of State, to that plan as so amended.

(6) For the purposes of this section a planning decision, whereby planning permission in respect of any land is granted subject to a condition prohibiting development of a specified part of that land, shall be treated as a decision refusing the permission as respects that part of the land.

(7) In this section the expression “ means of access to a highway ” does not include a service road.

PART II
—cont.

Compensation
excluded if
certain other
development
permitted.

21.—(1) Compensation under this Part of this Act shall not be payable in respect of a planning decision whereby planning permission is refused for the development of land, if, notwithstanding that refusal, there is available with respect to that land planning permission for development to which this section applies:

Provided that where such permission is available with respect to part only of the land, this section shall have effect only in so far as the interest subsists in that part.

(2) Where a claim for compensation under this Part of this Act is made in respect of an interest in any land, planning permission for development to which this section applies shall be taken for the purposes of this section to be available with respect to that land or a part thereof if, immediately before the Secretary of State gives notice of his determination in respect of that claim, there is in force with respect to that land or part a grant of, or an undertaking by the Secretary of State to grant, planning permission for some such development, subject to no conditions other than such as are mentioned in subsection (2) of the last preceding section.

(3) This section applies to any development of a residential, commercial or industrial character, being development which consists wholly or mainly of the construction of houses, flats, shop or office premises, or industrial buildings (including warehouses), or any combination thereof.

General
provisions as
to claims for
compensation.

22.—(1) Compensation under this Part of this Act shall not be payable unless a claim for it is duly made to the Secretary of State in accordance with the provisions of this section.

(2) A claim for compensation under this Part of this Act shall not have effect unless it is made before the end of the period of six months beginning with the date of the planning decision to which it relates:

Provided that the Secretary of State may in any particular case (either before, on or after the date on which the time for claiming would otherwise have expired) allow an extended, or further extended, period for making such a claim.

(3) Regulations made under this section may—

- (a) require claims for compensation under this Part of this Act to be made in such manner as may be prescribed;
- (b) require a claimant to provide such evidence in support of the claim, and such information as to the interest of the claimant in the land to which the claim relates, and as to the interests of other persons therein which are known to the claimant, as may be so prescribed;
- (c) require the local planning authority to furnish the Secretary of State with such information (if any) as may be specified in, or in accordance with, the regulations,

being information appearing to the Secretary of State to be relevant to the exercise of his powers under the next following section.

PART II
—cont.

(4) If it appears to the Secretary of State that the development to which the planning decision related was not new development, or that at the time of the planning decision no part of the land to which the claim relates had an unexpended balance of established development value, or that compensation is excluded by section twenty or twenty-one of this Act, the Secretary of State shall notify the claimant accordingly, stating on which of those grounds it appears to him that compensation is not payable.

(5) Where a claim under this section is received by the Secretary of State and is not withdrawn, the Secretary of State shall give notice of the claim to every other person (if any) appearing to him to have an interest in the land to which the planning decision related.

23.—(1) The provisions of this and the next following section shall have effect where, in accordance with the last preceding section, one or more claims for compensation in respect of a planning decision has been received by the Secretary of State, and the claim, or (if there is more than one) one or more of the claims, has not been withdrawn. Review of
planning
decisions where
compensation
claimed.

(2) If, in the case of a planning decision of the local planning authority, it appears to the Secretary of State that, if the application for planning permission in respect of the land in question had been referred to him for determination, he would have made a decision more favourable to the applicant, the Secretary of State may give a direction substituting that decision for the decision of the local planning authority.

(3) If, in any case, it appears to the Secretary of State that permission could properly be granted (either unconditionally or subject to certain conditions) for some development of the land in question, other than the development to which the application for permission related, the Secretary of State may give a direction that the provisions of the principal Act, and of this Act, shall have effect in relation to that application and to the planning decision—

(a) as if the application had included an application for permission for that other development, and the decision had included the grant of permission (unconditionally or subject to the said conditions, as the case may be) for that development, or

(b) as if the decision had been a decision of the Secretary of State and had included an undertaking to grant permission (unconditionally or subject to the said conditions, as the case may be) for that development,

as may be specified in the direction.

PART II
—cont.

(4) The reference in subsection (2) of this section to a decision more favourable to the applicant shall be construed—

- (a) in relation to a refusal of planning permission, as a reference to a decision granting the permission, either unconditionally or subject to conditions, and either as respects the whole or as respects part of the land to which the application for permission related, and
- (b) in relation to a grant of planning permission subject to conditions, as a reference to a decision granting the permission applied for unconditionally or subject to less stringent conditions.

(5) In giving any direction under this section, the Secretary of State shall have regard—

- (a) to the provisions of the development plan for the area in which the land in question is situated, or
- (b) where a development plan has not by that time become operative with respect to that area, to any direction which he may have given to the local planning authority as to the provisions to be included in such a plan and to any other provisions which in his opinion will be required to be so included for securing the proper planning of that area,

so far as those provisions are material to the development of that land, and shall also have regard to the local circumstances affecting the proposed development, including the use which prevails generally in the case of contiguous or adjacent land, and to any other material considerations.

Supplementary
provisions as
to review of
planning
decisions.

24.—(1) Before giving a direction under the last preceding section, the Secretary of State shall give notice in writing of his proposed direction to the local planning authority to whose decision that direction relates and to any person who made, and has not since withdrawn, a claim in respect of that decision, and, if so required by that authority or by any such person, shall afford to each of them an opportunity to appear before, and be heard by, a person appointed by the Secretary of State for the purpose.

(2) Where the Secretary of State gives a direction under the last preceding section, he shall give notice of the direction to the local planning authority to whose decision the direction relates, and to every other person (if any), who made, and has not since withdrawn, a claim in respect of that decision; and, where a notice under this subsection is given to a person who made such a claim, that person, if he does not withdraw the claim, may, at any time within thirty days after the service on him of the notice under this subsection, give notice to the Secretary of State modifying the claim.

(3) Subject to any modification by virtue of a notice given by a claimant under the last preceding subsection, where the Secretary of State gives a direction under the last preceding section in respect of a decision of a local planning authority, any claim made in respect of that decision shall have effect as if it had been made in respect of the decision which by virtue of the direction is substituted for the decision of the authority, or, as the case may be, as if it had been made in respect of the decision of the authority as modified by the direction.

PART II
—cont.

25.—(1) Subject to the next following subsection, where a person is entitled to compensation under this Part of this Act in respect of the depreciation by a planning decision of the value of an interest in land to which the planning decision relates which at the time of that decision has an unexpended balance of established development value (in this section referred to as “qualified land”), the amount of the compensation shall be whichever is the less of the following amounts, that is to say—

General
provisions as
to amount of
compensation.

- (a) the amount by which the value of the interest, or, in the case of an interest extending to other land, the amount by which the value of the interest in so far as it subsists in qualified land, is depreciated by the decision; or
- (b) the amount of the unexpended balance of established development value immediately before the decision of the qualified land in which the interest subsists:

Provided that if compensation is payable under this Part of this Act in respect of two or more interests in the same qualified land by reason of the same planning decision and the aggregate amount of compensation payable apart from this proviso in respect of those interests exceeds the amount mentioned in paragraph (b) of this subsection, the amount so mentioned shall be allocated between those interests in proportion to the depreciation of the value of each of them respectively, and the amount of the compensation payable in respect of any of those interests shall be the sum so allocated to that interest.

(2) Where the land to which the planning decision relates, taken as a whole, does not satisfy the following conditions, that is to say—

- (a) that the land is qualified land; and
- (b) that every interest subsisting therein the value of which is depreciated by the decision subsists in the whole thereof,

then, for the purposes of assessing the compensation payable under this Part of this Act in respect of any interest subsisting in that land or any part thereof—

- (i) the depreciation of the value of the interest by the planning decision shall first be ascertained with reference

PART II
—cont.

to the whole of the land to which the planning decision relates and in which that interest subsists ;

- (ii) the land to which the planning decision relates and in which that interest subsists shall then be treated as divided into as many parts as may be requisite to ensure that each such part consists of land which either satisfies the conditions aforesaid or is not qualified land ; and
- (iii) the depreciation of the value of the interest ascertained as aforesaid shall then be apportioned between the said parts according to the nature of those parts and the effect of the planning decision in relation to each of them,

and the amount of the compensation shall be the aggregate of the amounts which would be payable by virtue of the preceding subsection if the planning decision had been made separately with respect to each such part.

Measure of
depreciation
for assessing
compensation.

26.—(1) Any question whether, or to what extent, the value of an interest in land, or of an interest in so far as it subsists in particular land, is depreciated by a planning decision shall, for the purposes of this Part of this Act, be determined in accordance with the provisions of this section ; and in those provisions references to the relevant decision are references to the planning decision in relation to which the question arises.

(2) Subject to the next following subsection, the value in question shall be taken to be depreciated if, and to the extent to which, that value, calculated—

- (a) as at the time of the relevant decision, but
- (b) as affected by that decision, by any grant of planning permission made after that decision and in force immediately before the Secretary of State gives notice of his determination of the claim for compensation in respect of that decision, and by any undertaking to grant planning permission so in force, and
- (c) on the assumption that, after the relevant decision and apart from any such permission or undertaking as aforesaid, planning permission would be granted for development of any class specified in the Third Schedule to the principal Act but not for any other development,

falls short of what that value, calculated as aforesaid, would have been if the relevant decision had been a decision to the contrary effect.

(3) If compensation under this Part or Part V of this Act, or compensation for depreciation within the meaning of subsection (3) of section forty of this Act, has become, or becomes,

payable in respect of another planning decision or in respect of an order to which the said section forty applies, being a planning decision or order made before the relevant decision in respect of, or of land which includes, the whole or part of the land to which the relevant decision relates, the calculation called for by the last preceding subsection shall be made on the assumption that that other planning decision was a decision to the contrary effect or, as the case may be, that that order was not made.

PART II
—cont.

(4) In this section the expression “a decision to the contrary effect”—

- (a) in relation to a decision refusing planning permission, means a decision granting the permission subject to such conditions (if any) of a description falling within subsection (2) of section twenty of this Act as the authority making the decision might reasonably have been expected to impose if the permission had not been refused;
- (b) in relation to a decision granting planning permission subject to conditions, means a decision granting the permission applied for subject only to such of those conditions (if any) as fell within subsection (2) of the said section twenty.

27.—(1) Provision shall be made by regulations under this section—

Determination
of claims for
compensation

- (a) for requiring claims for compensation under this Part of this Act to be determined by the Secretary of State in such manner as may be prescribed by the regulations;
- (b) for regulating the practice and procedure to be followed in connection with the determination of such claims;
- (c) for requiring the Secretary of State, on determining any such claim, to give notice of his determination to the claimant and to every other person (if any) who has made, and not withdrawn, a claim for compensation under this Part of this Act in respect of the same planning decision, and, if his determination includes an apportionment, to give particulars of the apportionment to any other person entitled to an interest in land which it appears to the Secretary of State is substantially affected by the apportionment.

(2) Subject to the next following subsection, provision shall be made by regulations under this section—

- (a) for enabling the claimant or any other person to whom notice of the Secretary of State's determination has been given in accordance with the preceding subsection, if he wishes to dispute the determination, and

PART II
—cont.

any other person to whom particulars of an apportionment included in that determination have been so given or who establishes that he is entitled to an interest in land which is substantially affected by such an apportionment, if he wishes to dispute the apportionment, to refer the dispute to the Lands Tribunal ;

- (b) for enabling the claimant, and every other person such as is respectively specified in the preceding paragraph, to be heard by the Tribunal on any reference under this subsection ; and
- (c) for requiring the Tribunal, on any such reference, either to confirm or to vary the Secretary of State's determination, or, as the case may be, the apportionment, and to notify the parties of their decision.

(3) Where on a reference to the Lands Tribunal under this section it is shown that an apportionment relates wholly or partly to the same matters as a previous apportionment, and is consistent with that previous apportionment in so far as it relates to those matters, the Tribunal shall not vary the apportionment in such a way as to be inconsistent with the previous apportionment in so far as it relates to those matters.

(4) Where compensation is determined (whether by the Secretary of State or by the Lands Tribunal on a reference to them) under this section to be payable, the Secretary of State shall pay the compensation to the person entitled thereto in accordance with the preceding provisions of this Part of this Act.

Apportionment of
compensation.

28.—(1) Where, on a claim for compensation under this Part of this Act in respect of a planning decision, the Secretary of State determines that compensation is payable and that the amount of the compensation exceeds twenty pounds, the Secretary of State shall (if it appears to him to be practicable to do so) apportion the amount of the compensation between different parts of the land to which the claim for compensation relates, and shall include particulars of the apportionment in the notice of his determination under the last preceding section.

(2) In carrying out an apportionment under the preceding subsection the Secretary of State shall divide the land into parts, and shall distribute the compensation between those parts according to the way in which different parts of the land appear to him to be differently affected by the planning decision.

(3) On a reference to the Lands Tribunal under the last preceding section, unless the decision of the Tribunal will not affect the amount of the compensation or any apportionment thereof by the Secretary of State, the preceding provisions of this section shall apply with the substitution, for references to the Secretary of State, of references to the Lands Tribunal.

29.—(1) Where, on a claim for compensation under this Part of this Act in respect of a planning decision, compensation has become payable of an amount exceeding twenty pounds, the Secretary of State shall cause notice of that fact, specifying the planning decision and the land to which the claim for compensation relates, and the amount of the compensation and any apportionment thereof under the last preceding section and referring to the provisions of the next following section, to be recorded in the appropriate Register of Sasines, and shall send a copy of the notice to the local planning authority.

PART II
—cont.

Recording of
notices relating
to
compensation.

(2) In relation to compensation specified in a notice recorded under this section, references in this Part of this Act to so much of the compensation as is attributable to a part of the land to which the notice relates shall be construed in accordance with the following provisions, that is to say—

- (a) if the notice does not include an apportionment under the preceding provisions of this section, the amount of the compensation shall be treated as distributed rateably according to area over the land to which the notice relates ;
- (b) if the notice includes such an apportionment, the compensation shall be treated as distributed in accordance with that apportionment as between the different parts of the land by reference to which the apportionment is made ; and so much of the compensation as, in accordance with the apportionment, is attributed to a part of the land shall be treated as distributed rateably according to area over that part of the land.

30.—(1) No person shall initiate any new development to which this section applies of land in respect of which a notice (in this section referred to as a “compensation notice”) is recorded under the last preceding section, until such amount (if any) as is recoverable under this section in respect of the compensation specified in the notice has been paid or secured to the satisfaction of the Secretary of State.

Recovery of
compensation
on subsequent
development.

(2) This section applies to any new development—

- (a) to which section twenty-one of this Act applies ; or
- (b) which consists in the winning and working of minerals ;
or
- (c) to which, having regard to the probable value of the development, it is in the opinion of the Secretary of State reasonable that this section should apply :

Provided that—

- (i) this section shall not apply to any development by virtue of paragraph (c) of this subsection if, on an application made to him for the purpose, the Secretary of State

PART II
—cont.

has certified that, having regard to the probable value of the development, it is not in his opinion reasonable that this section should apply thereto; and

- (ii) in a case where the compensation specified in the notice became payable in respect of the imposition of conditions on the granting of permission to develop land, this section shall not apply to the development for which that permission was granted.

(3) Subject to the three next following subsections, the amount recoverable under this section in respect of the compensation specified in a compensation notice—

- (a) if the land on which the development is to be carried out (in this subsection referred to as “the development area”) is identical with, or includes (with other land) the whole of, the land comprised in the compensation notice, shall be the amount of compensation specified in that notice;
- (b) if the development area forms part of the land comprised in the compensation notice, or includes part of that land together with other land not comprised in that notice, shall be so much of the amount of compensation specified in that notice as is attributable to land comprised in that notice and falling within the development area.

(4) Where, in the case of any land in respect of which a compensation notice has been recorded, the Secretary of State is satisfied that, having regard to the probable value of any proper development of that land, no such development is likely to be carried out unless he exercises his powers under this subsection, he may, in the case of any particular development for which planning permission has been granted, remit the whole or part of any amount otherwise recoverable under this section.

(5) Where, in connection with the development of any land, an amount becomes recoverable under this section in respect of the compensation specified in a compensation notice, then, except where, and to the extent that, payment of that amount has been remitted under the last preceding subsection, no amount shall be recoverable under this section in respect of that compensation, in so far as it is attributable to that land, in connection with any subsequent development thereof.

(6) No amount shall be recoverable under this section in respect of any compensation by reference to which a sum has become recoverable by the Secretary of State under subsection (6) of section fifty-four of this Act or under that subsection as applied by regulations made under subsection (8) of that section.

(7) An amount recoverable under this section in respect of any compensation shall be payable to the Secretary of State, and—

- (a) shall be so payable either as a single capital payment or as a series of instalments of capital and interest combined, or as a series of other annual or periodical payments, of such amounts, and payable at such times, as the Secretary of State may direct, after taking into account any representations made by the person by whom the development is to be carried out, and
- (b) to the extent that it is not directed to be paid as a single capital payment which is then discharged, shall be secured by that person to the satisfaction of the Secretary of State (whether by heritable or other security, personal bond or otherwise).

(8) If any person initiates any new development to which this section applies in contravention of subsection (1) of this section, the Secretary of State may serve a notice upon him, specifying the amount appearing to the Secretary of State to be the amount recoverable under this section in respect of the compensation in question, and requiring him to pay that amount to the Secretary of State within such period, not being less than three months after the service of the notice, as may be specified in the notice.

(9) Where, after a compensation notice in respect of any land has been recorded, any amount recoverable under this section in respect of the compensation specified in the notice, or any part of such amount, has been paid to the Secretary of State, or circumstances arise under which by virtue of any provision of this Act no amount is so recoverable in respect of the land specified in the notice or any part of that land, the Secretary of State shall cause to be recorded in the appropriate Register of Sasines a notice of that fact, specifying the land to which such fact relates, and, in the case of any notice of the fact that part only of any such amount has been so paid, stating whether the balance has been secured to the satisfaction of the Secretary of State or has been remitted by him under subsection (4) of this section, and shall send a copy thereof to the local planning authority.

(10) Where an amount becomes recoverable under this section in respect of the compensation specified in a compensation notice, then for the purpose of determining any question as to the unexpended balance of established development value of any land at any subsequent time, except where, and to the extent that, payment of that amount has been remitted under subsection (4) of this section, so much (if any) of that compensation as is attributable to that land shall be treated as not having become payable and accordingly (notwithstanding anything contained in subsection (3) of section eighteen of this Act) shall not be deducted from that balance.

PART III

COMPENSATION FOR COMPULSORY ACQUISITION OF LAND

Application of
Part III.

31.—(1) This Part of this Act applies to every compulsory acquisition of an interest in land, in pursuance of a notice to treat served after the commencement of this Act, by a government department or a local or public authority within the meaning of the Acquisition of Land (Assessment of Compensation) Act, 1919, or by a person or body of persons to whom the said Act of 1919 applies as it applies to such a department or authority.

(2) In this Part of this Act, in relation to a compulsory acquisition, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

- “the relevant interest” means the interest acquired;
- “the relevant land” means the land in which the relevant interest subsists;
- “the notice to treat” means the notice to treat in pursuance of which the relevant interest is acquired;
- “excepted interest” means any interest in the relevant land—
 - (a) which could not be the subject of a compulsory acquisition, or
 - (b) which is the interest of any such person as is mentioned in section one hundred and fourteen of the Lands Clauses Consolidation (Scotland) Act, 1845 (which relates to persons having no greater interest than as a tenant for a year or from year to year).

Compensation
to include
unexpended
balance of
established
development
value.

32.—(1) Where, in the case of a compulsory acquisition to which this Part of this Act applies, compensation on the basis of existing use is payable in respect of the acquisition of the relevant interest, and any of the relevant land has an unexpended balance of established development value at the time immediately before the service of the notice to treat, then, subject to section thirty-four of this Act, there shall be added to the compensation payable in respect of the acquisition of the relevant interest apart from the provisions of this section—

- (a) where the relevant interest is the only interest (other than excepted interests) subsisting at that time in any of the relevant land which has such a balance—
 - (i) if the restricted value of the relevant interest is a minus quantity, an amount equal to so much, if any, of that balance at that time as remains after the deduction therefrom of an amount equal to the minus quantity; or

(ii) in any other case, an amount equal to that balance at that time ;

PART III
—cont.

or

- (b) where the relevant interest is one of two or more interests (other than excepted interests) so subsisting, an amount equal to so much of that balance at that time as is ascertained in accordance with the provisions of the Fifth Schedule to this Act to be attributable to the relevant interest :

Provided that, in a case where the relevant interest is the interest of the lessee under a lease, no payment shall be made by virtue of this section if the person entitled to the relevant interest is, at the time immediately before the service of the notice to treat, prohibited by the terms of his lease from carrying out any new development of the relevant land.

(2) Regulations made under this section shall provide for requiring persons entitled to interests in the relevant land, other than the relevant interest and any excepted interest, to be notified, in cases where it is proposed, by virtue of this section, to pay compensation in excess of compensation on the basis of existing use, and for enabling such persons, in case of dispute as to the application of this section, to refer the dispute to the Lands Tribunal.

(3) References in this section to the restricted value of an interest in land, in relation to an acquisition of that interest, are references to the amount which, for the purposes of Part V of the principal Act, would have been taken to be the restricted value of that interest on the appointed day if—

- (a) the date of the service of the notice to treat had been appointed as the appointed day for the purposes of the said Part V ;
- (b) references to the seventh day of January, nineteen hundred and forty-seven, in subsection (5) of section fifty-eight of the principal Act (which requires values to be calculated by reference to prices current immediately before that day) were references to the date of the acquisition ; and
- (c) references in the said section fifty-eight to the Third Schedule to the principal Act were references to that Schedule as amended by this Act.

33.—(1) The provisions of this section shall have effect as respects a compulsory acquisition to which this Part of this Act applies, where compensation on the basis of existing use is payable in respect of the acquisition of the relevant interest and, on or after the first day of July, nineteen hundred and forty-eight, but before the date of service of the notice to treat, buildings or works have been erected or constructed in accordance with planning permission, either on the relevant land, or

Additional
compensation
for
works.

PART III
—cont.

on other land, or partly in the one way and partly in the other, at the expense of a person who, at a time when the buildings or works were erected or constructed, was entitled to an interest in the relevant land or some part thereof:

Provided that this section shall not apply—

- (a) if the operation of subsection (4) of section forty-eight of the principal Act (which provides, with certain exceptions, for disregarding planning permission granted before the date of the notice to treat) is excluded in respect of that permission by virtue of the exception contained in paragraph (a) of that subsection or by virtue of any provision of this Act; or
- (b) if the compensation on the basis of existing use payable in respect of the acquisition would be the same whether or not the said subsection (4) operated;

and where, if the notice to treat had extended to a part only of the relevant land, the amount of the compensation on the basis of existing use payable in respect of the relevant interest in so far as it subsisted in that part would have been the same whether or not the said subsection (4) operated, this section shall have effect as respects the acquisition of the relevant interest as if the notice to treat had extended only to the remainder of the relevant land.

(2) If the value of the relevant interest immediately before the service of the notice to treat, with the benefit of any planning permission having effect at that time, is greater than it would have been at that time with the benefit of such permission if the buildings or works had not been erected or constructed, there shall be added to the compensation payable in respect of the acquisition of the relevant interest apart from the provisions of this section a sum equal to the amount of the difference.

(3) Where the last preceding subsection applies, then, in calculating the compensation on the basis of existing use which is payable in respect of the acquisition, it shall be ascertained whether that compensation is less than it would have been, or greater than it would have been, if the buildings or works had not been erected or constructed, and, if so,—

- (a) the amount of the deficiency, or of the excess, as the case may be, shall be computed, and
- (b) the sum referred to in the last preceding subsection shall be increased by the amount of the deficiency, or reduced by the amount of the excess, as the case may be.

Protection for
purchaser
of interest
subsequently
acquired
compulsorily.

34.—(1) It shall be the duty of a local planning authority, on application made to them in writing by any person with respect to particular land in their district, to serve on the applicant a notice stating whether or not the authority propose to acquire within the next five years (whether compulsorily or

otherwise) any interest in that land or in any part thereof, or have been notified by any public authority possessing compulsory purchase powers of a proposal of that authority so to acquire any such interest, specifying in the notice—

PART III
—cont.

- (a) any such public authority by whom the local planning authority have been so notified ; and
- (b) any part of that land to which any such proposal of the local planning authority or other authority does not extend.

(2) If—

- (a) a local planning authority have, in accordance with the preceding subsection, given notice to a person that they do not propose, and have not been notified of any proposal of another authority, to acquire within the next five years any interest in any land specified in the notice (in this subsection referred to as “ the specified land ”), being the whole or part of the land to which the application related ; and
- (b) the person to whom the notice was given has within three months of the service of the notice made a bona fide contract for the purchase of an interest in the specified land or any part thereof and given notice of the making of the contract to the local planning authority ; and
- (c) that interest, or that interest in so far as it subsists in any part of that land, is subsequently acquired compulsorily, and the first notice required to be published or served in connection with that acquisition, either by or under any Act or by any Standing Order of either House of Parliament relating to petitions for private bills, is duly published or served before the end of the period of three years beginning with the date of service of the notice referred to in paragraph (a) of this subsection,

then, for the purpose of assessing the compensation payable in respect of the acquisition of that interest, subsection (4) of section forty-eight of the principal Act shall not apply to any planning permission in force at the date of service of the notice referred to in paragraph (a) of this subsection :

Provided that—

- (i) this subsection shall not have effect unless at the date of the publication or service of the first notice in connection with the acquisition such as is referred to in paragraph (c) of this subsection, the contract mentioned in paragraph (b) thereof remains in force or has been implemented ;

PART III
—cont.

(ii) this subsection shall not have effect in relation to a purchase by a company from an associated company within the meaning of section forty-nine of this Act.

(3) Without prejudice to the duty imposed by subsection (1) of this section on a local planning authority to whom an application under that subsection has been made, the local planning authority may require the applicant to pay to them a fee of five shillings.

(4) Section thirty-two of this Act shall not apply for the purpose of assessing any compensation to the assessment of which subsection (2) of this section applies:

Provided that if the compensation payable in respect of the acquisition of the relevant interest would, apart from this proviso, be less than it would have been if this section had not been enacted, the said subsection (2) shall not apply in the case of that acquisition.

Compensation to take account of planning permission in certain other cases.

35.—(1) For the purposes of a compulsory acquisition to which this Part of this Act applies, subsection (4) of section forty-eight of the principal Act shall not apply to any planning permission granted—

(a) for any development of land of a class specified in the Sixth Schedule to this Act, or

(b) for any development specified in a certificate issued under section seventy-seven of the principal Act (which relates to land ripe for development before the first day of July, nineteen hundred and forty-eight),

or to any planning permission deemed to be granted by virtue of section seventy-five of the principal Act (which relates to unfinished buildings).

(2) Paragraph (b) of subsection (4) of the said section forty-eight (which provides certain exceptions from that subsection by reference to exemptions from development charges), and so much of subsection (1) of section three of the Act of 1953 as relates to the exceptions comprised in that paragraph, shall not apply for the purposes of any compulsory acquisition to which this Part of this Act applies.

Additional payments in cases where no claim for development value has been established.

36.—(1) If, in the case of a compulsory acquisition to which this Part of this Act applies, the appropriate authority is satisfied that the relevant land or some part thereof does not constitute or form part of the claim area of any established claim, but that a claim or claims in respect of one or more interests in that land, or, as the case may be, in that part thereof, would have been established if made, there shall be issued by or on behalf of the Treasury a certificate specifying—

(a) whether or not, in the opinion of the person signing the certificate, section thirty-two of this Act would have

applied to the compulsory acquisition if the claim or claims aforesaid had been established ; and

PART III
—cont.

- (b) if so, what in that person's opinion, after giving the person entitled to the relevant interest an opportunity to present his case, would have been the amount of the additional compensation calculated by reference to the unexpended balance of established development value of that land or that part thereof which would have been payable under that section in respect of the acquisition of the relevant interest.

(2) Where an amount has been specified as aforesaid, that amount shall be added to the compensation payable in respect of the acquisition of the relevant interest apart from the provisions of this section :

Provided that if, after taking into account all the circumstances, the appropriate authority is of opinion that it is not just and reasonable that the whole of that amount should be so added or, as the case may be, that any amount should be so added, the said authority may direct that such lesser amount as he may specify shall be so added or, as the case may be, that no addition to the compensation aforesaid shall be made.

(3) In this section, the expression " the appropriate authority " means—

- (a) where the compulsory acquisition of the relevant interest by the acquiring authority requires authorisation by a single other authority, that other authority ; or
- (b) where the acquiring authority is a government department and the compulsory acquisition does not require the authorisation of any other authority, the acquiring authority ; or
- (c) in any other case, the Treasury or such other authority as the Treasury may in any case or class of cases direct.

37. In connection with a compulsory acquisition to which this Part of this Act applies—

- (a) any compensation in respect of an interest in land for damage sustained by reason that the relevant land is severed from other land held therewith, or that any other land (whether held with the relevant land or not) is injuriously affected, shall be assessed in accordance with the provisions of the Seventh Schedule to this Act ;
- (b) any compensation for disturbance shall not be assessed at a greater amount than that at which it would have fallen to be assessed if Part IV of the principal Act, and the preceding provisions of this Part of this Act, had not been enacted.

Compensation
for severance,
injuriously
affected and
disturbance.

PART III
—cont.

Effect of
Part III on
unexpended
balance of
established
development
value.

38.—(1) Where, in the case of—

- (a) a compulsory acquisition to which Part III of this Act applies, or
- (b) a sale of an interest in land by agreement in pursuance of a contract made after the commencement of this Act to a public authority possessing compulsory purchase powers, being such a department, authority, person or body of persons as is mentioned in subsection (1) of section thirty-one of this Act,

any of the land in which the interest acquired or sold subsisted had an unexpended balance of established development value immediately before the relevant date (in this subsection referred to as “the relevant balance”), then, in determining whether that land or any part thereof has an unexpended balance of established development value at any subsequent time—

- (i) for the purposes of section thirty-two of this Act and, unless immediately after the acquisition or sale there is outstanding some interest (other than an excepted interest) in that land to which some person other than the acquiring authority is entitled, for all other purposes of this Act, the original unexpended balance of established development value of that land shall be treated as having been extinguished immediately before that subsequent time ;
- (ii) if, immediately after the acquisition or sale, there is outstanding any such interest as aforesaid, then for the purposes of any other Part of this Act there shall be deducted from the said original balance an amount equal to any part of the relevant balance which is not, or which in the appropriate circumstances would not have been, attributable for the purposes of the said section thirty-two to any such outstanding interest, and the original balance of that land or that part thereof shall be treated as having been reduced or extinguished accordingly immediately before that subsequent time :

Provided that in the event of a subsequent compulsory acquisition of any such outstanding interest, being a compulsory acquisition to which this Part of this Act applies, the said section thirty-two shall have effect for the purposes of assessing the compensation payable as if this subsection had not been enacted.

(2) Paragraphs 6 and 7 of the Seventh Schedule to this Act shall have effect in the circumstances therein mentioned as respects the original unexpended balance of established development value of land to which those paragraphs apply.

(3) In this section the expression “in the appropriate circumstances” means if the compulsory acquisition or the sale had

been a compulsory acquisition in respect of which the said section thirty-two operated, and the expression "the relevant date" means the date of the service of the notice to treat, or, as the case may be, the date of the making of the contract.

PART III
—cont.

39.—(1) In the case of any compulsory acquisition to which any of the following provisions of the Housing (Scotland) Act, 1950, that is to say—

Assessment of
compensation
in certain
cases.

- (a) subsection (2) of section twelve ;
- (b) subsection (4) of section seventeen ; and
- (c) subsection (2) of section thirty-six,

(which relate respectively to the compensation to be paid on the compulsory acquisition of closed houses, of houses subject to notices relating to the execution of works, and of houses unfit for human habitation) applies, whether by virtue of the said Act of 1950 or by virtue of any other enactment, being a compulsory acquisition to which this Part of this Act applies, the compensation payable in respect of the land or house acquired may be less than, but shall not exceed, the value, at the time when the valuation is made, of the site as a cleared site available for development in accordance with the requirements of the building regulations for the time being in force in the district ; and accordingly the said provisions shall have effect, in relation to a compulsory acquisition to which this Part of this Act applies, as if the references therein to the compensation to be paid were references to the maximum compensation payable.

(2) In this section references to compensation are references to compensation payable in respect of the acquisition otherwise than by virtue of section thirty-two of this Act and exclusive of any compensation for disturbance or for severance or for injurious affection.

PART IV

COMPENSATION FOR REVOCATION OR MODIFICATION OF PLANNING PERMISSION.

40.—(1) This section applies to any order made after the commencement of this Act under section nineteen of the principal Act (which empowers local planning authorities to make orders revoking or modifying planning permission previously granted).

Amendment
of s. 20 of
principal Act.

(2) In relation to orders to which this section applies—

- (a) subsection (1) of section twenty of the principal Act (which confers a right to compensation in respect of orders revoking or modifying planning permission) shall have effect as if the proviso to that subsection (which, with certain exceptions, precludes compensation in respect of the depreciation in value of an interest in the land) were omitted, and

PART IV
—cont.

(b) paragraph 1 of the Fourth Schedule to the principal Act shall have effect subject to a proviso that the value of any interest, as calculated for the purpose of assessing compensation payable under section twenty of that Act, may be a minus quantity.

(3) In this Act references to compensation to which this Part of this Act applies are references to compensation payable under subsection (1) of section twenty of the principal Act in consequence of an order to which this section applies, and in this Part of this Act the expression "compensation for depreciation" means so much of any compensation to which this Part of this Act applies as is payable in respect of loss or damage consisting of the depreciation in value of an interest in land.

(4) The provisions of this Part of this Act shall have effect in relation to the provisions of subsection (1) of the said section twenty as applied by subsection (3) of that section (which relates to planning decisions following upon the withdrawal of permission granted by a development order), as they have effect in relation to the said subsection (1) apart from the said subsection (3):

Provided that, for the purposes of the application of the provisions of this Part of this Act in accordance with the preceding provisions of this subsection, references to an order under section nineteen of the principal Act shall be construed as references to the planning decision whereby the permission in question is refused, or is granted subject to such conditions as are mentioned in the said subsection (3).

Recording of
notices as to,
and
apportionment
of,
compensation
for
depreciation.

41.—(1) Where compensation to which this Part of this Act applies becomes payable, and includes compensation for depreciation of an amount exceeding twenty pounds the local planning authority shall (if it appears to them to be practicable to do so) apportion the amount of the compensation for depreciation between different parts of the land to which the claim for that compensation relates and give particulars of any such apportionment to the claimant and to every other person (if any) entitled to an interest in land which appears to the authority to be substantially affected by the apportionment.

(2) In carrying out an apportionment under the preceding subsection the local planning authority shall divide the land into parts, and shall distribute the compensation for depreciation between those parts, according to the way in which different parts of the land appear to the authority to be differently affected by the order in consequence of which the compensation is payable.

(3) Subsection (2) of section twenty-seven of this Act, and any regulations made by virtue thereof, shall have effect with respect to any such apportionment, subject to any necessary modifications, as they have effect with respect to an apportionment under subsection (1) of section twenty-eight of this Act;

and, on a reference to the Lands Tribunal by virtue of this subsection, subsections (1) and (2) of this section, so far as they relate to the making of an apportionment, shall apply with the substitution for references to the local planning authority of references to the Lands Tribunal.

PART IV
—cont.

(4) Where compensation to which this Part of this Act applies becomes payable and includes compensation for depreciation exceeding twenty pounds, the local planning authority shall cause notice of that fact in the prescribed form, specifying the land to which the compensation relates and the amount of the compensation for depreciation and any apportionment thereof under this section, to be recorded in the appropriate Register of Sasines, and shall send a copy of the notice to the Secretary of State, and subsection (2) of section twenty-nine of this Act shall have effect with respect to such compensation for depreciation as it has effect with respect to the compensation mentioned in that subsection, subject, however, to any necessary modifications, and in particular with the substitution for the reference to Part II of this Act of a reference to section thirty of this Act as applied by section forty-three of this Act.

42.—(1) Where a copy of notice under the last preceding section is given to the Secretary of State and the circumstances are such that, if the planning permission revoked or modified by the order giving rise to the compensation had been refused, or, as the case may be, had been granted as so modified, at the time when it was granted, compensation under Part II or Part V of this Act could have been claimed, and would have been payable by the Secretary of State, the Secretary of State may, subject to the provisions of this section, pay to the local planning authority a contribution of the amount appearing to him to be the amount of compensation which would have been payable by him as aforesaid under the said Part II or Part V:

Exchequer
contribution
towards
compensation
in certain
cases.

Provided that the amount of any such contribution shall not exceed—

- (a) the amount of the compensation for depreciation paid by the local planning authority; or
- (b) the unexpended balance of established development value at the date of the making of the order of the land in respect of which that compensation was paid.

(2) Regulations made under this section shall provide, as respects cases where the Secretary of State proposes to pay a contribution under this section—

- (a) for requiring the Secretary of State to give notice of his proposal to persons entitled to such interests as may be prescribed in the land to which the proposal relates, and to such other persons (if any) as may be determined in accordance with the regulations to be affected by the proposal;

PART IV
—cont.

- (b) for enabling persons to whom notice of the proposal is given to object to the proposal, on the grounds that compensation would not have been payable as mentioned in the preceding subsection, or that the amount of the compensation so payable would have been less than the amount of the proposed contribution ;
- (c) for enabling any person making such an objection to refer the matter in dispute to the Lands Tribunal ; and
- (d) where a contribution under this section is paid, for applying, with any necessary modifications, the provisions of Part II of this Act as to the reduction or extinguishment of the unexpended balance of established development value of land as if the contribution had been a payment of compensation under the said Part II.

Recovery, on subsequent development, of compensation under s. 20 of principal Act.

43.—(1) Subsections (1) to (9) of section thirty of this Act shall have effect with the necessary modifications in relation to the compensation for depreciation specified in a notice recorded under section forty-one of this Act, and to development of land to which the compensation for depreciation relates, as they have effect in relation to the compensation specified in a notice recorded under section twenty-nine of this Act and to development of land to which that compensation relates :

Provided that, in a case where the compensation to which this Part of this Act applies specified in such a notice became payable in respect of an order modifying planning permission, the said section thirty shall not apply to development in accordance with that permission as modified by the order.

(2) Subject to the next following subsection, any sum recovered by the Secretary of State under the said section thirty as applied by the preceding subsection shall be paid to the local planning authority who paid the compensation for depreciation to which that sum relates.

(3) In paying any such sum to the local planning authority, the Secretary of State shall deduct therefrom—

- (a) the amount of any contribution paid by him under the last preceding section in respect of the compensation to which the sum relates ;
- (b) the amount of any grant paid by him under Part VIII of the principal Act in respect of that compensation :

Provided that, if the sum recovered by the Secretary of State is an instalment of the total sum recoverable, or is recovered by reference to development of part of the land in respect of which the compensation was payable, any deduction to be made under paragraph (a) or paragraph (b) of this subsection shall be a deduction of such amount as the Secretary of State may determine to be the proper proportion of the amount referred to in that paragraph.

PART V

COMPENSATION FOR PAST PLANNING DECISIONS AND PAST ORDERS
REVOKING OR MODIFYING PLANNING PERMISSION

44.—(1) The provisions of this Part of this Act shall have **Scope of effect for enabling compensation to be claimed in respect of— Part V.**

- (a) planning decisions made before the commencement of this Act, whereby permission for the carrying out of new development of land to which this section applies was refused, or was granted subject to conditions;
- (b) orders made before the commencement of this Act under section nineteen of the principal Act, whereby permission for the carrying out of new development of land to which this section applies was revoked or modified.

(2) This section applies to any land to which the planning decision or order related which satisfies the following conditions, that is to say—

- (a) that at the time of the planning decision or order in question the land constituted the area, or part of the area, of a claim holding, and
- (b) that the claim holding referred to in the preceding paragraph, or, where by virtue of any provision of this Act two or more separate claim holdings have been constituted thereout, one or more of those separate holdings whose area consisted of or included that land, was still subsisting at the commencement of this Act;

and in this Part of this Act, in relation to a claim for compensation in respect of any such claim holding so subsisting as aforesaid, any such land is referred to as “qualified land” and the claim holding is referred to as “the relevant holding”.

(3) Subsection (3) of section sixteen of this Act shall have effect for the purposes of this Part of this Act as it has effect for the purposes of Part II of this Act, with the substitution for the reference to a planning decision made after the commencement of this Act of a reference to a planning decision made before the commencement of this Act.

45.—(1) Subject to the provisions of this Act, the holder of the relevant holding shall be entitled to compensation under this Part of this Act in respect of such a planning decision or order as is mentioned in the last preceding section if— **Right to compensation in respect of past planning decisions, or past revocations &c. of planning permission.**

- (a) he is entitled to an interest in any qualified land, or
- (b) having been entitled to an interest in any qualified land at the date of the decision or order, he sold that interest

PART V
—cont.

(otherwise than to a public authority possessing compulsory purchase powers) in pursuance of a contract made after that date and during the period beginning with the eighteenth day of November, nineteen hundred and fifty-two, and ending immediately before the commencement of this Act,

and the value of that interest or of another interest which has merged therein or, in the case of an interest extending to other land, the value of that or of that other interest in so far as it subsisted in that qualified land, was depreciated by the decision or order:

Provided that compensation shall not be payable under this Part of this Act in respect of an order under section nineteen of the principal Act so far as it relates to any particular land if—

- (i) compensation in respect of that order is or was payable by the local planning authority under section twenty of that Act; and
- (ii) by virtue of paragraph (b) of the proviso to subsection (1) of the said section twenty (which relates to development exempt from development charge by virtue of Part VII of that Act) the compensation includes or included compensation in respect of loss or damage consisting of the depreciation in value of an interest in that land.

(2) A person who has become entitled to the relevant holding by virtue of the exercise of any power conferred by an assignment in security shall be entitled to such compensation as aforesaid, notwithstanding that he does not satisfy the conditions set out in paragraphs (a) and (b) of the preceding subsection, if the assignor would have been entitled to such compensation if he had continued to be the holder of the relevant holding.

(3) For the purposes of this Part of this Act any question whether, or to what extent, the value of an interest in land, or of an interest in so far as it subsisted in qualified land, was depreciated by a planning decision shall be determined in accordance with the provisions of section twenty-six of this Act:

Provided that those provisions shall apply for the purposes of this Part of this Act—

(a) as if the reference in subsection (1) of the said section twenty-six to Part II of this Act were a reference to this Part of this Act; and

(b) as if Part VI of the principal Act had not been enacted; and in the application of subsection (2) of the said section twenty-six in a case to which paragraph (b) of subsection (1) of this

section applies, no account shall be taken of any grant of, or undertaking to grant, planning permission made or given after the making of the contract of sale.

PART V
—cont.

(4) For the purposes of the application of this Part of this Act with respect to such a planning decision as aforesaid, subsections (2), (3), (4) and (6) of section nineteen of this Act, subsections (1), (2), (6) and (7) of section twenty, and section twenty-one, of this Act, shall have effect as they have effect for the purposes of Part II of this Act:

Provided that, in a case to which paragraph (b) of subsection (1) of this section applies, for the reference in the said section twenty-one to the Secretary of State's giving notice of his determination in respect of the claim for compensation there shall be substituted a reference to the making of the contract of sale.

(5) In determining for the purposes of a claim for compensation under this Part of this Act whether, or to what extent, the value of an interest in land was depreciated by such an order as aforesaid—

(a) regard shall be had to any compensation which has become payable to the person entitled to that interest in respect of that order under section twenty of the principal Act otherwise than by virtue of the proviso to subsection (1) of that section;

(b) any grant of, or undertaking to grant, planning permission made or given during the period between the making of the order and the time when the Secretary of State gives notice of his determination in respect of that claim, being a grant or undertaking which is in force at the end of that period, shall be taken into account as if it had been in force at the beginning of that period;

(c) Part VI of the principal Act shall be deemed not to have applied after the date when the order was made:

Provided that, in a case to which paragraph (b) of subsection (1) of this section applies, no account shall be taken of any grant or undertaking made or given after the making of the contract of sale.

(6) Where the interest to which the holder of the relevant holding is entitled or, as the case may be, which he sold, is or was subject to a lease granted after the planning decision or order and on or after the eighteenth day of November, nineteen hundred and fifty-two, the preceding provisions of this section shall have effect as if that lease had not been granted.

PART V
—cont.

General
provisions as
to amount of
compensation
for past
planning
decisions,
revocations,
&c.

46.—(1) Subject to the next following subsection, where a person is entitled to compensation under this Part of this Act in respect of the depreciation of the value of an interest in qualified land by a planning decision or order, the principal amount of the compensation shall be whichever is the less of the following amounts, that is to say—

- (a) the amount by which the value of the interest, or, in the case of an interest extending to other land, the amount by which the value of the interest in so far as it subsisted in the qualified land, was depreciated by the decision or order ; or
- (b) the value of the relevant holding at the commencement of this Act or, if the qualified land in which the interest subsisted constituted part only of the area of the relevant holding, the fraction of the said value which attached to that qualified land :

Provided that where the same person is entitled to such compensation as aforesaid in respect of more than one relevant holding, or in respect of more than one interest, or in respect both of more than one relevant holding and of more than one interest, the aggregate principal amount payable to that person by way of such compensation in respect of all interests in respect of which he is so entitled in so far as they subsisted in the same land shall not exceed whichever is the less of the following amounts, that is to say—

- (i) the aggregate of the amounts by which the value of each respectively of those interests in so far as it subsisted in that land was depreciated by the decision or order ; or
- (ii) the aggregate of the fractions of the respective values of all relevant holdings of which that person is the holder which attached to that land.

(2) If the whole of the land to which the planning decision or order related and in which the interest subsisted is not qualified land, then, for the purposes of paragraph (a) of the preceding subsection, the depreciation of the value of the interest by reason of the decision or order shall first be ascertained with reference to the whole of the land aforesaid and shall then be apportioned between the parts of that land which respectively are and are not qualified land according to the nature of those parts and the effect of the planning decision or order in relation thereto.

Claims for
compensation
under Part V,
and review of
past decisions
and orders.

47.—(1) The provisions of sections twenty-two and twenty-seven of this Act shall, with the necessary modifications, apply for the purposes of this Part of this Act :

Provided that subsection (2) of the said section twenty-two shall so apply with the substitution, for the reference to the date

of the planning decision, of a reference to the commencement of this Act.

PART V
—cont.

(2) The following provisions of this section shall have effect where one or more claims for compensation under this Part of this Act have been received by the Secretary of State and the claim, or (if there is more than one) one or more of the claims, has not been withdrawn.

(3) If the claim is in respect of a refusal of permission or of a grant of permission subject to conditions, and it appears to the Secretary of State that, if an application for the like planning permission were made, and were referred to him for determination, he would make a decision more favourable to the applicant, the Secretary of State may give a direction substituting that decision for the planning decision to which the claim relates.

In this subsection, the reference to a decision more favourable to the applicant shall be construed—

(a) in relation to a refusal of permission, as a reference to a decision granting the permission, either unconditionally or subject to conditions, and either as respects the whole or as respects part of the land to which the application for permission related; and

(b) in relation to a grant of permission subject to conditions, as a reference to a decision granting the permission applied for unconditionally or subject to less stringent conditions.

(4) If the claim is in respect of a refusal of planning permission, or an order revoking planning permission, and it appears to the Secretary of State that permission could properly be granted for some development of the land in question, other than the development to which the application for permission related, the Secretary of State may give a direction that the provisions of the principal Act, and of this Act, shall have effect in relation to that application, and to the planning decision or order to which the claim relates, as if that decision or order had been a decision of the Secretary of State which included an undertaking to grant planning permission for that development.

(5) The provisions of section twenty-four of this Act shall, with the necessary modifications, apply for the purposes of this section.

48.—(1) Where compensation is payable in accordance with the preceding provisions of this Part of this Act, the Secretary of State shall pay to the person entitled thereto the principal amount of the compensation payable, together with interest thereon at the rate of three and one-half per cent. per annum from the first day of July, nineteen hundred and forty-eight, to the date of payment:

Payment of compensation under Part V, and supplementary provisions relating thereto.

PART V
—cont.

Provided that if the payment is made after the thirtieth day of June, nineteen hundred and fifty-five, the interest shall be calculated to that day instead of the date of payment.

(2) Where compensation under this Part of this Act is payable in respect of a planning decision or order by reference to a claim holding, then, for the purposes of the application of this Part of this Act to any subsequent planning decision or order, and for the purposes of Parts II and III of this Act—

(a) if the principal amount of the compensation is equal to the value of the claim holding at the commencement of this Act (ascertained apart from this section), the holding shall be deemed to have been extinguished immediately before the commencement of this Act ;

(b) if the principal amount of the compensation is less than the value of the claim holding at the commencement of this Act (ascertained apart from this section), the value of the holding shall be deemed to have been reduced, immediately before the commencement of this Act, by the principal amount of the compensation :

Provided that if at any time an amount becomes recoverable under section thirty of this Act, as applied by the subsequent provisions of this section, in respect of that compensation, then, for the purposes of Parts II and III of this Act, paragraphs (a) and (b) of this subsection shall have effect as from that time as if the principal amount of that compensation had been reduced by a sum equal to seven-eighths of the amount which has so become recoverable.

(3) Where, in the case of any claim holding (in this subsection referred to as “the parent holding”), compensation under this Part of this Act is payable in respect of the depreciation of an interest in land by one or more planning decisions or orders, and any such decision or order did not extend to the whole of the area of the parent holding, then, both for the purposes of the last preceding subsection and for the purposes of Parts II and III of this Act—

(a) the parent holding shall be treated as having been divided immediately before the commencement of this Act into as many separate claim holdings, with such areas, as may be necessary to ensure that in the case of each holding either any such decision or order extending to the area of that holding extended to the whole thereof or that no such decision or order extended to the area of that holding ;

(b) the value of each of the separate holdings respectively shall be taken to be that fraction of the value of the parent holding which then attached to the part of the area of the parent holding constituting the area of the separate holding ;

- (c) the authority determining the amount of any such compensation shall apportion that amount between the areas of the separate claim holdings to which the decision or order in question extended in such manner as appears to that authority proper, and the portion of that amount apportioned to the area of any separate claim holding shall be taken to be compensation payable under this Part of this Act in respect of that claim holding.

PART V
—cont.

(4) The provisions of sections twenty-eight, twenty-nine and thirty of this Act, except subsection (10) of the said section thirty, shall have effect with the necessary modifications in relation to compensation under this Part of this Act (whether by way of principal or by way of interest), and to development of land to which such compensation relates, as they have effect in relation to compensation under Part II of this Act and to development of land to which that compensation relates, and shall so apply as if references in the said section twenty-eight and twenty-nine to a planning decision included references to an order under section nineteen of the principal Act:

Provided that, in a case where the compensation under this Part of this Act specified in a notice recorded under the said section twenty-nine as applied by this subsection became payable in respect of an order modifying planning permission, the said section thirty shall not apply to development in accordance with that permission as modified by the order.

PART VI

MISCELLANEOUS AND SUPPLEMENTARY PROVISIONS

49.—(1) Notwithstanding anything in Part I of this Act, no person shall be entitled to a payment under sections five, seven, eight, ten or eleven of this Act by virtue of a transaction between companies which at the time of the transaction were associated companies.

Associated
companies.

(2) Where a company is the holder of a claim holding, then, for the purpose of ascertaining whether or not that company is entitled to a payment in respect of the holding under Part I or Part V of this Act, any act or event which occurred in relation to another company which at the time of that act or event was, or after that time but before the twenty-sixth day of February, nineteen hundred and fifty-four, became, associated with the company which holds the claim holding shall be treated as having occurred in relation to the company which holds the claim holding, and an interest in land held by any other company for the time being associated with the company which holds the claim holding shall be treated as being held by the company which holds the claim holding.

PART VI
—cont.

(3) For the purposes of this section, a company shall be treated as associated with another company if, and only if, within the meaning of section one hundred and fifty-four of the Companies Act, 1948, one of those companies is a subsidiary of the other, or both those companies are subsidiaries of the same holding company.

Provision of
information as
to unexpended
balance, &c.

50.—(1) Subject to the provisions of this section, the Central Land Board shall, upon application therefor being made to them at any time by any person, and may at any time, if they think fit, without any application being made therefor, issue a certificate in the prescribed form with respect to any land stating whether or not any of that land has an original unexpended balance of established development value and, if it has such a balance—

- (a) giving a general statement of what was taken by the Board for the purposes of Part V of the principal Act to be the state of that land on the first day of July, nineteen hundred and forty-eight; and
- (b) specifying (subject to any outstanding claims under Part I or Part V of this Act) the amount of that original balance;

and any such certificate may, if the Board think fit, contain additional information with respect to acts or events in consequence of which, by virtue of any provision of this Act, a deduction falls to be made from that original balance in determining the unexpended balance, if any, of established development value of any of that land at any time thereafter.

(2) Where, after the commencement of this Act, a notice to treat has been served with a view to the compulsory acquisition of an interest in any land by any public authority possessing compulsory purchase powers, being such a department, authority, person or body of persons as is mentioned in subsection (1) of section thirty-one of this Act, that authority may apply to the Central Land Board for, and shall be entitled to the issue of, a certificate showing the unexpended balance of established development value, if any, of any of that land immediately before the service of that notice.

(3) Where the issue of a certificate under this section with respect to any land involves a new apportionment or, in the case of a certificate under the last preceding subsection, involves the calculation of a deduction from the original unexpended balance of established development value of the land by virtue of subsection (4) of section eighteen of this Act, then—

- (a) except in the case of a certificate under the last preceding subsection or of a certificate which the Board propose to issue without any application being made

therefor, the certificate shall not be issued otherwise than on the application of a person for the time being entitled to an interest in the land ;

- (b) before issuing the certificate, the Board shall give notice in writing to any person entitled to an interest in land which it appears to the Board will be substantially affected by the apportionment, or calculation, giving particulars of the proposed apportionment or calculation and stating that objections or other representation with respect thereto may be made to the Board within thirty days from the date of the notice ; and
 - (c) the certificate shall not be issued before the date of expiration of the said thirty days, and, if at that date an objection to the proposed apportionment or calculation has been made by any person to whom notice has been given under the last preceding paragraph, or by any other person who establishes that he is entitled to an interest in land which is substantially affected by the apportionment or calculation, and that objection has not been withdrawn, the next following subsection shall have effect.
- (4) Where by virtue of paragraph (c) of the last preceding subsection this subsection is to have effect, then—
- (a) if within a further period of thirty days the person by whom any such objection was made refers the dispute to the Lands Tribunal, the certificate shall not be issued until either the Tribunal has decided the matter or the reference to the Tribunal has been withdrawn ;
 - (b) the certificate may be issued before the expiration of the said further period if every such objection has been withdrawn ; and
 - (c) the certificate shall be issued at the date of expiration of the said further period notwithstanding that every such objection has not been withdrawn, if no reference to the Lands Tribunal has by that date been made under paragraph (a) of this subsection.
- (5) Where, on a reference to the Lands Tribunal under this section, it is shown that a new apportionment relates partly to the same matters as any previous apportionment and is consistent with that previous apportionment in so far as it relates to those matters, the Tribunal shall not vary the new apportionment in such a way as to be inconsistent with the previous apportionment in so far as it relates to those matters.
- (6) A certificate under subsection (2) of this section shall be conclusive evidence of the unexpended balance shown therein, and a certificate under subsection (1) of this section shall be sufficient proof of any facts stated therein unless the contrary is shown.

PART VI
—cont.

(7) An application for a certificate under this section shall be made in such form and manner as may be prescribed, and shall be accompanied by sufficient particulars, including a map if necessary, to enable the land to be identified and, where a new apportionment will be involved, particulars of the nature of the applicant's interest and such information as to the nature of any other interest in the land and as to the name and address of the person entitled to that other interest as may be known to the applicant.

(8) On any application under subsection (1) of this section, the applicant shall pay in the prescribed manner a fee of five shillings and, if the application involves a new apportionment, the certificate shall not be issued until the applicant has paid in the prescribed manner a further fee of fifteen shillings.

(9) In this section, the expression "new apportionment" means an apportionment which relates wholly or partly to any matters relating to which there has not been a previous apportionment.

Cancellation or
reduction of
liability for
development
charges.

51.—(1) The provisions of this section shall have effect in cases where at the commencement of this Act the whole or part of a development charge remains unpaid, and apart from this section the charge or the unpaid balance thereof would then be payable, or would thereafter become payable, to the Central Land Board.

(2) If under Part I of this Act the Board set off the whole of the charge, or the unpaid balance thereof, against a payment thereunder, as being a payment which (but for the set-off) would be payable by the Board under the said Part I, or would have been so payable if applied for, the development charge and any liability of any person in respect thereof shall thereupon be discharged.

(3) If under Part I of this Act the Board set off part of the charge, or of the unpaid balance thereof, as mentioned in the last preceding subsection, the development charge, or the unpaid balance thereof, shall be treated as reduced by the amount so set off and any liability of any person in respect thereof shall be modified accordingly.

(4) Where, for the purposes of the Second Schedule to this Act, one or more development charges such as are mentioned in subsection (1) of this section are covered by an assignation of one or more claim holdings to the Central Land Board, and by virtue of the provisions of that Schedule one or more of those claim holdings are deemed to have been extinguished or reduced in value by reference to the unpaid balance of the charge or, as the case may be, the aggregate of the unpaid balances of the charges, as therein mentioned, a sum equal to, or to the aggregate of—

(a) the value of any such holding which is deemed to have been extinguished ; and

- (b) the amount of the reduction in the value of any such holding which is deemed to have been reduced in value but not extinguished,

shall be deducted from that balance or that aggregate of balances and—

- (i) if that sum is equal to that balance or aggregate of balances, the charge or charges and any liability of any person in respect thereof shall be discharged ;
- (ii) if that sum is less than that balance or aggregate of balances, the charge or charges, or the balance or respective balances thereof remaining unpaid at the commencement of this Act, shall be reduced by an amount, or, as the case may be, shall be reduced rateably by an aggregate amount, equal to that sum :

Provided that where paragraph 2 of the Second Schedule to this Act applies, any development charge in connection with which the claim holding in question was assigned in accordance with the arrangements mentioned in sub-paragraph (1) of that paragraph and any liability of any person in respect thereof shall be discharged without regard to the treatment of the claim holding in question.

(5) Where the Central Land Board agreed that payment of a development charge should be postponed in accordance with the special arrangements relating to the accommodation of agricultural workers, the development charge and any liability of any person in respect thereof shall be treated as discharged.

(6) In the case of a development charge which is discharged by virtue of paragraph (i) of subsection (4) of this section—

- (a) if no sum had been paid to the Central Land Board on account of the charge, the charge shall for the purposes of Part I of this Act be treated as not having been incurred ; and
- (b) if any sum had been so paid, then, notwithstanding anything in subsection (3) of section four of this Act, the amount of the charge shall for the said purposes be treated as the amount or aggregate amount of the sum or sums so paid, other than any sum paid by way of interest ;

and a development charge which is treated as discharged by virtue of the last preceding subsection shall, for the purposes of any other provision of this Act, except subsection (3) of section fifty-four thereof, be treated as not having been determined to be payable.

(7) References in this section, except in subsection (4) thereof, to the unpaid balance of a development charge include references to any arrears of interest in respect of the charge.

PART VI

—cont.

Exchequer
grants to
local planning
authorities.

52. Subject to the next following section, the following section shall be substituted for section eighty-nine of the principal Act:—

“ 89.—(1) Regulations made under this section with the consent of the Treasury may provide for the payment by the Secretary of State to local planning authorities of grants of such amounts, and payable over such periods and subject to such conditions, as may be determined by or under the regulations, in respect of expenditure incurred, whether before or after the passing of this Act, by those authorities—

- (a) in connection with the acquisition of land approved by the Secretary of State for the purposes of the regulations, or in connection with the clearing or preliminary development of land acquired by those authorities with such approval;
- (b) in the payment of compensation under Part II or Part VII of this Act (other than compensation payable in respect of land compulsorily acquired by virtue of section seventeen of this Act), or in taking any action under section twenty-two, twenty-three or twenty-four of this Act, or under the said section twenty-two as applied by any of the provisions of Part II of this Act;
- (c) in connection with the carrying out of any work of restoring, repairing or adapting buildings acquired by those authorities, being work approved by the Secretary of State for the purposes of the regulations in the case of a building as respects which, immediately before the acquisition thereof, a building preservation order was in force or could have been made.

(2) Regulations made under this section may provide for the payment of grants thereunder, in such cases and subject to such conditions as may be prescribed by or under the regulations, in respect of land appropriated by local planning authorities (whether before or after the passing of this Act) for any purpose approved by the Secretary of State in accordance with the regulations, as if the land had been acquired for that purpose at a cost of such amount, and defrayed in such manner, as may be determined by or under the regulations.

(3) Without prejudice to the generality of the preceding provisions of this section, any regulations made under this section may provide—

- (a) for the inclusion, in the expenditure incurred by local planning authorities in the acquisition of land approved by the Secretary of State for the purposes of the regulations, of any sums, or any part of sums, paid by those authorities in connection with

any restriction imposed on the development or use of the land by or under any enactment (whether by way of compensation or by way of contribution towards damage or expense incurred in consequence of the restriction) ;

- (b) for the calculation of grants payable under the regulations by reference to the amount of the annual costs incurred or treated as being incurred by local planning authorities in respect of the borrowing of money to defray expenditure in respect of which the grants are made, or by reference to the excess of such annual costs over receipts of those authorities which are attributable to such expenditure, or over the annual value of such receipts, as may be prescribed by the regulations.

(4) The amount of any grant paid to a local planning authority in accordance with regulations made under this section—

- (a) where that amount is calculated by reference to annual costs incurred or treated as incurred by the authority in respect of the borrowing of money to defray expenditure in respect of which the grant is made, or by reference to the excess of such annual costs over the receipts, or the annual value of receipts, mentioned in paragraph (b) of the last preceding subsection, shall not exceed an amount equal to fifty per cent. of those costs, or of that excess, as the case may be ;
- (b) in any other case, shall not exceed an amount equal to fifty per cent. of the amount of the expenditure in respect of which the grant is made :

Provided that, in relation to—

- (i) land acquired for use as a public open space ; or
- (ii) such part, if any, of any land appropriated as mentioned in subsection (2) of this section as is intended for such use,

the regulations may provide that, if in any particular case the Secretary of State is satisfied that, having regard to the expenditure in respect of which the grant is to be made and the financial circumstances of the local planning authority concerned, it is just that a higher grant should be made, the amount of the grant in that particular case shall be an amount equal to such percentage, exceeding fifty but not exceeding seventy-five per cent., of the costs, excess or expenditure aforesaid as the Secretary of State may determine.

(5) Any expenses incurred by the Secretary of State in the making of grants in accordance with regulations made

PART VI
—cont.

for the purposes of this section shall be defrayed out of moneys provided by Parliament.

(6) In this section the expression 'preliminary development', in relation to land approved for the purposes of regulations made thereunder, means the carrying out of any work determined in accordance with the regulations to be work preparatory to the development of the land for the purposes for which it was acquired or appropriated, or work comprised in the initial stages of such development."

Supplementary provisions as to Exchequer grants.

53.—(1) Nothing in the last preceding section, or in the amendments and repeals effected by the following provisions of this Part of this Act, shall affect the payment of any grant in respect of a year or part of a year ending on or before the fifteenth day of May, nineteen hundred and fifty-five:

Provided that, in the case of a local planning authority whose financial year ends on a day other than the fifteenth day of May, this subsection shall have effect with the substitution of a reference to that other day for the reference to the fifteenth day of May.

(2) As respects land of any of the following descriptions, that is to say—

- (a) land comprised in a compulsory purchase order made by a local planning authority under the Town and Country Planning (Scotland) Act, 1945, or the principal Act, and confirmed before the twenty-sixth day of February, nineteen hundred and fifty-four, being land acquired for any of the purposes specified in paragraph (a) of subsection (5) of section eighty-nine of the principal Act;
- (b) land acquired by agreement for any of those purposes with the consent of the Secretary of State given before that date;
- (c) land appropriated for any of those purposes before that date;
- (d) land acquired or appropriated for any of those purposes (whether before or after that date), being land contiguous or adjacent to land falling within any of the preceding paragraphs,

paragraph (a) of subsection (4) of the section which, by the last preceding section, is substituted for the said section eighty-nine shall apply as if, for the reference in that paragraph to fifty per cent. of the annual costs or excess therein mentioned, there were substituted a reference to ninety per cent. of those costs or of that excess, as the case may be:

Provided that this subsection shall not authorise the payment, in the case of any land, of a grant at a higher rate in respect of a year or part of a year which, together with the preceding

years or parts of years in respect of which grants at a higher rate have been paid in the case of that land, would extend beyond a total period of eight years.

PART VI
—cont.

(3) For the purposes of any regulations made under section eighty-nine of the principal Act (whether before or after the commencement of this Act), the definition in that Act of the expressions "area of extensive war damage" and "area of bad lay-out or obsolete development" shall apply, and be deemed always to have applied, as if in that definition the words "being in each case land comprised in an area which is defined by a development plan as an area of comprehensive development" had been omitted.

(4) In this section references to section eighty-nine of the principal Act are references to that section as it has effect apart from the last preceding section, and references to a grant at a higher rate are references to a grant of an amount authorised by the said section eighty-nine as it so has effect, but not authorised (otherwise than by virtue of subsection (2) of this section) by the provisions substituted for that section by the last preceding section.

54.—(1) Where, under Part I of this Act, a payment becomes payable by the Central Land Board in respect of the compulsory acquisition of an interest in land by, or the sale of such an interest to, a public authority possessing compulsory purchase powers (in this section referred to as "the acquiring authority"), the Board shall, subject to the provisions of this section, be entitled to recover the amount of the payment from the acquiring authority.

Recovery of
certain sums
from
acquiring
authorities.

(2) The preceding subsection shall not apply if—

- (a) the acquiring authority is a government department, and the interest was acquired in pursuance of a notice to treat served, or a contract made, before the twenty-sixth day of February, nineteen hundred and fifty-four, or
- (b) the interest was acquired, in pursuance of a notice to treat served, or a contract made, before the eighteenth day of November, nineteen hundred and fifty-two, for the purposes of the development or re-development of any area as a whole, or
- (c) the interest was acquired, in pursuance of such a notice to treat or contract as is mentioned in the last preceding paragraph, for the purposes of the use of the land as a public open space, or as allotments:

Provided that paragraph (b) of this subsection shall not affect the application of the preceding subsection—

- (i) if the interest was acquired by a development corporation under the New Towns Act, 1946; or

PART VI
—cont.

- (ii) if it is certified by the Secretary of State that the interest was acquired for the purposes of the development or re-development of an area as an industrial estate.

(3) If, before the eighteenth day of November, nineteen hundred and fifty-two, operations were begun in, on, over or under any land in which an interest such as is mentioned in subsection (1) of this section subsists, or a use of any such land was instituted, being operations or a use—

- (a) in respect of which, whether before or after the commencement of this Act, a development charge has been determined to be payable, or it has been determined that no development charge is payable; or

- (b) comprised in a scheme of development exempt from development charge,

the said subsection (1) shall not apply to so much of any payment referred to in that subsection as is attributable to any land in relation to which the determination was made or, as the case may be, which is included in that scheme of development.

(4) If such a payment as is mentioned in subsection (1) of this section would have been payable, or the amount of such payment would have been greater, but for the existence of either or both of the following circumstances, that is to say—

- (a) that by virtue of the Second Schedule to this Act a claim holding relating to the whole or part of the land comprised in the acquisition or sale was treated as extinguished, or reduced in value, by reference to a development charge relating to other land;

- (b) that by virtue of subsection (2) of section fourteen of this Act a sum was set off against the payment by reference to such a development charge,

the preceding provisions of this section shall apply as if neither of those circumstances had existed and the payment had become payable or (as the case may be) the amount of the payment had been increased accordingly.

(5) Where, under subsection (3) of section fourteen of this Act, a sum was set off against a payment, as being a payment which would have been payable under Part I of this Act if applied for, the preceding provisions of this section shall apply as if that payment had been payable under the said Part I and the set-off had been effected under subsection (2) of the said section fourteen.

(6) Where, in the case of a compulsory acquisition to which Part III of this Act applies, the compensation payable in respect of the acquisition is diminished—

- (a) by an amount exceeding twenty pounds owing to the fact that compensation under Part II or V of this Act,

or compensation to which Part IV of this Act applies, has become payable in respect of a planning decision or order made before the service of the notice to treat, or

PART VI
—cont.

- (b) owing to the fact that by virtue of the Second Schedule to this Act a claim holding relating to the whole or part of the land comprised in the acquisition was treated as extinguished, or reduced in value, by reference to a development charge relating to other land.

the Secretary of State (in a case falling within paragraph (a) of this subsection) or the Central Land Board (in a case falling within paragraph (b) thereof) shall be entitled to recover from the acquiring authority a sum equal to the amount by which the compensation payable in respect of the acquisition is less than it would have been if the circumstances referred to in paragraph (a) or (b) of this subsection, as the case may be, had not existed.

(7) Where an interest in land is compulsorily acquired by, or sold to, a public authority possessing compulsory purchase powers, in pursuance of a notice to treat served, or a contract made, after the commencement of this Act, or was so acquired or sold in pursuance of a notice to treat served, or a contract made, on or after the thirteenth day of August, nineteen hundred and forty-seven, and before the commencement of this Act, and a payment exceeding twenty pounds has become payable under section fifty-six of the principal Act in respect of that interest, or becomes so payable after the commencement of this Act, the Central Land Board shall be entitled to recover the amount of the payment from the acquiring authority:

Provided that—

- (a) the provisions of subsections (2) and (3) of this section shall have effect in relation to this subsection as they have effect in relation to subsection (1) of this section;
- (b) no amount shall be recoverable by the Central Land Board under this subsection in relation to any land in relation to which an amount has become recoverable by the Secretary of State under section thirty as applied by section fifty-eight of this Act;
- (c) if the acquisition or sale does or did not extend to the whole of the land to which the payment related, the amount recoverable under this subsection shall be so much of that payment as is by virtue of subsection (3) of section fifty-eight of this Act to be treated as apportioned to the land in which the interest acquired or sold subsisted.

PART VI
—cont.

(8) Regulations made under this section with the consent of the Treasury may provide—

- (a) for reducing the amount recoverable from the acquiring authority under subsection (1) of this section, or under the last preceding subsection, in cases where, since the interest was acquired by that authority and before the eighteenth day of November, nineteen hundred and fifty-two, the land in question or part thereof was the subject of a conveyance of a description specified by the regulations, not being a conveyance in favour of a public authority possessing compulsory purchase powers ;
- (b) for enabling the acquiring authority to recover a contribution, determined in such manner as may be prescribed by the regulations, from another public authority possessing compulsory purchase powers, in cases where, since the interest was acquired by the acquiring authority and before the commencement of this Act, the land in question or part thereof was the subject of a compulsory acquisition by that other authority, or of any other conveyance in favour of that authority of a description so prescribed ;
- (c) for applying the provisions of subsection (6) of this section, subject to such adaptations and modifications as may be prescribed, to purchases of land by agreement, by public authorities possessing compulsory purchase powers, in pursuance of contracts made after the commencement of this Act, where the purchase price is determined in accordance with the regulations to be diminished as mentioned in that subsection.

(9) Where a sum is recoverable from an authority under this section, by reference to an acquisition or purchase of an interest in land, and in respect thereof, or of a subsequent appropriation of the land, a grant became or becomes payable to that or some other authority under any enactment, the power conferred by that enactment to pay the grant shall include, and shall be deemed always to have included, power to pay a grant in respect of that sum, as if it had been expenditure incurred by the acquiring authority in connection with the acquisition or purchase.

(10) In this section references to a scheme of development exempt from development charge are references to a scheme of development such that, if the operations and uses of land comprised in the scheme had all been begun or instituted before the eighteenth day of November, nineteen hundred and fifty-two, all those operations and uses would have been exempt from

the provisions of Part VI of the principal Act by virtue of regulations made thereunder; and references to the amount of a payment shall be construed as including any interest payable on the principal amount of the payment.

PART VI
—cont.

55.—(1) Subject to the provisions of this section, any compensation accruing due in respect of any land after the commencement of this Act by virtue of paragraph (b) of subsection (1) of section two of the Compensation (Defence) Act, 1939 (which relates to compensation payable in respect of damage occurring to requisitioned land during the period of requisition) shall not exceed the amount (if any) by which the value mentioned in paragraph (a) of the next following subsection falls short of the price mentioned in paragraph (b) of that subsection.

Compensation
for damage to
requisitioned
land.

(2) The said value and price are—

- (a) the value, at the time when the compensation accrues due, of the *dominium utile* in the land in question, subject to any feu-duty, any ground annual and any servitude or other restriction, affecting the land at that time but otherwise free from burdens, and
- (b) the price which would be the compulsory purchase price of the land at that time, if it were then in the state in which it was when possession of the land was taken in the exercise of emergency powers.

(3) Neither of the following provisions, that is to say—

- (a) paragraph (ii) of the proviso to subsection (1) of the said section two (which provides that the compensation payable under paragraph (b) of that subsection shall be limited to the value of the land at the time when it was requisitioned), and
- (b) subsection (1) of section ten of the Requisitioned Land and War Works Act, 1948 (which substitutes a different limit, by reference to the compulsory purchase price of the land in its existing state and in the state in which it was when requisitioned),

shall apply to compensation to which subsection (1) of this section applies.

(4) Subsection (3) of section ten of the said Act of 1948 (which makes provision as to the matters to be taken into account in calculating the compulsory purchase price of the land in its existing state) shall apply for the purposes of this section, with the substitution, for references to the compulsory purchase price of land, of references to the value of such an interest as is mentioned in paragraph (a) of subsection (2) of this section; and subsection (4) of that section (which provides for increased

PART VI
—cont.

compensation in certain cases above the limit imposed by subsection (1) of that section) shall apply for the purposes of this section, with the substitution, for the reference to subsection (1) of that section, of a reference to subsection (1) of this section.

(5) In this section the expression “compulsory purchase price” has the meaning assigned to it by subsection (2) of the said section ten.

Special
provisions
relating to
minerals.

56.—(1) Development charges determined in respect of the winning and working of minerals shall cease to have effect in so far as they require the payment of any periodical payments in respect of minerals got after the commencement of this Act.

(2) Where a development charge has been determined in respect of the winning and working of minerals over a period ending after the commencement of this Act, the Central Land Board shall, if application is made to them in that behalf in accordance with the regulations for the time being in force under section seventy of the principal Act, vary the determination, and amend, discharge, modify or release any agreements or securities made or given in respect thereof, in such manner as appears to them appropriate for limiting the development charge to the winning and working of the minerals within so much of that period as preceded the commencement of this Act, and shall repay any sums paid thereunder, so far as may be requisite for giving effect to the variation.

(3) In relation to an interest in land consisting of or comprising minerals, and in relation to claims established wholly or partly in respect of such land, the provisions of this Act shall have effect subject to such adaptations and modifications as may be prescribed by regulations made under this Act with the consent of the Treasury.

(4) Regulations made for the purposes of this section shall be of no effect unless they are approved by resolution of each House of Parliament.

(5) The Mineral Development Charge Set-off (Scotland) Regulations, 1951, shall cease to have effect; but in respect of the winning and working of minerals to which those Regulations applied no development charge shall be payable or be deemed ever to have been payable.

Modification
of mining
leases granted
before 18th
November,
1952.

57.—(1) The Lands Tribunal may, upon application made to them within one year from the commencement of this Act by any party to a lease to which this section applies, by order modify the provisions of the lease so far as may be required in order to secure that the sums payable by the lessee under the lease, in respect of any period beginning on or after the date of the commencement of this Act, are equal to the sums which,

in the opinion of the Tribunal, the lessee could, at the time of the lease, fairly and reasonably have been required so to pay if no development charges had been payable in respect of the winning and working of minerals.

PART VI
—cont.

(2) This section applies to the following leases, that is to say—

- (a) any mining lease granted within the period beginning on the first day of July, nineteen hundred and forty-eight, and ending on the seventeenth day of November, nineteen hundred and fifty-two ;
- (b) any mining lease granted after the end of that period by virtue of the exercise before the commencement of this Act of an option granted within that period ;
- (c) any mining lease granted before the beginning of that period, if the terms of the lease as to the payments to be made thereunder by the lessee were varied by an agreement entered into within that period or by an order made within that period under section thirty of the Mineral Workings Act, 1951 (which empowers the Lands Tribunal to modify mining leases granted before the said first day of July).

(3) In determining for the purposes of subsection (1) of this section the sums which a lessee could fairly and reasonably have been required to pay in respect of any period beginning on or after the date of the commencement of this Act, the Tribunal shall have regard to the terms and conditions of the lease, other than terms and conditions as to the sums payable by the lessee thereunder, except sums so payable in respect of any period beginning before that date.

(4) The provisions of this section shall apply in relation to orders made under Part I of the Mines (Working Facilities and Support) Act, 1923, as they apply in relation to mining leases, with the substitution, for references to the granting of a lease, of references to the making of such an order, and, for references to the Lands Tribunal, of references to the Court of Session.

(5) The provisions of this section shall apply in relation to an option conferring a right to require the grant of a mining lease, being an option granted within the period beginning on the first day of July, nineteen hundred and forty-eight, and ending on the seventeenth day of November, nineteen hundred and fifty-two, as they apply in relation to a lease to which this section applies, with the substitution, for references to the terms and conditions of the lease and the sums payable by the lessee thereunder, of references to the terms and conditions of the lease which would be granted if the option were exercised and to the sums which would be payable by the lessee under that lease.

PART VI
—cont.

(6) Section thirty of the Mineral Workings Act, 1951, shall cease to have effect.

Recovery, on subsequent development, of payments under s. 56 of principal Act.

58.—(1) Where a payment under section fifty-six of the principal Act (other than a payment not exceeding twenty pounds) has become payable in respect of an interest in land, or becomes so payable after the commencement of this Act, the Central Land Board shall cause notice of the payment in the prescribed form, specifying the land to which it relates and the amount of the payment, to be recorded in the appropriate Register of Sasines, and shall send a copy of the notice to the local planning authority and to any other person appearing to the Board to be interested :

Provided that—

- (a) the preceding provisions of this subsection shall not apply to any amount which is recoverable under subsection (7) of section fifty-four of this Act or which would be so recoverable but for the provisions of paragraph (a) of the proviso to that subsection ;
- (b) if a development charge was (whether before or after the commencement of this Act) determined to be payable in respect of the land to which the payment related or relates (in this proviso referred to as “ the payment area ”), or in respect of land which included the payment area, the preceding provisions of this subsection shall not apply to that payment ; and
- (c) if a development charge was (whether before or after the commencement of this Act) determined to be payable in respect of part of the payment area, or in respect of land which included part (but not the whole) of that area, the preceding provisions of this subsection shall apply as if separate payments of so much of the amount aforesaid as is respectively attributable thereto had been payable in respect of that part of the payment area and of the remainder of that area.

(2) Section thirty of this Act, except subsection (10) thereof, shall have effect with the necessary modifications in relation to any payment specified in a notice recorded under this section, and to development of land to which such compensation relates, as it has effect in relation to the compensation specified in a notice recorded under section twenty-nine of this Act and to development of land to which that compensation relates :

Provided that—

- (a) the said section thirty shall apply for the purposes of this section as if that section applied to every description of new development ; and

PART VI
—cont.

(b) no amount shall be recoverable by the Secretary of State under the said section thirty as applied by this subsection in relation to any land in relation to which an amount has become recoverable by the Central Land Board under subsection (7) of section fifty-four of this Act.

(3) For the purposes of this Part of this Act a payment under section fifty-six of the principal Act shall be treated as apportioned, as between different parts of the land to which it related, in the way in which it might reasonably be expected to have been so apportioned if, under the scheme made under the said section fifty-six, the authority determining the amount of the payment had been required (in accordance with the same principles as applied to the determination of that amount) to apportion it as between different parts of that land.

(4) References in this section to the amount of a payment under section fifty-six of the principal Act shall be construed as including any interest payable thereon under subsection (3) of section sixty-two of that Act.

59.—(1) Where, after the commencement of this Act, an application is made to a local planning authority for permission to develop land by the erection thereon of an industrial building, being an application which would, apart from this section, be of no effect by virtue of subsection (4) of section twelve of the principal Act (which provides that certain applications for such permission shall be of no effect unless it is certified by the Board of Trade that the development in question can be carried out consistently with the proper distribution of industry), the local planning authority shall consider whether, if the requirements of the said subsection (4) had been satisfied, they would nevertheless have refused the permission sought by the application either as respects the whole or as respects part of the land to which the application relates; and if they are of opinion that they would so have refused that permission, they shall serve on the applicant a notice in writing to that effect.

Applications for permission for industrial development.

(2) Where a notice has been served under the preceding subsection as respects the whole or part of any land, the provisions of this Act and of sections seventeen and eighteen of the principal Act, and, where by virtue of the preceding provisions of this subsection a direction has been given under subsection (3) of section twenty-three of this Act, the other provisions of the principal Act, shall have effect as respects that land or that part thereof as if the application had been of effect and permission had been refused.

PART VI
—cont.

Assignations
and
settlements by
will of claims
under Part V
of principal
Act.

60.—(1) An assignation of the benefit, or part of the benefit, of an established claim shall be of no effect if—

- (a) it is made after the commencement of this Act, or
- (b) it requires the approval of the Central Land Board under subsection (2) of section two of the Act of 1953, and no application for that approval was made before the commencement of this Act.

(2) Subject to the preceding subsection, an assignation of the benefit, or part of the benefit, of an established claim, if approved by the Central Land Board under subsection (2) of section two of the Act of 1953 (whether before or after the commencement of this Act), shall be deemed to have had effect as from the date on which the assignation was made.

(3) Subsection (2) of section sixty-one of the principal Act (which provides that the right to receive a payment under Part V of that Act shall be transmissible by assignation or by operation of law) shall have effect, and shall be deemed always to have had effect, in relation to the settlement by will of such a right as is mentioned in that subsection as it has effect in relation to the transmission of such a right by operation of law:

Provided that a settlement of such a right by the will of a testator dying after the commencement of this Act shall be of no effect.

Crown land.

61.—(1) In this section the expression “Crown interest” means an interest belonging to Her Majesty in right of the Crown, or belonging to a government department or held in trust for Her Majesty for the purposes of a government department; and the expression “private interest” means an interest which is not a Crown interest.

(2) Subject to the following provisions of this section, where there is a Crown interest in any land, the provisions of this Act, other than this section, shall have effect in relation to any private interest as if the Crown interest were a private interest.

(3) Where, in the case of a compulsory acquisition to which Part III of this Act applies, planning permission was granted before the date of service of the notice to treat, and the person who at that date is entitled to the interest in land to which the acquisition relates is, or derives title from a person who was, entitled thereto under a conveyance which—

(a) was granted after the grant of the planning permission, and

(b) was a conveyance of a Crown interest, or a conveyance creating an interest directly out of a Crown interest, then, notwithstanding subsection (4) of section forty-eight of the principal Act, that permission shall not be disregarded in assessing the compensation payable in respect of the acquisition.

62.—(1) Where a public authority possessing compulsory purchase powers has compulsorily acquired or has purchased, in pursuance of a notice to treat served, or, as the case may be, a contract made, after the commencement of this Act, the *dominium utile* in any land, and it is necessary to determine under section one hundred and eight of the Lands Clauses Consolidation (Scotland) Act, 1845, the amount of any consideration payable in respect of the discharge of the land from any feu-duty, or ground annual or other annual or recurring payment or incumbrance, to which that section applies (not being stipend or standard charge in lieu of stipend), or from any portion thereof, the following provisions of this section shall have effect for the purpose of such determination.

Any reference in this section to a "relevant prestation" is a reference to any such feu-duty or ground annual or other annual or recurring payment or incumbrance (or any portion thereof) relating to the land as is mentioned in this subsection.

(2) The aggregate amount of the consideration payable as aforesaid in respect of all relevant prestations (in this section referred to as the "aggregate consideration") shall be an amount equal to the difference between—

- (a) the amount of the compensation payable in respect of the acquisition of the *dominium utile* in the land, and
- (b) the amount of the compensation which would have been so payable if the land had not been subject to any relevant prestation.

(3) Where the *dominium utile* has been acquired by agreement it shall be assumed for the purpose of estimating the amounts referred to in paragraphs (a) and (b) of the last preceding subsection that it was acquired compulsorily in pursuance of a notice to treat served on the date of the making of the contract.

(4) If the land is subject to only one relevant prestation the amount of the consideration in respect of the discharge of the land from that prestation shall be equal to the aggregate consideration.

(5) If the land is subject to two or more relevant prestations the market value of each such prestation immediately before the service of the notice to treat or, as the case may be, the making of the contract, shall be estimated and the aggregate consideration shall be attributed to the discharge of the land from the relevant prestations in order of priority, so however that so much thereof as is attributed to the discharge of the land from any prestation shall (without prejudice to the next following subsection) not exceed the value, estimated as aforesaid, of that prestation.

(6) If, after giving effect to the provisions of the last preceding subsection, in any case to which they apply, there remains an

PART VI

—cont.

Consideration
in respect of
discharge of
acquired land
from feu-duty,
ground annual,
&c.

PART VI
—cont.

unattributed balance of the aggregate consideration, the amounts attributed in accordance with those provisions shall be increased proportionately so as to extinguish the balance.

(7) Subject to the next following subsection references in this section to the compensation payable in respect of the acquisition of the *dominium utile* in any land shall be construed as references to such compensation exclusive of any compensation for disturbance or for severance or injurious affection.

(8) In relation to the acquisition of the *dominium utile* in any land to which Rule (5) set out in section two of the Acquisition of Land (Assessment of Compensation) Act, 1919, applied, references in this section to the compensation payable in respect of the acquisition shall be construed as references to the compensation (exclusive of any compensation for disturbance or for severance or injurious affection) which would have been so payable if the *dominium utile* in question had been an interest to which subsection (4) of section eighty-two of the principal Act (which relates to land held for charitable purposes) applied.

Transfer to
Secretary
of State of
functions of
Central Land
Board
exercisable
in Scotland.

63.—(1) Her Majesty may, by any Order in Council under section sixty-three of the Town and Country Planning Act, 1954, providing for the winding up and dissolution of the Central Land Board, provide for the transfer to the Secretary of State of any of the functions of the Board exercisable in Scotland which at such date as may be specified in the Order have not been fully performed, and any such Order in Council may contain such incidental, consequential and supplementary provisions as may appear to Her Majesty to be expedient for the purposes of that transfer.

(2) On the dissolution of the Central Land Board by an Order in Council under the said section sixty-three, section one of the principal Act (which relates to that Board) shall cease to have effect.

General
financial
provisions.

64.—(1) The Treasury may issue to the Secretary of State and to the Central Land Board out of the Consolidated Fund such sums as are necessary to enable the Secretary of State and the Board respectively to make any payments becoming payable by him or them under any provision of Part I or V of this Act.

(2) For the purpose of providing sums to be issued under the preceding subsection, or of providing for the replacement of sums so issued, the Treasury may at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939, and any securities created and issued to raise money under this subsection shall be deemed for all purposes to have been created and issued under that Act.

(3) The provisions of this subsection shall have effect as to the repayment of sums issued under subsection (1) of this section, that is to say—

PART VI
—cont.

- (a) the aggregate of the sums so issued in any financial year, whether to the Secretary of State or to the Central Land Board, shall be repaid by the Secretary of State into the Exchequer, as mentioned in the next following paragraph, with interest thereon at such rate as the Treasury may determine, the said interest accruing, as respects the whole aggregate, from such date in the financial year in which the sums are issued as the Treasury may determine ;
- (b) the said aggregate shall be repaid by twenty equal annual instalments, of principal and interest combined, falling due on the anniversary of the date determined under the preceding paragraph, the first such instalment falling due in the financial year next following the financial year in which the sums in question were issued ;
- (c) subject to the next following subsection, any instalment to be paid into the Exchequer under the last preceding paragraph shall be paid out of moneys provided by Parliament.

(4) Any sums received by the Secretary of State or by the Central Land Board—

- (a) by virtue of subsection (4) of section forty-eight of this Act,
- (b) under subsections (1) to (5) of section fifty-four of this Act, or
- (c) under subsection (6) of the said section fifty-four, or under that subsection as applied by regulations made under subsection (8) of that section, not being in either case sums recovered by reference to compensation payable under Part II of this Act or to compensation to which Part IV of this Act applies,

shall be paid into the Exchequer, and shall be treated as paid in satisfaction, or part satisfaction, of such one or more instalments payable under the last preceding subsection as the Treasury may determine.

(5) All sums paid into the Exchequer under the two last preceding subsections shall be issued out of the Consolidated Fund at such times as the Treasury may direct, and shall be applied by the Treasury as follows:—

- (a) so much thereof as represents principal shall be applied in redeeming or paying off debt of such description as the Treasury think fit ;

PART VI
—cont.

(b) so much thereof as represents interest shall be applied to the payment of interest which would, apart from this paragraph, have fallen to be paid out of the permanent annual charge for the National Debt.

(6) The Secretary of State and the Central Land Board shall each prepare, in respect of each financial year, in such form and manner and at such times as the Treasury may direct, an account of the sums issued to them respectively out of the Consolidated Fund under subsection (1) of this section, and of any such sums received by them as are mentioned in subsection (4) of this section.

(7) On or before the thirtieth day of November in each year, the Secretary of State and the Central Land Board shall transmit to the Comptroller and Auditor General the account prepared by him or them under the last preceding subsection in respect of the last preceding financial year, and the Comptroller and Auditor General shall examine and certify such account and lay before each House of Parliament copies thereof, together with his report thereon.

(8) There shall be paid out of moneys provided by Parliament—

(a) any sums necessary to enable the Secretary of State to make any payment becoming payable by him under any provision of Part II or IV of this Act;

(b) any administrative expenses of the Secretary of State under this Act;

(c) to such extent as may be sanctioned by the Treasury, any administrative expenses incurred for the purposes of this Act by the Central Land Board with the approval of the Secretary of State;

(d) any sum falling to be paid by the Central Land Board under subsection (2) of section fifty-six of this Act;

(e) any increase attributable to the provisions of this Act in the sums which under any other enactment are payable out of moneys provided.

(9) Subject to the preceding provisions of this section, and to the provisions of section forty-three of this Act, any receipts of the Secretary of State or the Central Land Board under any provision of this Act other than this section shall be paid into the Exchequer.

(10) As soon as practicable after—

(a) the expiration of a period of five years commencing with the date of commencement of this Act; or

- (b) the expiration of the financial year in which the aggregate of all payments made by the Secretary of State under Parts II and IV of this Act reaches two million pounds,

PART VI
—cont.

whichever is the earlier, the Secretary of State shall lay before Parliament a report with respect to those payments and to any sums received by him under this Act other than such sums as are mentioned in subsection (4) of this section.

65. In calculating value for any of the purposes of this Act—
- (a) Rules (2) to (4) of the Rules set out in section two of the Acquisition of Land (Assessment of Compensation) Act, 1919, shall apply with the necessary modifications ;
- (b) if the interest to be valued is subject to a heritable security, it shall be treated as if it were not subject to the security :

General provisions as to calculation of value.

Provided that Rule (3) of those Rules shall not apply for the purposes of the Fourth Schedule to this Act, and paragraph (b) of this section shall not apply for the purposes of subsection (3) of section six of this Act, and that the value of an interest, as calculated for the purposes of section twenty-six of this Act, or of that section as applied by section forty-five of this Act, may be a minus quantity.

66.—(1) Regulations made under this section may make provision as to the exercise of the right to apply for a payment under Part I of this Act, or to claim compensation under Part II or Part V thereof or compensation for depreciation within the meaning of subsection (3) of section forty of this Act, and as to the person to whom any such payment or compensation, or any part thereof, is to be made or paid, and as to application of any such payment or compensation or any part thereof, in cases where, apart from this section, the right to apply for the payment or to claim the compensation, as the case may be, is exercisable by reference to—

Provision for diversion of payments.

- (a) a claim holding which is subject to an assignation in security, or which was so subject at a time specified in the regulations ; or
- (b) an interest in land which is subject to a ground annual or a heritable security or a trust, or which was so subject at a time specified in the regulations ; or
- (c) an interest in land which is the interest of a vassal or a lessee.
- (2) Any regulations made under this section may provide—
- (a) for such conditions as may be prescribed to be attached to the making or paying by virtue of the regulations of any such payment or compensation as aforesaid or any part thereof ;

PART VI
—cont.

- (b) for the application, in a case where any payment or compensation, or any part thereof, is by virtue of the regulations to be made or paid to a superior or to the creditor in a ground annual, of all or any of the provisions of section twenty-five of the War Damage Act, 1943 (which relates to the rights of superiors and creditors in ground annuals as to payments for war damage) subject to such adaptations and modifications as may be prescribed; and
- (c) for any disputes, or any disputes of such classes as may be prescribed, arising out of the regulations to be referred to the Lands Tribunal for determination by that Tribunal.

Application of
miscellaneous
provisions of
principal Act.

67.—(1) Subsections (5) and (6) of section one of the principal Act (which relate to the functions of the Central Land Board) shall have effect in relation to this Act as they have effect in relation to the principal Act.

(2) Subsection (1) of section ninety-nine of the principal Act, in so far as it confers powers of entry on land, shall have effect as if (in addition to the powers so conferred) it conferred power on any person, being an officer of the Valuation Office or a person duly authorised in writing by the Secretary of State, to enter upon any land, at any reasonable time, for the purpose of surveying it, or estimating its value, in connection with—

(a) an application for a payment under Part I of this Act in respect of that land or any other land, or

(b) a claim for compensation under Part II or Part V of this Act in respect of that land or any other land,

and subsections (4) to (7), and subsection (9), of that section shall have effect accordingly.

(3) Section one hundred and one of the principal Act (which relates to the service of notices) shall apply for the purposes of this Act.

(4) Section eighty-eight and subsection (2) of section one hundred and thirteen of the principal Act (which relate to the determination of questions as to special classes of land) shall apply, for the purposes of this Act, for the determination of any question whether land is land of a class specified in the Sixth Schedule to this Act, as they apply for the determination of questions as to classes of land for the purposes of the principal Act.

(5) Section one hundred of the principal Act (which authorises the Secretary of State to hold local inquiries for the purposes of that Act) shall apply for the purposes of this Act.

Provisions as
to regulations.

68.—(1) The Secretary of State may make regulations under this Act for any purpose for which regulations are authorised or required to be made under this Act.

(2) Any power conferred by this Act to make regulations shall be exercisable by statutory instrument.

(3) Any statutory instrument containing regulations made under this Act (except regulations which, by virtue of any provision of this Act, are to be of no effect unless approved by resolution of each House of Parliament) shall be subject to annulment in pursuance of a resolution of either House of Parliament.

PART VI
—cont.

69.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say— Interpretation.

“the Act of 1953” means the Town and Country Planning Act, 1953;

“claim holding” has the meaning assigned to it by section two of this Act;

“compensation calculated on the basis of equivalent reinstatement” means compensation calculated in accordance with Rule (5) of the Rules set out in section two of the Acquisition of Land (Assessment of Compensation) Act, 1919;

“compensation calculated on the basis of prevailing use” means compensation with respect to the calculation of which any of the following provisions applies, that is to say, subsection (5) of section seventy-nine, subsection (4) of section eighty-one, the said subsection (4) as applied by regulations made under section eighty-six, or subsection (4) of section eighty-two, of the principal Act;

“compensation on the basis of existing use” means compensation with respect to the assessment of which the following provisions apply, that is to say, the provisions of the Acquisition of Land (Assessment of Compensation) Act, 1919, as modified by sections forty-eight, fifty and fifty-one of the principal Act, not being compensation calculated on the basis of equivalent reinstatement or on the basis of prevailing use and excluding any compensation for disturbance or for severance or injurious affection;

“compulsory acquisition” does not include the vesting in a person by an Act of Parliament of property previously vested in some other person;

“established claim” and “claim area” have the meanings assigned to them by section one of this Act;

“new development” has the meaning assigned to it by section sixteen of this Act;

“planning decision” has the meaning assigned to it by section sixteen of this Act;

PART VI
—cont.

“prescribed” means prescribed by regulations under this Act ;

“previous apportionment” in relation to an apportionment for any of the purposes of this Act means an apportionment made before the apportionment in question, being—

(a) an apportionment for any of the purposes of this Act as made, confirmed or varied by the Lands Tribunal on a reference thereto ; or

(b) an apportionment for any of the purposes of this Act which might have been referred to the Lands Tribunal by virtue of any provision of this Act but in the case of which the time for such a reference has expired without its being so referred, or which was so referred but in the case of which the reference was withdrawn before the Tribunal gave their decision thereon ; or

(c) an apportionment made by or with the approval of the Central Land Board in connection with the approval by the Board of an assignation of part of the benefit of an established claim under subsection (2) of section two of the Act of 1953 ;

“principal Act” means the Town and Country Planning (Scotland) Act, 1947 ;

“public authority possessing compulsory purchase powers”, in relation to the compulsory acquisition of an interest in land, means the person or body of persons effecting the acquisition, and, in relation to any other transaction relating to an interest in land, means any person or body of persons who could be or have been authorised to acquire that interest compulsorily for the purposes for which the transaction is or was effected :

Provided that in relation to any such transaction to which an executive council or a joint committee constituted by virtue of section thirty-two of the National Health Service (Scotland) Act, 1947, are a party in the exercise of their statutory functions, the said expression shall be construed as including that council or joint committee.

“unexpended balance of established development value” means an amount ascertained in accordance with sections seventeen and eighteen, and “original unexpended balance of established development value” has the meaning assigned to it by section seventeen of this Act ;

“valuable consideration” does not include marriage or a nominal consideration ;

“will” includes a codicil.

(2) Subject to the preceding subsection, and except where the context otherwise requires, expressions used in this Act and in the principal Act have the same meanings in this Act as in that Act.

PART VI
—cont.

(3) As respects references in this Act to planning decisions—

(a) where in consequence of any planning decision a purchase notice has been served under section seventeen of the principal Act and on consideration of that notice the Secretary of State has made any planning decision under that section, such references shall be construed as references to the last mentioned and not to the first mentioned decision ;

(b) without prejudice to the preceding paragraph, in relation to a decision altered on appeal by the reversal or variation of the whole or any part thereof, such references shall be construed as references to the decision as so altered ;

(c) without prejudice as aforesaid, in relation to a decision upheld on appeal, such references shall be construed as references to the decision of the local planning authority and not to the decision of the Secretary of State on the appeal ;

(d) without prejudice as aforesaid, in relation to a decision given on an appeal made by virtue of subsection (3) of section fourteen of the principal Act in default of a decision by the local planning authority, such references shall be construed as references to the decision so given.

(4) For the purposes of this Act—

(a) the time of a planning decision by the Secretary of State such as is referred to in paragraph (a) of the last foregoing subsection shall be taken to be or to have been the time of the decision in consequence of which the purchase notice so referred to was served ; and

(b) without prejudice to the preceding paragraph, the time of a planning decision, in a case where there is or was an appeal, shall be taken to be or to have been the time of the decision as made by the local planning authority, whether or not that decision is or was altered on that appeal by the reversal or variation of the appeal or any part thereof, or, in the case of such a decision as is mentioned in paragraph (d) of the last preceding subsection, the time when by virtue of subsection (3) of section fourteen of the principal Act notification of a decision by the local planning authority is deemed to have been given.

(5) For the purposes of this Act a development charge—

(a) shall be deemed not to have been determined if the determination thereof ceased to have effect by virtue of subsection (2) of section seventy of the principal Act,

PART VI
—*cont.*

or if, by virtue of subsection (1) of section one of the Act of 1953, the charge is not payable, or if any sum paid in respect of the charge became repayable under subsection (5) of section one of the Act of 1953 ;

- (b) shall be deemed to have become payable notwithstanding any agreement of the Central Land Board to a postponement of the payment of the charge, if the whole or part of the charge would have been payable but for that agreement ;

and references in this Act to a determination of the Central Land Board that a development charge was payable, or as to the amount of a development charge, shall, in a case where the Board subsequently varied their determination, be construed as references to that determination as so varied.

(6) References in this Act to the Lands Tribunal are references to the Lands Tribunal for Scotland :

Provided that until sections one to three of the Lands Tribunal Act, 1949, come into force as regards Scotland this subsection shall have effect as if for the reference to the Lands Tribunal for Scotland there were substituted a reference to an official arbiter appointed under the Acquisition of Land (Assessment of Compensation) Act, 1919, and sections three, five and six of that Act shall apply, subject to any necessary modifications, in relation to the determination of any question, under this Act, by an arbiter so appointed.

(7) References in this Act to the local planning authority in relation to any land are references to the local planning authority for the district in which the land is situated.

(8) References in this Act to any other enactment shall, except where the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment, including this Act.

(9) Any reference in this Act to the *dominium utile* in relation to land which is not held on feudal tenure shall be construed as a reference to the interest in the land of the owner thereof.

(10) Any reference in this Act to an assignation in security shall be construed as including a reference to an *ex facie* absolute assignation qualified as a security by a collateral agreement.

Minor and
consequential
amendments
and repeals.

70.—(1) Subject to the provisions of this section, the enactments specified in the Eighth Schedule to this Act shall have effect subject to the amendments specified in that Schedule, being minor amendments or amendments consequential on the provisions of this Act.

(2) Subject to the provisions of this section, the enactments specified in the Ninth Schedule to this Act are hereby repealed to the extent specified in relation thereto in the third column of that Schedule.

(3) Subject to the provisions of subsection (3) of section thirty-two of this Act, the amendment by virtue of this section of the Third Schedule to the principal Act shall not have effect for the purposes of the following provisions of that Act, that is to say section fifty-one (which relates to the assessment of compensation for the compulsory acquisition of requisitioned land), section fifty-eight (which relates to the ascertainment of development values), section sixty-six (which relates to development charges) and subsection (1) of section eighty-five (which relates to the calculation of the development value of requisitioned land).

(4) As respects amendments and repeals relating to sections ninety and ninety-one of the principal Act, the provisions of this section shall have effect subject to section fifty-three of this Act.

(5) The repeal by virtue of this section of the proviso to subsection (1) of section twenty of the principal Act shall not affect compensation in respect of any order made under section nineteen of that Act before the commencement of this Act.

(6) References in any local Act, including any such Act passed at any time during the present Session of Parliament, to Part II of the Act of 1945, or to Part IV of the principal Act shall be construed in relation to compensation payable on a compulsory acquisition of land thereunder in pursuance of a notice to treat served after the commencement of this Act as including a reference to Part III of this Act:

Provided that nothing in any such Act shall, by virtue of this subsection, be construed as excluding the application of the said Part III in relation to compensation payable in respect of any compulsory acquisition of land.

71.—(1) This Act may be cited as the Town and Country Planning (Scotland) Act, 1954, and the Town and Country Planning (Scotland) Acts, 1947 and 1951, the Town and Country Planning Act, 1953, in its application to Scotland, and this Act, may be cited together as the Town and Country Planning (Scotland) Acts, 1947 to 1954.

Short title,
citation,
commencement
and extent.

(2) This Act shall come into operation on such day as the Secretary of State may by order appoint, and different days may be appointed for different purposes of this Act; and if different days are so appointed, references in any provision of this Act to the commencement of this Act shall be construed as references to the time at which that provision comes into operation.

(3) Any order made under the last preceding subsection shall be made by statutory instrument and, at any time before the day appointed thereby, may be revoked or varied by a subsequent order under that subsection.

(4) This Act shall extend to Scotland only.

SCHEDULES

Sections 1, 6.

FIRST SCHEDULE

MODIFICATION OF PROVISIONS OF PRINCIPAL ACT AS TO
DEVELOPMENT VALUE*Modification in certain cases where land acquired by
public authority*

1.—(1) The three next following paragraphs shall have effect where an interest in land was compulsorily acquired by a public authority possessing compulsory purchase powers in pursuance of a notice to treat served on or after the date of the passing of the principal Act and before the first day of July, nineteen hundred and forty-eight, and the compensation paid did not exceed the amount provided for by section fifty-two of the principal Act (which provided for compensation on the basis of the existing use value of the land).

(2) The said paragraphs shall also have effect where an interest in land was purchased by such an authority in pursuance of a contract made on or after the date of the passing of the principal Act and before the said first day of July, at a price which did not exceed the amount of the compensation which would have been payable in accordance with the said section fifty-two if the transaction had been a compulsory acquisition.

(3) In those paragraphs the expression "the relevant land" means the land an interest in which was acquired or purchased as mentioned in either of the preceding sub-paragraphs, and the expression "the relevant interest" means the interest which was so acquired or purchased.

2. Where any works for the erection or alteration of a building had been begun but not completed on the relevant land before the notice to treat was served or the contract made, as the case may be, subsection (3) of section seventy-five of the principal Act (which provides that the development value of land containing unfinished buildings shall be calculated as if the buildings were completed) shall not apply for the purpose of determining the development value of the relevant interest.

3. Where after the notice to treat was served or the contract made, as the case may be, the Secretary of State issued in respect of the relevant land or any part thereof a certificate under section seventy-seven of the principal Act (which, as respects land certified as ripe for development before the said first day of July, provides that the prospective value of the development for which the land was ripe shall be disregarded), the development value of the relevant interest shall be determined as if the certificate had not been issued.

4. Where the acquisition or purchase was not completed until after the said first day of July, but before that day the acquiring

authority had carried out on the relevant land works for the erection or alteration of a building, or had on the relevant land constructed roads or provided sewers or other services, the provisions of subsection (2) of section eighty-seven of the principal Act (which makes special provision as to compulsory acquisitions initiated and completed between the passing of that Act and the first day of July, nineteen hundred and forty-eight), and those provisions as applied by subsection (4) of that section (which relates to acquisitions by agreement by public authorities), shall apply as if they extended to acquisitions completed after the said first day of July in pursuance of a notice to treat served, or a contract made, after the passing of the principal Act but before that day:

1st SCH.
—cont.

Provided that where the acquiring authority had carried out on the relevant land any such operations as aforesaid before the service of the notice to treat, or the making of the contract, as the case may be, those provisions shall so apply as if, in paragraph (a) of the said subsection (2), the reference to the state of the land as it was immediately before the date of the notice to treat were a reference to the state of the land immediately before those operations were begun.

5. Subsection (3) of section eighty-seven of the principal Act (which requires development values to be adjusted where an interest in land is compulsorily acquired), and that subsection as applied by subsection (4) of that section, shall not apply to any acquisition of an interest in land in pursuance of a notice to treat served, or a contract made, after the commencement of this Act.

Requisitioned land

6. Where land was requisitioned land on the first day of July, nineteen hundred and forty-eight, and during the period of requisition a value payment under the War Damage Act, 1943, became payable in respect of that land, section eighty-five of the principal Act (which provides for calculating the development value of an interest in requisitioned land by reference to the state of the land immediately before the beginning of the period of requisition) shall apply for determining the development value of any interest in that land, with the modification that regard shall be had, not to the actual state of the land immediately before the beginning of the period of requisition, but to what that state would have been at the beginning of that period if the war damage had occurred immediately before the beginning thereof.

7. Where in the case of any requisitioned land the period of requisition ended before the said first day of July but on or after the date of the coming into operation of section ten of the Requisitioned Land and War Works Act, 1948 (which provides for restricting compensation for damage to the land to an amount calculated by reference to the existing use value of the land at the time when it was requisitioned), the development value of any interest in that land shall be determined as if the land had continued to be requisitioned land on the said first day of July and section eighty-five of the principal Act had applied to it accordingly.

1ST SCH.
—cont.*Compensation for abortive expenditure*

8. Where the development value of an interest in land, determined apart from this paragraph, would be wholly or partly attributable to the carrying out of work which was subsequently rendered abortive—

- (a) by an order made before the commencement of this Act whereby permission to develop land was revoked or modified, or
- (b) by a planning decision made before the commencement of this Act whereby permission to complete buildings or works was refused, or was granted subject to conditions,

and compensation has become payable under subsection (1) of section twenty of the principal Act, or, as the case may be, under subsection (1) of section seventy-six of that Act, in respect of expenditure incurred before the first day of July, nineteen hundred and forty-eight, being expenditure so incurred wholly or partly in the carrying out of that work, then, in determining that development value, there shall be deducted an amount equal to so much of the compensation as was attributable to that work.

Other modifications

9. In determining the development value of an interest in land—

- (a) no account shall be taken of any enforcement notice taking effect after the commencement of this Act by virtue of section seventy-two of the principal Act (which relates to development contravening planning control under previous enactments);
- (b) account shall be taken of any enforcement notice taking effect by virtue of that section before the commencement of this Act, notwithstanding that the notice took effect after that development value would apart from this paragraph have been deemed to be finally determined.

10. Where, in determining the development value of an interest in land before the commencement of this Act, Rule (3) of the Rules set out in section two of the Acquisition of Land (Assessment of Compensation) Act, 1919, was disregarded, notwithstanding the provisions of subsection (1) of section fifty-nine of the principal Act (which requires that Rule, together with other rules, to be applied in determining development values), the said subsection (1) shall apply, and be deemed always to have applied, in relation to the determination of the development value of that interest, as if the reference in that subsection to the said Rule (3) had been omitted.

11. Where a claim was made for a payment under the scheme referred to in subsection (2) of section one of this Act, but payment in respect of the interest to which the claim related would have been excluded by section eighty-two of the principal Act by virtue of a direction given under subsection (5) of the said section eighty-two, the Secretary of State, on application made to him at any time within six months after the commencement of this Act, may direct that the provisions of the principal Act, and of this Act, shall have effect in relation to that claim as if the direction under subsection (5) of the said section eighty-two had not been given.

SECOND SCHEDULE

Sections 2, 51,
54.CLAIMS ASSIGNED TO CENTRAL LAND BOARD AS SECURITY
FOR DEVELOPMENT CHARGES

1.—(1) In this Schedule, and in the other provisions of this Act, references to the assignation of a claim holding to the Central Land Board are references to any transaction whereby—

- (a) the holder of the claim holding assigned it to the Board as security, or part of the security, for one or more development charges determined, or thereafter to be determined, by the Board, or
- (b) the holder and the Board agreed that a development charge determined by the Board should be set off against any payment which might thereafter become payable to the holder by reference to that holding, or
- (c) the Board refrained from determining a development charge, which would otherwise have fallen to be determined by them, in consideration of an assignation of the holding (with or without other claim holdings).

(2) All assignations of claim holdings to the Central Land Board made by the same person, whether or not made at the same time, other than any assignation to which sub-paragraph (1) of paragraph 2 of this Schedule applies, shall for the purposes of this Schedule be treated collectively as a single assignation made at the time when the last of those assignations was made.

(3) Where a development charge covered by an assignation to the Central Land Board was determined in respect of land which constitutes the whole or part of the area of a claim holding not comprised in the assignation, being a holding of which the holder is the person who would, apart from the assignation, be liable to pay the unpaid balance of the development charge, then, for the purposes of this Schedule, that claim holding shall be deemed to be comprised in the assignation.

(4) In this Schedule references to the determination of a development charge in respect of any land are references to a determination of the Central Land Board that the charge was payable in respect of the carrying out of operations in, on, over or under that land, or in respect of the use of that land.

(5) For the purposes of this Schedule the amount of a development charge—

- (a) in a case where the Central Land Board determined that amount as a single capital payment, shall be taken to have been the amount of that payment ;
- (b) in a case where the Board determined that amount otherwise than as a single capital payment, shall be taken to have been the amount of the single capital payment which would have been payable if the Board had determined the amount as such a payment ;

and references in this Schedule to the unpaid balance of a development charge are references to the amount of the charge, if no sum was actually paid to the Board on account of the charge, or, if any sum was so paid, are references to the amount of the charge reduced by the amount or aggregate amount of the sum or sums so paid, other than any sum paid by way of interest.

2ND SCH.
—cont.

(6) In relation to the assignation of a claim holding to the Central Land Board, references in this Schedule to a development charge covered by the assignation are references to a development charge the payment of which was secured, or partly secured, by the assignation, or, as the case may be, which was agreed to be set off against any payment which might become payable by reference to the holding.

2.—(1) Where a claim holding was assigned to the Central Land Board in accordance with the special arrangements relating to owners of single house plots, the claim holding shall, subject to the next following sub-paragraph, be deemed to have been extinguished as from the time when it was assigned to the Board.

(2) Where a claim holding (in this sub-paragraph referred to as “the original holding”) was assigned as mentioned in the preceding sub-paragraph, but was so assigned by reference to a plot of land which did not extend to the whole of the area of the original holding, the preceding sub-paragraph shall not apply, but there shall be deemed to have been substituted for the original holding, as from the time of the assignation, a claim holding with an area consisting of so much of the area of the original holding as was not comprised in that plot of land, and with a value equal to that fraction of the value of the original holding which then attached to so much of the area of the original holding as was not comprised in that plot.

3. Without prejudice to the last preceding paragraph, where an assignation to the Central Land Board comprised one or more claim holdings, and the unpaid balance of the development charge covered by the assignation, or (if more than one) the aggregate of the unpaid balances of the development charges so covered, was equal to or greater than the value of the claim holding, or the aggregate value of the claim holdings, as the case may be, the holding or holdings shall be deemed to have been extinguished as from the time of the assignation.

4. Where an assignation to the Central Land Board comprised only a single holding with an area of which every part either consisted of, or formed part of, the land in respect of which some development charge covered by the assignation was determined, and the last preceding paragraph does not apply, the unpaid balance of the development charge covered by the assignation, or, if more than one, the aggregate of the unpaid balances of all the development charges covered by the assignation, shall be deducted from the value of the holding, and the value of that holding shall be deemed to have been reduced accordingly as from the time of the assignation.

5.—(1) The provisions of this paragraph shall have effect in the case of an assignation of one or more claim holdings to the Central Land Board to which neither of the two last preceding paragraphs applies.

(2) Any claim holding comprised in the assignation with an area of which every part either consisted of, or formed part of, the land in respect of which some development charge covered by the assignation was determined shall be allocated to the development charge in question or, if more than one, to those development charges collectively.

(3) Any claim holding comprised in the assignation with an area part of which did, and part of which did not, consist of, or form part of, such land as aforesaid shall be treated as if, at the time of the assignation, the claim holding (in this sub-paragraph referred to as "the parent holding") had been divided into two separate claim holdings, that is to say—

2ND SCH.
—cont.

(a) a claim holding with an area consisting of so much of the area of the parent holding as consisted of, or formed part of, such land as aforesaid and with a value equal to that fraction of the value of the parent holding which then attached to that part of the area of the parent holding ; and

(b) a claim holding with an area consisting of the residue of the area of the parent holding and with a value equal to that fraction of the value of the parent holding which then attached to the residue of the area of the parent holding,

and the claim holding referred to in head (a) of this sub-paragraph shall be allocated to the development charge in question, or, if more than one, to those development charges collectively.

(4) Paragraph 3 or 4 of this Schedule shall then apply in relation to each claim holding, if any, allocated in accordance with the two last preceding sub-paragraphs to any development charge, or to any development charges collectively, as if the assignation had comprised only that claim holding and had covered only that development charge or those development charges.

(5) If after the application of the preceding provisions of this paragraph there remains outstanding any claim holding not allocated in accordance with those provisions or any claim holding so allocated which has been reduced in value but not extinguished, an amount equal to the aggregate of—

(a) the unpaid balance of any development charge covered by the assignation to which no claim holding was allocated as aforesaid ; and

(b) the amount, if any, by which the value of any claim holding allocated as aforesaid which is deemed to have been extinguished falls short of the unpaid balance of the development charge, or the aggregate of the unpaid balances of the development charges, to which it was so allocated,

shall be deducted from the value of the claim holding so remaining outstanding, or, if more than one, shall be deducted rateably from the respective values of those claim holdings, and the value of any such holding shall be deemed to have been reduced accordingly as from the time of the assignation.

THIRD SCHEDULE

Section 2.

PAYMENTS UNDER SECTION FIFTY-SIX OF PRINCIPAL ACT

1.—(1) This Schedule applies to payments which have become payable, or become payable after the commencement of this Act, by virtue of the scheme made under section fifty-six of the principal Act.

3RD SCH.
—cont.

(2) In relation to such a payment, the expression "the payment area" in this Schedule means the land in respect of which the payment became or becomes payable, and references to the amount of the payment shall be construed as references to the principal amount thereof, excluding any interest payable thereon, under sub-section (3) of section sixty-two of the principal Act.

(3) In this Schedule the expression "the date of the scheme" means the date of the coming into operation of the scheme made under the said section fifty-six.

2. The provisions of this Schedule shall have effect where a payment to which this Schedule applies has become, or becomes, payable in respect of an interest in land, and a claim holding related, or would apart from this Schedule have related, to the like interest in the whole or part of that land with or without any other land.

3. If the payment area is identical with the area of the claim holding, then—

(a) if the amount of the payment is equal to the value of the claim holding, the claim holding shall be deemed to have been extinguished as from the date of the scheme ;

(b) if the amount of the payment is less than the value of the claim holding, the value of the claim holding shall be deemed to have been reduced, as from the date of the scheme, by the amount of the payment.

4.—(1) If the payment area forms part of the area of the claim holding, the holding (in this paragraph referred to as "the parent holding") shall be treated, as from the date of the scheme, as having been divided into two claim holdings, that is to say—

(a) a claim holding with an area consisting of that part of the area of the parent holding which constituted the payment area, and with a value equal to that fraction of the value of the parent holding which attached to that part of the area of the parent holding, and

(b) a claim holding with an area consisting of the residue of the area of the parent holding, and with a value equal to that fraction of the value of the parent holding which attached to the residue of the area of the parent holding.

(2) Where the preceding sub-paragraph applies, the last preceding paragraph shall have effect in relation to the claim holding referred to in head (a) of the preceding sub-paragraph as if it were the parent holding.

5. If the payment area includes the area of the claim holding together with the other land, paragraph 3 of this Schedule shall apply as if—

(a) the payment area had been identical with the area of the claim holding, but

(b) the amount of the payment had been so much of the actual amount thereof as might reasonably be expected to have been attributed to the area of the claim holding if, under the scheme made under section fifty-six of the principal

Act, the authority determining the amount of the payment had been required (in accordance with the same principles as applied to the determination of that amount) to apportion it as between the area of the claim holding and the rest of the payment area.

3RD SCH.
—cont.

6. If the payment area includes part of the area of the claim holding, together with other land not comprised in the area of the claim holding,—

- (a) paragraph 4 of this Schedule shall apply as if the part of the payment area comprised in the area of the claim holding had been the whole of the payment area, and
- (b) the last preceding paragraph shall apply as if the part of the area of the claim holding comprised in the payment area had been the whole of the area of the claim holding.

FOURTH SCHEDULE

Sections 18, 65.

CALCULATION OF VALUE OF PREVIOUS DEVELOPMENT OF LAND

1. Where under any provision of this Act the value of any development of land initiated before a time referred to in that provision has to be ascertained with reference to that time, the value of the development shall be calculated in accordance with the provisions of this Schedule.

2. The said value shall be calculated by reference to prices current at the time in question—

- (a) as if the development had not been initiated but the land had remained in the state in which it was immediately before the development was initiated, and
- (b) on the assumption that (apart from the principal Act) the development could at that time lawfully be carried out,

and shall be taken to be the difference between the value which in those circumstances the land would have had at that time if permission for that development had been granted unconditionally immediately before that time and the value which in those circumstances the land would have had at that time if permission for that development had been applied for and refused immediately before that time, and it could be assumed that permission for that development, and any other new development of that land, would be refused on any subsequent application:

Provided that, if the development involved the clearing of any land, the reference in sub-paragraph (a) of this paragraph to the state of the land immediately before the development shall be construed as a reference to the state of the land immediately after the clearing thereof but before the carrying out of any other operations.

3. If the development was initiated in pursuance of planning permission granted subject to conditions, the last preceding paragraph shall apply as if the reference to the granting of permission unconditionally were a reference to the granting of permission subject to the like conditions.

4TH SCH.
—cont.

4. If the permission referred to in the last preceding paragraph was granted subject to conditions which consisted of, or included, a requirement expressed by reference to a specified period, the reference in that paragraph to the like conditions shall be construed, in relation to the condition imposing that requirement, as a reference to a condition imposing the like requirement in respect of a period of like duration beginning at the time in question.

5. In the application of the preceding provisions of this Schedule to development initiated, but not completed, before the time in question, references to permission for that development shall be construed as references to permission for so much of that development as had been carried out before that time.

Section 32.

FIFTH SCHEDULE

APPORTIONMENT OF UNEXPENDED BALANCE OF
ESTABLISHED DEVELOPMENT VALUE

Determination of relevant area

1.—(1) Where, in the case of a compulsory acquisition to which Part III of this Act applies, any area of the relevant land which, immediately before the service of the notice to treat, had an unexpended balance of established development value does not satisfy the condition set out in the next following sub-paragraph, that area shall be treated as divided into as many separate areas as may be requisite to ensure that each of those separate areas satisfies that condition.

(2) The condition referred to in the preceding sub-paragraph is that all the interests (other than excepted interests) subsisting in the area in question subsist in the whole thereof.

(3) Any area of the relevant land which has an unexpended balance of established development value and which complies with the condition set out in the last preceding sub-paragraph is in this Schedule referred to in relation to the interests subsisting therein as “the relevant area”, and the subsequent provisions of this Schedule shall have effect separately in relation to each relevant area.

Preliminary calculations

2. In the case of the interest of the lessor under any lease there shall be calculated the capital value as at the time immediately before the service of the notice to treat of the right to receive a sum equal to the unexpended balance of established development value of the relevant area at that time, but payable at the expiration of the lease; and the amount so calculated in the case of any such interest is in this Schedule referred to as “the reversionary development value” of that interest.

Apportionment of unexpended balance between interests

3. Where two or more interests, other than excepted interests, subsist in the relevant area, the portion of the unexpended balance of established development value of the relevant area attributable to

each respectively of those interests shall be taken to be the following, that is to say—

5TH SCH.
—cont.

(a) in the case of the interest of the lessor under any lease, so much, if any, of the reversionary development value of that interest, as remains after the deduction therefrom of the aggregate of—

(i) the reversionary development value of the interest of the person, if any, to whom that lessor stands in the relationship of lessee ; and

(ii) in a case where the restricted value of the first-mentioned interest is a minus quantity, an amount equal to that minus quantity ;

(b) in the case of the interest of the lessee under any lease which is not subject to a sub-lease, so much, if any, of the said balance as remains after the deduction therefrom of the aggregate of—

(i) the reversionary development value of the interest of the lessor under the lease, and

(ii) in a case where the restricted value of the first-mentioned interest is a minus quantity, an amount equal to that minus quantity.

Interpretation

4. In this Schedule the expression “lease” does not include any lease in the case of which the interest of the lessee is an excepted interest.

SIXTH SCHEDULE

Sections 35, 67.

SPECIAL CLASSES OF LAND FOR WHICH PLANNING PERMISSION IS TO BE INCLUDED IN COMPENSATION ON COMPULSORY ACQUISITION

1. Land which, on the date of service of the notice to treat, is land to which section seventy-nine of the principal Act applies.

2. Land acquired by a local planning authority under Part I of the Town and Country Planning (Scotland) Act, 1945, or under Part III of the principal Act, for the purposes of the development or redevelopment of any area as a whole and land appropriated by a local planning authority for those purposes where the relevant interest is the interest of that authority in that land.

3. Land acquired by a development corporation under the New Towns Act, 1946, where the relevant interest is the interest of that corporation in that land.

4. Land which, on the date of service of the notice to treat, is operational land of statutory undertakers, where the relevant interest is the interest of those undertakers in that land.

5. Land which, on the date of service of the notice to treat, is land of the National Coal Board of a class specified in regulations made under section eighty-six of the principal Act, where the relevant interest is the interest of the National Coal Board in that land.

6TH SCH.
—cont.

6. Land to which section eighty-two of the principal Act applies on the date of service of the notice to treat and applied on the first day of July, nineteen hundred and forty-eight.

7. Land which would have been such land as is referred to in any of the preceding paragraphs if the notice to treat had been served on the date of the granting of the planning permission in question.

8. Land to which, by virtue of a direction of the Secretary of State under subsection (5) of section eighty-two of the principal Act, any of the provisions of that section applied on the date of the granting of the planning permission in question.

Sections 37, 38.

SEVENTH SCHEDULE

COMPENSATION, ON COMPULSORY ACQUISITION, FOR SEVERANCE AND INJURIOUS AFFECTIO

1. In this Schedule the following expressions have the following meanings respectively—

“the compensation” means compensation such as is mentioned in paragraph (a) of section thirty-seven of this Act ;

“the interest affected” means the interest in respect of which the compensation falls to be assessed, in so far as that interest subsists in land, other than the relevant land, which is affected by the injurious act or event ;

“the land affected” means the land in which the interest affected subsists ;

“the injurious act or event” means the act or event in consequence of which the compensation falls to be assessed ;

“other interest affected” means an interest other than the interest affected which subsists in the whole or part of the land affected and in respect of which compensation such as is mentioned in paragraph (a) of section thirty-seven of this Act is payable by virtue of the injurious act or event ;

“qualified land” means land which immediately before the injurious act or event has an unexpended balance of established development value ;

“the loss of development value” means the amount, if any, by which the value of the interest affected immediately before the injurious act or event, if calculated on the assumption that, until such time as the land affected might reasonably be expected to become ripe for new development, no use whatever could be made of that land, would exceed the value of that interest immediately after that act or event if calculated on the like assumption ;

“the loss of immediate value” means the amount, if any, by which the difference in the value of the interest affected immediately before and immediately after the injurious act or event exceeds the loss of development value ;

“the depreciation in restricted value”, in relation to an interest, means the amount, if any, by which the value of the interest, immediately after the injurious act or event, would be less than the value of that interest immediately before the act or event, if both values were calculated on the assumption that planning permission would be granted for development of any class specified in the Third Schedule to the principal Act but would not be granted for any other development.

2. If neither the land affected, taken as a whole, nor any part of the land affected is qualified land, the amount of the compensation shall be the loss of immediate value.

3. If the land affected, taken as a whole, satisfies the following conditions, that is to say—

- (a) that it is qualified land ; and
- (b) that no other interest affected subsists in a part only thereof, the amount of the compensation shall be the aggregate of the loss of immediate value and whichever is the less of the following amounts, that is to say—
 - (i) the loss of development value ; or
 - (ii) the amount of the unexpended balance of established development value of the land affected immediately before the injurious act or event :

Provided that if one or more other interests affected subsist in the whole of the land affected, and the aggregate of the loss of development value of the interest affected and of any such other interest or interests exceeds the amount mentioned in sub-paragraph (ii) of this paragraph, that amount shall be allocated between the interest affected and any such other interest or interests in proportion to the loss of development value of each of them respectively, and the amount of compensation payable in respect of the interest affected in addition to the loss of immediate value shall be the sum so allocated to that interest.

4. If the land affected, taken as a whole, does not satisfy the conditions mentioned in the last preceding paragraph, then, for the purpose of assessing the compensation in respect of the interest affected—

- (a) the loss of development value of the interest affected and of any other interest affected shall first be ascertained with reference to the whole of the land affected in which the interest in question subsists ;
- (b) the land affected shall then be treated as divided into as many parts as may be requisite to ensure that each such part consists of land which either satisfies the conditions aforesaid or is not qualified land ; and
- (c) the loss of development value of each of the interests aforesaid, ascertained as aforesaid, shall then be apportioned between the said parts according to the nature of those parts and the effect of the injurious act or event in relation to each of them,

7TH SCH.
—cont.

and the compensation payable in respect of the interest affected in addition to the loss of immediate value shall be the aggregate of the amounts which would be so payable by virtue of the last preceding paragraph if each such part had been the whole of the land affected.

5. In calculating value for any of the purposes of the preceding provisions of this Schedule in their application to compensation for damage to land not held with the relevant land, being damage sustained by reason of the construction or erection of works on the relevant land, no account shall be taken of the use, or the prospective use, of those works.

6. Where—

- (a) the compensation includes an amount paid in respect of an interest in any land other than the relevant land ; or
- (b) on such a sale as is mentioned in paragraph (b) of sub-section (1) of section thirty-eight of this Act, the price paid included an amount in respect of damage sustained by an interest in land other than, but held with, the land in which the interest sold subsisted, being damage sustained by reason of the severance of the land or by reason that the interest in that other land was injuriously affected,

and the said amount exceeds what was, or in the appropriate circumstances (as defined in the said section thirty-eight) would have been, the loss of immediate value of that interest, then, for the purpose of determining whether that other land or any part thereof has an unexpended balance of established development value at any subsequent time, there shall be deducted from the original unexpended balance of established development value of that other land an amount equal to the excess, or so much thereof as was, or in the appropriate circumstances (defined as aforesaid) would have been, calculated by reference to that balance, and the original balance of that land or that part thereof shall be treated as having been reduced or extinguished accordingly immediately before that subsequent time.

7. If in a case such as is mentioned in paragraph 2, 3 or 4 of this Schedule, or sub-paragraph (a) or (b) of the last preceding paragraph, so much, if any, of the compensation mentioned in that paragraph, or, as the case may be, of the amount mentioned in that sub-paragraph, as was, or in the appropriate circumstances (as defined in section thirty-eight of this Act) would have been, attributable to the loss of immediate value of the interest in question was or would have been less than the depreciation in restricted value of that interest, then, (whether or not the land in question or any part thereof would apart from the provisions of this paragraph have had an original unexpended balance of established development value) for the purpose of determining whether at any time after the acquisition or sale the land in question or any part thereof has such a balance, but for no other purpose, it shall be deemed that immediately after the commencement of this Act a claim holding subsisted with an area consisting of the land in question and a value equal to seven-eighths of the amount of the difference.

EIGHTH SCHEDULE

Section 70.

ENACTMENTS AMENDED

The Town and Country Planning (Scotland) Act, 1947
(10 & 11 Geo. 6. c. 53)

1. In section eighteen, in subsection (4), at the end there shall be added the words "if Part III of the Town and Country Planning (Scotland) Act, 1954, had not been passed".

2. In section ninety-one, in subsection (3), for the words "either of the two last foregoing sections", there shall be substituted the words "section eighty-nine of this Act".

3. The following subsection shall be substituted for subsection (2) of section one hundred and eight:—

"(2) For the purposes of paragraph 1 of Part II of the said Third Schedule—

(a) the erection on land within the curtilage of any such building as is mentioned in that paragraph of an additional building to be used in connection with the original building shall be treated as the enlargement of the original building; and

(b) where any two or more buildings comprised in the same curtilage are used as one unit for the purposes of any institution or undertaking, the reference in the said paragraph 1 to the cubic content of the original building shall be construed as a reference to the aggregate cubic content of those buildings."

4. In the Third Schedule—

(a) in paragraph 1 of Part I, after the words "such building)" there shall be inserted the words "and of any other building in existence at a material date, being a building erected after the appointed day";

(b) in paragraph 2 of Part I and paragraphs 2 and 7 of Part II, for the words "on the appointed day" there shall in each case be substituted the words "at a material date";

(c) in paragraph 5 of Part II, for the words "on the appointed day" there shall be substituted, in the first place where those words occur, the words "at a material date" and, in the second place where those words occur, the words "on and at all times since the appointed day";

(d) in paragraph 6 of Part II, for the words "on the appointed day" in the first place where they occur there shall be substituted the words "at a material date", and after the

8TH SCH.
—cont.

said words in the second place where they occur there shall be inserted the words “or on the day thereafter when the buildings began to be so used”;

- (e) after paragraph 7 of Part II, there shall be added the following—

“PART III

1. In this Schedule, the expression “at a material date” means at either of the following dates, that is to say—

(a) the appointed day ; or

(b) the date by reference to which this Schedule falls to be applied in the particular case in question :

Provided that sub-paragraph (b) of this paragraph shall not apply in relation to any building, works or use of land in respect of which, whether before or after the date mentioned in that sub-paragraph, an enforcement notice served before that date has become or becomes effective.

2. Where, after the appointed day, any buildings or works have been erected or constructed, or any use of land has been instituted, and any condition imposed under Part II of this Act limiting the period for which those buildings or works may be retained or that use may be continued is of effect in relation thereto, this Schedule shall not operate except as respects the period specified in that condition.”

The Town and Country Planning Act, 1953
(1 & 2 Eliz. 2. c. 16)

5. In section two, in paragraph (b) of the proviso to subsection (1), for the words “pending the coming into operation of such an Act” there shall be substituted the words “subject to the provisions of the Town and Country Planning (Scotland) Act, 1954.”

NINTH SCHEDULE
ENACTMENTS REPEALED

Section 70.

Session and Chapter	Short Title	Extent of Repeal
10 & 11 Geo. 6. c. 53.	The Town and Country Planning (Scotland) Act, 1947	In section twenty, the proviso to subsection (1); subsection (5), and in subsection (6) the words from "or a" to "section eighteen of this Act" and the words from "or as" to "said section eighteen"; subsections (3) and (4) of section eighty; section ninety; in section ninety-one, subsection (1), and the words "or section ninety" in subsection (2); in section one hundred and thirteen, subsection (4).
14 & 15 Geo. 6. c. 60.	The Mineral Workings Act, 1951.	Sections twenty-nine and thirty; in section thirty-one, subsection (1).
1 & 2 Eliz. 2. c. 16.	The Town and Country Planning Act, 1953.	In section two, in the proviso to subsection (1), paragraph (a), and in paragraph (b) the word "but" and sub-paragraph (ii); and in section three, paragraph (c) of subsection (1) and subsections (5) to (7).

— — — — —
Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Clauses Consolidation (Scotland) Act, 1845	8 & 9 Vict. c. 19.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Mines (Working Facilities and Support) Act, 1923	13 & 14 Geo. 5. c. 20.
Restriction of Ribbon Development Act, 1935 ...	25 & 26 Geo. 5. c. 47.
Compensation (Defence) Act, 1939	2 & 3 Geo. 6. c. 75.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
War Damage Act, 1943	6 & 7 Geo. 6. c. 21.
Town and Country Planning (Scotland) Act, 1945	8 & 9 Geo. 6. c. 33.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
National Health Service (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 27.
Transport Act, 1947	10 & 11 Geo. 6. c. 49.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.
Requisitioned Land and War Works Act, 1948 ...	11 & 12 Geo. 6. c. 17.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Housing (Scotland) Act, 1950	14 Geo. 6. c. 34.
Mineral Workings Act, 1951	14 & 15 Geo. 6. c. 60.
Town and Country Planning Act, 1953	1 & 2 Eliz. 2. c. 16.
Town and Country Planning Act, 1954	2 & 3 Eliz. 2. c. 72.

3 ELIZ. 2

CHAPTER 1*National Insurance Act, 1954***ARRANGEMENT OF SECTIONS****Section**

1. Higher rates, etc., of contributions and benefit under Industrial Injuries Act.
2. Higher rates, etc., of contributions and benefit under National Insurance Act, 1946, and additional contributions from Exchequer.
3. Consequential amendments.
4. Supplementary provisions as to certain classes of persons.
5. Provisions as to appointed day.
6. Effect of awards made before, or in respect of the period beginning before, appointed or prescribed day.
7. Special transitional provisions as to maternity grant and home confinement grant.
8. Expenses.
9. Regulations.
10. Short title, construction, citation and extent.

SCHEDULES:

First Schedule—Table to be substituted in Part I of Second Schedule to Industrial Injuries Act.

Second Schedule—Amendments of Benefit Provisions of Industrial Injuries Act.

Third Schedule—Provisions to be substituted in First Schedule to National Insurance Act, 1946.

Contribution Rates.

Part I—Employed Persons.

Part II—Employers.

Part III—Self-Employed Persons.

Part IV—Non-Employed Persons.

Part V—Exchequer Supplement.

Fourth Schedule—Provisions to be substituted in Second Schedule to National Insurance Act, 1946.

Part I—Rates of Periodical Benefits and of Increases for Dependents.

Part II—Amount of Grants.

Fifth Schedule—Consequential Amendments of Industrial Injuries Act, National Insurance Act, 1946, National Insurance Act, 1951, and National Insurance Act, 1953.

An Act to increase contributions and benefit under the National Insurance (Industrial Injuries) Acts, 1946 to 1953, and the National Insurance Acts, 1946 to 1953, and for purposes connected with the matters aforesaid.
[22nd December, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In Part I of the Second Schedule to the National Insurance (Industrial Injuries) Act, 1946 (hereafter in this Act referred to as "the Industrial Injuries Act"), the table of rates of contributions set out in the First Schedule to this Act shall be substituted, as from the appointed day, for the table of rates of contributions set out in the First Schedule to the Family Allowances and National Insurance Act, 1952. Higher rates, etc., of contributions and benefit under Industrial Injuries Act.

(2) The provisions of the Industrial Injuries Act specified in the first column of the Second Schedule to this Act (which relate to the rates and amounts of benefit described in the second column of that Schedule) shall be amended, as from the appointed day, by substituting for the words and figures set out in the third column of that Schedule the corresponding words and figures set out in the fourth column thereof.

2.—(1) In the First Schedule to the National Insurance Act, 1946, the provisions set out in the Third Schedule to this Act (which relate to weekly rates of contributions payable by insured persons and employers and the amounts of the Exchequer supplement) shall be substituted, as from the appointed day, for the provisions set out in the Third Schedule to the Family Allowances and National Insurance Act, 1952. Higher rates, etc., of contributions and benefit under National Insurance Act, 1946, and additional contributions from Exchequer.

(2) In the National Insurance Act, 1946, the provisions set out in the Fourth Schedule to this Act (which relate to rates and amounts of benefit) shall be substituted, as from the appointed day, for the provisions set out in the Second Schedule to that Act as amended by the Family Allowances and National Insurance Act, 1952, and the National Insurance Act, 1953.

(3) The following contributions (additional to the Exchequer supplements) shall, in such manner and at such times as the Treasury may determine, be paid into the National Insurance Fund out of moneys provided by Parliament, namely—

(a) in respect of the period of five years beginning with the first day of April, nineteen hundred and fifty-five, such

sums as the Treasury may determine not exceeding in all three hundred and twenty-five million pounds;

- (b) in respect of any subsequent period, such sums as Parliament may hereafter determine.

Consequential amendments.

3. The provisions of the Industrial Injuries Act, the National Insurance Act, 1946, the National Insurance Act, 1951, and the National Insurance Act, 1953, specified in the first column of the Fifth Schedule to this Act shall have effect, as from the appointed day, subject to the amendments specified in the second column of that Schedule, being amendments consequential on the amendments made by the preceding provisions of this Act.

Supplementary provisions as to certain classes of persons.

4.—(1) Without prejudice to the generality of any power to make regulations under the National Insurance Act, 1946, and to the construction as one with that Act of the provisions of this Act relating thereto—

- (a) the power conferred by subsection (2) of section sixty-five of the National Insurance Act, 1946, to prescribe modifications of, and additions and exceptions to, the foregoing provisions of that Act, in relation to existing contributors and existing beneficiaries, shall include power to prescribe, in relation to them, modifications of, and additions and exceptions to, any provisions of this Act relating to that Act, and such further modifications of, and additions and exceptions to, the foregoing provisions of the National Insurance Act, 1946, as may appear to the Minister to be necessary or expedient in consequence of any provision of this Act relating to that Act;
- (b) the reference in subsection (2) of section seventy-one of the National Insurance Act, 1946 (which confers power to modify the foregoing sections of that Act in relation to any entrants who are over school leaving age on the appointed day within the meaning of that Act), to the foregoing sections of that Act shall include a reference to any provision of this Act relating to that Act;
- (c) the power conferred by subsection (4) of section sixty-nine of the National Insurance Act, 1946, to make provision by regulations for the modifying or winding up, in connection with the passing of that Act, of certain schemes shall include power to make such further provision therefor as appears to the authority by whom the power is exercisable to be necessary or expedient in consequence of any provision of this Act relating to that Act.

(2) Nothing in the provisions of this Act relating to retirement pensions shall be taken as affecting the provisions of section seventy-four of the National Insurance Act, 1946, relating to non-contributory pensions.

5.—(1) In this Act the expression “the appointed day” means, subject to the following provisions of this section, such day as the Minister may by order appoint, and different days may be appointed for different purposes of this Act or for the same purpose in relation to different cases or classes of case. Provisions as to appointed day.

(2) Any order under this section may, if the day thereby appointed is appointed for some only of the purposes of this Act or in relation only to some cases or classes of case, contain such incidental or supplementary provisions as appear to the Minister to be necessary or expedient as respects the period or any part of the period when this Act is to have a partial operation only and, in particular, provisions modifying and supplementing, in relation to the period to which the order is to apply, the provisions of this Act or any Act amended by this Act.

(3) The power to make orders under this section shall be exercisable by statutory instrument and shall include power to vary or revoke any order so made by a subsequent order.

6.—(1) Except in such cases as may be prescribed by regulations made by the Minister, and subject to such conditions as may be so prescribed, where an award of any benefit under the Industrial Injuries Act, or the National Insurance Act, 1946, is in force on the day appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate by virtue of this Act or any regulations made in consequence of this Act, the benefit shall, without any claim being made therefor, become payable, as from that day, at the higher weekly rate, and the award shall have effect accordingly. Effect of awards made before, or in respect of the period beginning before, appointed or prescribed day.

(2) Where any such award as aforesaid—

(a) is made after a day has been appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate, or within a higher maximum weekly rate, by virtue of this Act or any regulations made in consequence of this Act; and

(b) is made before that day,

the award may provide for the benefit to be paid, as from that day, at the higher weekly rate or, as the case may be, at any weekly rate within the higher maximum rate.

(3) The powers to make regulations under the preceding provisions of this section shall be exercised separately in relation to the Industrial Injuries Act and the National Insurance Act, 1946.

(4) Any regulations made in consequence of this Act varying the scale of disablement gratuities prescribed under subsection (6) of section twelve of the Industrial Injuries Act may provide that the scale as varied shall only apply in cases where the period taken into account by the assessment of the extent of the disablement in respect of which the gratuity is awarded begins or began after such day as may be prescribed.

Special
transitional
provisions as
to maternity
grant and
home
confinement
grant.

7. Nothing in this Act shall affect the amount—

- (a) of a maternity grant or home confinement grant in respect of a confinement occurring before the appointed day; or
- (b) subject to the provisions of this section, of any maternity grant to which a woman has become entitled before the appointed day by virtue of regulations made under subsection (4) of section fourteen of the National Insurance Act, 1946, as set out in the First Schedule to the National Insurance Act, 1953:

Provided that regulations made by the Minister may provide for increasing to ten pounds the amount of a maternity grant to which a woman has become entitled before the appointed day (whether payment has already been made or not) if the confinement in question has not occurred before the appointed day and her pregnancy has not been otherwise terminated before that day.

Expenses.

8. There shall be defrayed out of moneys provided by Parliament any increase in the sums payable out of moneys so provided under—

- (a) paragraph (b) of section two or subsection (1) of section sixty of the Industrial Injuries Act; or
- (b) subsection (3) of section two of the National Insurance Act, 1946 (as amended by section one of the National Insurance Act, 1951), or subsection (1) of section thirty-eight of the National Insurance Act, 1946,

which is attributable to any provision made by this Act for increasing any rates or amounts of contributions or benefits under the Industrial Injuries Act or the National Insurance Act, 1946.

9. For the purposes—**Regulations.**

- (a) of any provision of the Industrial Injuries Act relating to regulations under the Industrial Injuries Act;
- (b) of any provision of the National Insurance Act, 1946, relating to regulations under the National Insurance Act, 1946; and
- (c) of the Statutory Instruments Act, 1946,

regulations under this Act relating to the Industrial Injuries Act shall be treated as regulations under the Industrial Injuries Act and regulations under this Act relating to the National Insurance Act, 1946, shall be treated as regulations under the National Insurance Act, 1946.

10.—(1) This Act may be cited as the National Insurance Act, 1954.

Short title,
construction,
citation and
extent.

(2) This Act—

- (a) so far as it relates to the Industrial Injuries Act, shall be construed as one with that Act and may be cited together with the National Insurance (Industrial Injuries) Acts, 1946 to 1953, as the National Insurance (Industrial Injuries) Acts, 1946 to 1954; and
- (b) so far as it relates to the National Insurance Act, 1946, shall be construed as one with that Act and may be cited together with the National Insurance Acts, 1946 to 1953, as the National Insurance Acts, 1946 to 1954.

(3) Without prejudice to the operation, in relation to any matters arising out of this Act, of any provision relating to Northern Ireland of the Industrial Injuries Act or the National Insurance Act, 1946, this Act shall not extend to Northern Ireland.

SCHEDULES

Section 1.

FIRST SCHEDULE

TABLE TO BE SUBSTITUTED IN PART I OF SECOND SCHEDULE TO
INDUSTRIAL INJURIES ACTWEEKLY RATES OF CONTRIBUTIONS PAYABLE BY
INSURED PERSONS AND EMPLOYERS

Class of insured person to whom rate applies	Weekly rate of contribution	
	By the insured person	By the employer
Men over the age of eighteen ...	5d.	6d.
Women over the age of eighteen ...	3d.	4d.
Boys under the age of eighteen ...	3d.	3d.
Girls under the age of eighteen ...	2d.	2d.

Section 1.

SECOND SCHEDULE

AMENDMENTS OF BENEFIT PROVISIONS OF INDUSTRIAL INJURIES ACT

(The references to the various provisions are, except in the case of section 14 (1), references to those provisions as amended by the Second Schedule to the Family Allowances and National Insurance Act, 1952, and any other enactments specifically mentioned)

Provision of the 1946 Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 11 (3)	Weekly rates of injury benefit—		
	(a) for beneficiaries over 18 or with dependants,	fifty-five shillings	sixty-seven shillings and sixpence
	(b) for beneficiaries between 17 and 18 without dependants,	forty-one shillings and threepence	fifty shillings and eightpence
	(c) for beneficiaries under 17 without dependants.	twenty-seven shillings and sixpence	thirty-three shillings and ninepence
Section 12 (6)	Maximum amount of disablement gratuity for disablement of less than twenty per cent.	one hundred and eighty-five pounds	two hundred and twenty-five pounds

2ND SCH.
—cont.

Provision of the 1946 Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Third Schedule (applied by s. 12 (7))	Weekly rates of disablement pension for degrees of disablement of—		
	100 per cent. ...	55 shillings	67 shillings and 6 pence
	90 per cent. ...	49 shillings and 6 pence	60 shillings and 9 pence
	80 per cent. ...	44 shillings	54 shillings
	70 per cent. ...	38 shillings and 6 pence	47 shillings and 3 pence
	60 per cent. ...	33 shillings	40 shillings and 6 pence
	50 per cent. ...	27 shillings and 6 pence	33 shillings and 9 pence
	40 per cent. ...	22 shillings	27 shillings
	30 per cent. ...	16 shillings and 6 pence	20 shillings and 3 pence
	20 per cent. ...	11 shillings	13 shillings and 6 pence
Section 13 (1)	Amounts by which weekly rates of disablement pension are increased on account of unemployability— (a) for beneficiaries over 18 or with dependants, (b) for beneficiaries under 18 without dependants.	thirty-two shillings and sixpence twenty shillings	forty shillings twenty-three shillings
Section 14 (1) (as amended by s. 1 of National Insurance (Industrial Injuries) Act, 1948)	Maximum amount of increase of weekly rate of disablement pension in cases of special hardship.	twenty shillings	twenty-seven shillings and sixpence
Section 15 (2)	Maximum amount of increase of weekly rate of disablement pension where constant attendance is needed— (a) in cases other than those of exceptionally severe disablement, (b) in cases of exceptionally severe disablement.	twenty-five shillings fifty shillings	thirty shillings sixty shillings

2ND SCH.
—cont.

Provision of the 1946 Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 17 (1) (as amended by s. 3 of National Insurance Act, 1951)	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension— (a) in respect of only, elder or eldest child, (b) in respect of each child other than the elder or eldest.	ten shillings and sixpence two shillings and sixpence	eleven shillings and sixpence three shillings and sixpence
Section 18 (1)	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension in respect of adult dependant.	twenty-one shillings and sixpence	twenty-five shillings
Section 19 (3)	Weekly rate of widow's pension payable in circumstances specified in the subsection.	thirty-seven shillings	forty-five shillings
Section 19 (4)	Maximum higher weekly rate of widow's pension payable for prescribed period after deceased's death.	forty-two shillings and sixpence	fifty-five shillings
Section 20 (2)	Weekly rate of widower's pension.	thirty-seven shillings	forty-five shillings
Section 21 (1) (as amended by section 3 of National Insurance Act, 1951)	Weekly rate of death benefit— (a) in respect of only, elder or eldest child, (b) in respect of each child other than the elder or eldest.	ten shillings and sixpence two shillings and sixpence	eleven shillings and sixpence three shillings and sixpence

THIRD SCHEDULE

Section 2.

PROVISIONS TO BE SUBSTITUTED IN FIRST SCHEDULE TO NATIONAL
INSURANCE ACT, 1946

CONTRIBUTION RATES .

PART I

EMPLOYED PERSONS

Description of employed person	Weekly Rate of Contribution
	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)—	
Earning remuneration at a weekly rate exceeding 30s.	6 4
Earning remuneration at a weekly rate of 30s. or less	3 8
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)—	
Earning remuneration at a weekly rate exceeding 30s.	5 3
Earning remuneration at a weekly rate of 30s. or less	3 1
Boys under the age of 18	3 8
Girls under the age of 18	3 1

For the purpose of this Part and Part II of this Schedule a person shall be deemed to be earning remuneration at a weekly rate of thirty shillings or less if, but only if, his remuneration does not include the provision of board and lodging by the employer and the rate of the remuneration does not exceed thirty shillings a week, and to be earning remuneration at a weekly rate exceeding thirty shillings in any other case.

3RD SCH.
—cont.PART II
EMPLOYERS

Description of employed person	Weekly Rate of Contribution
Men over the age of 18—	s. d.
Earning remuneration at a weekly rate exceeding 30s. or not being liable to pay a contribution as an employed person	5 6
Earning remuneration at a weekly rate of 30s. or less and being liable to pay a contribution as an employed person	8 2
Women over the age of 18—	
Earning remuneration at a weekly rate exceeding 30s. or not being liable to pay a contribution as an employed person	4 7
Earning remuneration at a weekly rate of 30s. or less and being liable to pay a contribution as an employed person	6 9
Boys under the age of 18	3 3
Girls under the age of 18	2 8

For the purpose of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

PART III
SELF-EMPLOYED PERSONS

Description of self-employed person	Weekly Rate of Contribution
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)	s. d. 8 5
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)	7 2
Boys under the age of 18	4 10
Girls under the age of 18	4 3

3RD SCH.
—cont.

PART IV
NON-EMPLOYED PERSONS

Description of non-employed person	Weekly Rate of Contribution	
	s.	d.
Men between the ages of 18 and 65	6	6
Women between the ages of 18 and 60	5	2
Boys under the age of 18	3	9
Girls under the age of 18	3	1

PART V
EXCHEQUER SUPPLEMENT

Description of person by or in respect of whom contribution is paid	Amount of Supplement			
	For contribution as employed person	For employer's contribution	For contribution as self-employed person	For contribution as non-employed person
Men over the age of 18	d. 11	d. 11	s. d. 2 6	s. d. 1 10
Women over the age of 18	9	9	2 2	1 6
Boys under the age of 18	6	6	1 5½	1 1
Girls under the age of 18	5	5	1 3	10½

FOURTH SCHEDULE

Section 2.

PROVISIONS TO BE SUBSTITUTED IN SECOND SCHEDULE TO NATIONAL INSURANCE ACT, 1946

PART I

RATES OF PERIODICAL BENEFITS AND OF INCREASES FOR DEPENDANTS

Description of benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
1. Unemployment benefit—				
(a) in the case of a person over the age of eighteen, not being a married woman	40 0	11 6	3 6	25 0
(b) in the case of a person under the age of eighteen, not being a married woman—				
(i) during any period during which that person is entitled to an increase of benefit in respect of a child or adult dependant	40 0 23 0	11 6 —	3 6 —	25 0 —
(ii) during any other period				
(c) in the case of a married woman over the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is not residing with and is unable to obtain any financial assistance from her husband	40 0 30 0	11 6 11 6	3 6 3 6	25 0 25 0
(ii) during any other period				
(d) in the case of a married woman under the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is entitled to an increase of benefit in respect of a child or an adult dependant other than her husband and she is not residing with and is unable to obtain any financial assistance from her husband	40 0	11 6	3 6	25 0

4TH SCH.
—cont.

Description of benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
(ii) during any other period during which she is entitled to an increase of benefit in respect of a child or adult dependant	30 0	11 6	3 6	25 0
(iii) during any other period	23 0	—	—	—
2. Sickness benefit—				
(a) in the case of a person over the age of eighteen, not being a married woman	40 0	11 6	3 6	25 0
(b) in the case of a person under the age of eighteen, not being a married woman—				
(i) during any period during which that person is entitled to an increase of benefit in respect of a child or adult dependant	40 0	11 6	3 6	25 0
(ii) during any other period	23 0	—	—	—
(c) in the case of a married woman over the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is not residing with and is unable to obtain any financial assistance from her husband	40 0	11 6	3 6	25 0
(ii) during any other period	25 0	11 6	3 6	25 0
(d) in the case of a married woman under the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is entitled to an increase of benefit in respect of a child or an adult dependant other than her husband and she is not residing with and is unable to obtain any financial assistance from her husband	40 0	11 6	3 6	25 0

4TH SCH.
—cont.

Description of benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
(ii) during any other period during which she is entitled to an increase of benefit in respect of a child or adult dependant	25 0	11 6	3 6	25 0
(iii) during any other period	23 0	—	—	—
3. Maternity allowance ...	40 0	11 6	3 6	25 0
4. Widow's allowance	55 0	11 6	3 6	—
5. Widowed mother's allowance	51 6	—	3 6	—
6. Widow's pension	40 0	—	—	—
7. Guardian's allowance ...	18 0	—	—	—
8. Retirement pension—				•
(a) where the pension is payable to a woman by virtue of her husband's insurance and he is alive	25 0	11 6	3 6	—
(b) in any other case	40 0	11 6	3 6	25 0

Note.—The increases of maternity allowance specified in the third, fourth and fifth columns above apply only in so far as provided for by regulations under section eight of the National Insurance Act, 1953.

PART II

AMOUNT OF GRANTS

Description of Grant	Amount
	£ s. d.
1. Maternity grant	10 0 0
2. Home confinement grant	4 0 0
3. Death grant, where the person in respect of whose death the grant is paid was at his death—	
(a) under the age of three... ..	6 0 0
(b) between the ages of three and six	10 0 0
(c) between the ages of six and eighteen	15 0 0
(d) over the age of eighteen	20 0 0

FIFTH SCHEDULE

Section 3.

CONSEQUENTIAL AMENDMENTS OF INDUSTRIAL INJURIES ACT, NATIONAL
INSURANCE ACT, 1946, NATIONAL INSURANCE ACT, 1951, AND
NATIONAL INSURANCE ACT, 1953

Amended Provision	Amendment
Industrial Injuries Act— Section 14	In subsection (3) (as set out in the Schedule to the National Insurance (Industrial Injuries) Act, 1948 and amended by the Fifth Schedule to the Family Allowances and National Insurance Act, 1952), for the words “fifty-five shillings” there shall be substituted the words “sixty-seven shillings and sixpence”.
Section 29	In paragraph (a) of subsection (1) (as amended by the National Insurance (Industrial Injuries) Act, 1948 and the said Fifth Schedule) for the words “fifty-five shillings” in both places where those words occur, there shall be substituted the words “sixty-seven shillings and sixpence”; for the words “forty-one shillings and threepence” there shall be substituted the words “fifty shillings and eightpence”; and for the words “twenty-seven shillings and sixpence” there shall be substituted the words “thirty-three shillings and ninepence”.
Section 30	In subsection (2) (as amended by the Schedule to the National Insurance Act, 1951 and the said Fifth Schedule) for the words “ten shillings and sixpence” there shall be substituted the words “eleven shillings and sixpence”.
Fourth Schedule ...	In paragraph 1 (as amended by the Schedule to the National Insurance Act, 1951, and the said Fifth Schedule), in sub-paragraph (1) for the words “ten shillings and sixpence” and the words “two shillings and sixpence” there shall be substituted respectively the words “eleven shillings and sixpence” and the words “three shillings and sixpence”, and in sub-paragraph (2) for the words “ten shillings and sixpence” there shall be substituted the words “eleven shillings and sixpence”.
National Insurance Act, 1946— Section 17	In subsection (3) (as set out in section two of the National Insurance Act, 1951 and amended by the said Fifth Schedule) for the words “thirty-two shillings and sixpence” there shall be substituted the words “forty shillings” and for the words “forty-three shillings” there shall be substituted the words “fifty-one shillings and sixpence”.
Section 23	In paragraph (b) of subsection (3) (as set out in the Schedule to the National Insurance Act, 1951 and amended by the said Fifth Schedule) for the words “ten shillings and sixpence” there shall be substituted the words “eleven shillings and sixpence”, and for the words “two shillings and sixpence” there shall be substituted the words “three shillings and sixpence”.

5TH SCH.
—cont.

Amended Provision	Amendment
Section 26	In subsection (1) (as amended by the said Fifth Schedule) for the words "thirty-two shillings and sixpence" there shall be substituted the words "forty shillings".
National Insurance Act, 1951—	
Section 2	In subsection (2) for the words "two shillings and sixpence" there shall be substituted the words "three shillings and sixpence".
National Insurance Act, 1953—	
Section 1	Subsection (2) shall cease to have effect.
Section 4	Subsection (2) shall cease to have effect.
Section 6	Subsection (2) shall cease to have effect.
Section 8	In subsection (3) for the words "ten shillings and sixpence" there shall be substituted the words "eleven shillings and sixpence", for the words "two shillings and sixpence" there shall be substituted the words "three shillings and sixpence", and for the words "twenty-one shillings and sixpence" there shall be substituted the words "twenty-five shillings".
Second Schedule ...	Regulations under paragraph 8 may provide that, in such circumstances as may be specified in the regulations, the old provisions shall have effect as if the weekly rate of the maternity allowance provided for by the Second Schedule to the National Insurance Act, 1946, had been forty shillings instead of thirty-six shillings; and, in paragraph 10, for the words "thirty-two shillings and sixpence" there shall be substituted the words "forty shillings".

— 00 —

Table of Statutes referred to in this Act

Short title	Session and Chapter
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
National Insurance Act, 1951	14 & 15 Geo. 6. c. 34.
Family Allowances and National Insurance Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 29.
National Insurance Act, 1953	1 & 2 Eliz. 2. c. 29.